



☐ Short Delivery	☐ Only for Engg. Activities	Date	29.09.2025
☐ Bought out valves	☐ Others, Please Specify	CORB Reference	DM25066L
Customer / Buyer Name	LARSEN & TOUBRO LIMITED	CEC Quote Number with Date	250702-0400-PA Dtd 28.08.2025
Site / End User Name & Country	Rashtriya Chemicals and Fertilizers Limited, India	Application Engineer SPOC	Karthikeyan Sekar Satheshkumar Eagambaram
Buyer PO Number/Date	LTES/75001-83664/BS Dtd 03.09.2025	Outside Sales Engineer/Manager	Ashokvijay R
Buyer PO/LOI Received Date	12.09.2025	PO Value	INR 9,99,750
Agreed / Approved Payment Terms	Refer PO clause no. 5.0	1)PO Delivery Date 2)Agreed Delivery Date	26.03.2026
Agreed Incoterms /Shipping Terms	CPT, RCF Thal Project Site	Margin	22%
LD Clause	@0.5% of the undelivered portion of Order value	Agent Name & Commission	NA
Ship to Address with GST#:	Rashtriya Chemical and Fertilizers Limited Thal, Thal-Vaishet, Alibag # 402 208 State: Maharashtra, India GSTIN: 27AAACL0140PEZ6	Bill to Address with GST#:	Larsen & Toubro Limited Divison Name: L&T Energy Hydrocarbon 14th Floor, AMN Tower, AMN Tower, Jogeshwari - Vikroli Link Road, Powai Campus, Gate 3, Mumbai Suburban, Maharashtra, 400072

CIRCOR ORDER REVIEW BOARD

SCOPE OF SUPPLY

APPROVALS (TECHNICAL & COMMERCIAL)

PURCHASE ORDER / LOI – BUYER

CIRCOR PROPOSAL/QUOTE

COST SUMMARY SHEET

SPECIAL NOTES & AE CHECK LIST (INSTRUCTION TO CS / ME/ENG/SCM / QA)

INSTRUMENTATION LIST

CIRCOR VALVE / DESUPERHEATER GAD

CIRCOR VALVE / DESUPERHEATER SPECIFICATION & CALCULATION

ENQUIRY / RFQ FROM CUSTOMER

IMPORTANT CORRESPONDENCES/EMAILS



☐ Short Delivery	☐ Only for Engg. Activities	Date	29.09.2025
☐ Bought out valves	☐ Others, Please Specify	CORB Reference	DM25066L
Customer / Buyer Name	LARSEN & TOUBRO LIMITED	CEC Quote Number with Date	250702-0400-PA Dtd 28.08.2025
Site / End User Name & Country	Rashtriya Chemicals and Fertilizers Limited, India	Application Engineer SPOC	Karthikeyan Sekar Satheshkumar Eagambaram
Buyer PO Number/Date	LTES/75001-83664/BS Dtd 03.09.2025	Outside Sales Engineer/Manager	Ashokvijay R
Buyer PO/LOI Received Date	12.09.2025	PO Value	INR 9,99,750
Agreed / Approved Payment Terms	Refer PO clause no. 5.0	1)PO Delivery Date 2)Agreed Delivery Date	26.03.2026
Agreed Incoterms /Shipping Terms	CPT, RCF Thal Project Site	Margin	22%
LD Clause	@0.5% of the undelivered portion of Order value	Agent Name & Commission	NA
Ship to Address with GST#:	Rashtriya Chemical and Fertilizers Limited Thal, Thal-Vaishet, Alibag # 402 208 State: Maharashtra, India GSTIN: 27AAACL0140PEZ6	Bill to Address with GST#:	Larsen & Toubro Limited Divison Name: L&T Energy Hydrocarbon 14th Floor, AMN Tower, AMN Tower, Jogeshwari - Vikroli Link Road, Powai Campus, Gate 3, Mumbai Suburban, Maharashtra, 400072

SCOPE OF SUPPLY



SCOPE OF SUPPLY - DM25066L

PO Line No	Item No / Tag No	Item Description	Circor Internal No As Refected in CORB Package	Product Line	PO Qty	Customer PO Unit Price	Customer PO Total Price
1	NDSSIW6BCBKACBIXZZ	CIR 3210, ANSI CL 300, ASTM A106 Gr B / A105, 6", RF, Venturi Nozzle, with 6 inch steam pipe & 4 inch liner arrangement	DM25066L	110: DSH	1	₹ 3,10,594	₹ 3,10,594
		CIR 3100, ANSI CL 300, A105, 1", RF, , Std. Bonnet, Graphite, Contoured Plug, Class V, Fail to Close, SASR Actuator, With HOD, SIEMENS Poz, SHAVO AFR etc.,		101: CIR / RTK 3100			
2	NDSSIX6ACX3AC7IXZZ	CIR 3220, ANSI CL 150x300, ASTM A106 Gr B / A105, 3"x1", RF, Fixed Nozzle, without Steam pipe arrangement	DM25066L	110: DSH	1	₹ 2,39,731	₹ 2,39,731
		CIR 3100, ANSI CL 300, A105, 1", RF, , Std. Bonnet, Graphite, MZ Plug, Class V, Fail to Close, SASR Actuator, With HOD, SIEMENS Poz, SHAVO AFR etc.,		101: CIR / RTK 3100			
3	IHMGCVMRP01	Mandatory Spares as per MR Philosophy	DM25066L	114: Spare Parts	1	₹ 4,49,425	₹ 4,49,425
						Total	\$ 9,99,750



☐ Short Delivery	☐ Only for Engg. Activities	Date	29.09.2025
☐ Bought out valves	☐ Others, Please Specify	CORB Reference	DM25066L
Customer / Buyer Name	LARSEN & TOUBRO LIMITED	CEC Quote Number with Date	250702-0400-PA Dtd 28.08.2025
Site / End User Name & Country	Rashtriya Chemicals and Fertilizers Limited, India	Application Engineer SPOC	Karthikeyan Sekar Satheshkumar Eagambaram
Buyer PO Number/Date	LTES/75001-83664/BS Dtd 03.09.2025	Outside Sales Engineer/Manager	Ashokvijay R
Buyer PO/LOI Received Date	12.09.2025	PO Value	INR 9,99,750
Agreed / Approved Payment Terms	Refer PO clause no. 5.0	1)PO Delivery Date 2)Agreed Delivery Date	26.03.2026
Agreed Incoterms /Shipping Terms	CPT, RCF Thal Project Site	Margin	22%
LD Clause	@0.5% of the undelivered portion of Order value	Agent Name & Commission	NA
Ship to Address with GST#:	Rashtriya Chemical and Fertilizers Limited Thal, Thal-Vaishet, Alibag # 402 208 State: Maharashtra, India GSTIN: 27AAACL0140PEZ6	Bill to Address with GST#:	Larsen & Toubro Limited Divison Name: L&T Energy Hydrocarbon 14th Floor, AMN Tower, AMN Tower, Jogeshwari - Vikroli Link Road, Powai Campus, Gate 3, Mumbai Suburban, Maharashtra, 400072

APPROVALS (TECHNICAL & COMMERCIAL)



☐ Short Delivery	☐ Only for Engg. Activities	Date	29.09.2025
☐ Bought out valves	☐ Others, Please Specify	CORB Reference	DM25066L
Customer / Buyer Name	LARSEN & TOUBRO LIMITED	CEC Quote Number with Date	250702-0400-PA Dtd 28.08.2025
Site / End User Name & Country	Rashtriya Chemicals and Fertilizers Limited, India	Application Engineer SPOC	Karthikeyan Sekar Satheshkumar Eagambaram
Buyer PO Number/Date	LTES/75001-83664/BS Dtd 03.09.2025	Outside Sales Engineer/Manager	Ashokvijay R
Buyer PO/LOI Received Date	12.09.2025	PO Value	INR 9,99,750
Agreed / Approved Payment Terms	Refer PO clause no. 5.0	1)PO Delivery Date 2)Agreed Delivery Date	26.03.2026
Agreed Incoterms /Shipping Terms	CPT, RCF Thal Project Site	Margin	22%
LD Clause	@0.5% of the undelivered portion of Order value	Agent Name & Commission	NA
Ship to Address with GST#:	Rashtriya Chemical and Fertilizers Limited Thal, Thal-Vaishet, Alibag # 402 208 State: Maharashtra, India GSTIN: 27AAACL0140PEZ6	Bill to Address with GST#:	Larsen & Toubro Limited Divison Name: L&T Energy Hydrocarbon 14th Floor, AMN Tower, AMN Tower, Jogeshwari - Vikroli Link Road, Powai Campus, Gate 3, Mumbai Suburban, Maharashtra, 400072

PURCHASE ORDER

 LARSEN & TOUBRO		LARSEN & TOUBRO LIMITED L&T ENERGY - HYDROCARBON Technology Centre, North Block -II Powai, Gate No. 1, Saki Vihar Road Mumbai 400072 Maharashtra India	Contact Person : BHUSHAN SHETTY Contact Telephone : Contact Email : bhushan.shetty@larsentoubro.com	PO NO. :LTES/75001-83664/BS PO Date : 03.09.2025
To, VENDOR CODE:60572 Circor Flow Technologies India Pvt Ltd SF No. 337/2, No. 15,Naranapuram Village, Thennampalayam to Annur Road Coimbatore Coimbatore 641659 Tamil Nadu India Telephone: - ATTN:- GSTIN NO.: 33AADCC5649M1ZE	YOUR REFERENCE EMAIL/18.07.2025 For other references refer annexure		PRICING & TAXATION: Please refer details in Annexure I. PAYMENT TERMS: Please refer details in Annexure II.	
Please arrange to provide the goods / services described below strictly as per terms and conditions mentioned in this Purchase Order and its enclosure/s listed below.				
GENERAL DESCRIPTION		CURRENCY	TOTAL VALUE (PRICE)	
Design, Engineering, Procurement, Manufacturing, Supply, Packing & Forwarding and Transportation of Desuperheater for New 1200 MTPD (DAP Basis) NPK Fertilizer Plant for Rashtriya Chemicals and Fertilizers Limited (RCF)at Thal, Maharashtra (India).		INR	11,79,706.00 Eleven Lakh Seventy Nine Thousand Seven Hundred Six only.	
		Value (Price) Basis: CPT, RCF-Thal Project Site basis		
Kindly send all your correspondence regarding this order in duplicate. All items and conditions below and on the reverse are to be strictly complied with.				
DISPATCH DETAILS: For details refer enclosures. Materials / Services to be dispatched only after receiving Dispatch Clearance from LARSEN & TOUBRO LIMITED				
Place of Supply / Destination: Maharashtra				
L&T GST REGISTRATION NO.: 27AAACL0140PEZ6			CIN: L99999MH1946PLC004768	
DOCUMENTATION : Please refer details in Annexure II.				
BILLING : For details refer enclosures. Bills submitted against this Purchase Order must contain Purchase Order No. & Date, Purchase Order Item No. and Vendor code.				
PROJECT: RCF-NPK Project 1200 MTPD (DAP Basis)		Release Code: 11 L.C.: 11.09.2025 11:58:05 Printed On : 12.09.2025 11:09:21		For LARSEN & TOUBRO LIMITED Snehal Shetiya JT. GENERAL MANAGER - PROCUREMENT
Registered Office : L&T House, Ballard Estate, Mumbai : 400 001, INDIA *- Refer Annexure for Details				



LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - I
Page No:2 of 2

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

Total Quantity 3

Summary:

Total Gross Price	9,99,750.00
Total IN: Integrated GST	1,79,956.00

Total Value (Rounded off to) : INR 11,79,706.00

For LARSEN & TOUBRO LIMITED

Snehal Shetiya
JT. GENERAL MANAGER - PROCUREMENT

Separate signature is not necessary here in case PO
authorization is through verifiable digital signature.



LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - II
Page No: 1 of 30

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

1.0 References/Scope of work:

Scope of Work shall be strictly as per the Material Requisition Ref. No. E24003-RCF-IN-MRQ-042 enclosed with enquiry document, subsequent addenda, correspondence (Technical Queries, Commercial Queries etc.), discussions and MoM's.

Any exclusions, clarifications etc. stands withdrawn unless otherwise mutually agreed, duly recorded and accepted by L&T prior to placement of the Order.

Reference:

- 1.RFQ Ref No. RFQ/RCFNPK/0038dt. 02nd Jul 2025 issued by L&T vide Enqueue portal including its MR No. E24003-RCF-IN-MRQ-042_Rev 0.
- 2.Techno-Commercial Offer No. 250702-0400-PA dt. 18th July 2025 submitted by CIRCOR Flow Technologies India Pvt. Ltd.
- 3.Final Commercial Offer submitted by CIRCOR Flow Technologies India Pvt. Ltd. vide Email dt. 28th Aug 2025.
- 4.TQ-1 & Deviation closure sheets dt. 03rd Sep 2025 signed and stamped by CIRCOR Flow Technologies India Pvt. Ltd.
- 5.Letter of Award (LOA) No. LTEH/RCF/NPK/013 dt.03-Sep-2025 issued by L&T.
- 6.All correspondences exchanged between L&T Ltd., and CIRCOR Flow Technologies India Pvt. Ltd. till date.

With reference to the above, Larsen & Toubro Limited, India (hereinafter referred to as "L&T/Purchaser") is pleased to release this Purchase Order (PO) on CIRCOR Flow Technologies India Pvt. Ltd. (hereinafter referred to as "CIRCOR/Supplier/Vendor"), for Design, Engineering, Procurement, Manufacturing, Supply, Packing & Forwarding and Transportation of Desuperheater considering Price Basis according to INCOTERMS 2020, as CPT, Project Site, Raigad, Maharashtra basis for New 1200 MTPD (DAP Basis) NPK Fertilizer Plant for Rashtriya Chemicals and Fertilizers Limited (RCF) at Thal, Maharashtra (India) including guarantees for performance, design, material, & workmanship, in line with scope, specifications, terms & conditions agreed upon as per reference documents stated above.

Mandatory Spares shall be as per MR Document PC193/E-2/P-II/10.0.

2.0 Price & Price Basis:

The Total Price for Supply of Desuperheater for New 1200 MTPD (DAP Basis) NPK Fertilizer Plant along with Associated Utilities/Off Sites Facilities for Rashtriya Chemicals and Fertilizers Limited (RCF) at Thal, Maharashtra (India) shall be INR 9,99,750 (INR Nine Lakhs Ninety Nine Thousand Seven Hundred Fifty Only) (Hereinafter referred to as "Contract Value"), considering Price Basis according to INCOTERMS 2020, as CPT, Project Site, Raigad, Maharashtra basis, including Packing & Forwarding and Transportation.

TPI Charges shall be in L&T's Scope.

The above prices are based on vendor design complying with Material Requisition (MR) Ref. No. E24003-RCF-IN-MRQ-042, its Addendum(s) (if any) and are fixed unless there is an impact attributable to change in design data.

Price in full or in part are firm and fixed with no escalation whatsoever.

The prices are exclusive of GST and shall be paid extra @ 18%.

Payment of GST charged in the invoices will be released, after validation of suppliers' GST compliances, on GSTN Portal, which will be 20 days after filing of GSTR 3B return by supplier, or 20 days from the date of release of basic payment, whichever is later.

Variation in prices of raw material or bought-out items shall not be admissible. Any variation in price on account of exchange rate fluctuations, changes in taxes/duties/law, changes in Codes and standard, increase in wages, Commodity rates, labor rates, fuel prices etc. shall not be admissible.

3.0 Terms of delivery:

CIRCOR Flow Technologies India Pvt. Ltd. shall deliver Desuperheater on or before 26th Mar-2026 on CPT, RCF Thal Project Site, Raigad Maharashtra basis.

Continue..

L.C.: 11.09.2025 11:58:05



LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - II
Page No: 2 of 30

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

The delivery date mentioned above is inclusive of time for requisite approvals from L&T/Owner/TPIA and entire responsibility of delivery, including statutory clearances (if any) remains with Circor Flow Technologies India Pvt. Ltd. and is included in the above-mentioned price.

4.0 Shipment Basis:

CPT, RCF Thal Project Site, Raigad Maharashtra basis.

5.0 Payment Terms:

Payment shall be released as per following milestones:

1.95% of the Basic Order value shall be released after shipment (i.e. Lorry Receipt) on prorata basis as per scope of order, after settling L&T's entitlements of Order price discounts and adjustments if any, as mentioned elsewhere and on submission of following documents to L&T:

#Signed Commercial Invoices (in Triplicate)

#Original GST / Buyer's copy of Tax Invoice (2 Copies)

#Copy of GST Registration Certificate (2 Copies)

#Lorry Receipt/ Railway Receipt (2 Copies)

#Packing List / delivery Challan.

#Original Manufacturer Test Certificates duly endorsed by TPIA -4 Copies

#Inspection Release Note by TPIA (2 Copies)

#Dispatch Clearance in writing from L&T

#Guarantee/Warranty Certificate stating that the equipment, spares, accessories supplied against the subject order meet with the guaranteed requirements as per Project Document No:

E24003-RCF-IN-MRQ-042 and relevant details in addendum issued and points mentioned in TQ closure.

#General Compliance Certificates, issued by Supplier, stating that all terms and conditions of the purchase order until CPT shipment have been fully complied with

#Copy of Email intimation sent to L&T for Insurance

#Copy of e-way bill

2.5% of the Basic Order value (Excluding GST) shall be released after technical document folder (in soft & hard) as per RFQ and submission of as built documents, acceptance of the same by L&T.

GST payment Clause:- Payment of GST charged in the invoices will be released, after validation of suppliers' GST compliances, on GSTN Portal, which will be 20 days after filing of GSTR 3B return by supplier, or 20 days from the date of release of basic payment, whichever is later.

Invoicing Details:

Invoice shall be in the name of:

Larsen & Toubro Limited
Division Name: L&T Energy Hydrocarbon
14th Floor, AMN Tower, AMN Tower, Jogeshwari - Vikroli
Link Road, Powai Campus, Gate 3, Mumbai Suburban,
Maharashtra, 400072
GSTIN: 27AAACL0140PEZ6

The Consignee Address shall be as follows:

Larsen & Toubro Limited
Division Name: L&T Energy Hydrocarbon
Rashtriya Chemical and Fertilizers Limited

Continue..

L.C.: 11.09.2025 11:58:05



LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - II
Page No: 3 of 30

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

Thal, Thal-Vaishet, Alibag # 402 208
State: Maharashtra, India
GSTIN: 27AAACL0140PEZ6

Supplier shall mention GST No. and HSN code on original invoice.

Scanned copies of the invoice and supporting documents shall be uploaded on the SAP Ariba Portal.

Upon uploading of the scanned copies, Hard Copies of the Invoice shall be sent to following address:

Mr. Jignesh Shah / Mr. Sarthak Gulati
L&T Energy Hydrocarbon,(AdVENT)
3rd Floor, IndiQube Lake View,
Saki-Vihar Road, Powai, Mumbai-400076
Tel: +91 9820030267 / +91 7828455361
Email:shah.jignesh@larsentoubro.com / sarthak.gulati@larsentoubro.com

Further to the above, Supplier shall also submit one copy of digitally signed invoice with supporting documents to the following e.mail ID:
rcfnpk.invoices@larsentoubro.co m

For queries related to release of payments & TDS certificate, please contact following personnel:
L&T Shared Services Centre (Operations-Baroda):
Mr. Neeraj Gupta
Tel.: 0265 245 4074
Mob.: 8376804504
Email: Neeraj.Gupta2@larsentoubro.com

Soft Copy of Bank Guarantee shall be uploaded on BG Portal and Original copy of the same shall be couriered at below address.

Ms. Vardhana G
Officer - Operations
L&T Ltd - Shared Services Centre
TCTC Building, 2nd Floor
P.B.No. 979, Mount PoonamalleeRoad
Manapakkam, Chennai - 600089
India.
Tel No: +91 44 22528847

6.0 Price Discount:

In case of delay in supply beyond the Contractual Delivery Date (LR date will be reckoned as delivery date), the price will be discounted @0.5% of the undelivered portion of Order value (excluding taxes & duties) per week of delay or part there of subject to a maximum of 5% of undelivered portion of Order value (excluding taxes & duties).

7.0 Performance Bank Guarantee:

Not Applicable.

8.0 Special terms and conditions:

Continue..

L.C.: 11.09.2025 11:58:05



LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - II
Page No: 4 of 30

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

The following Special Terms & Conditions shall supplement and / or amend the Terms & Conditions. Whenever there is a conflict, the provisions herein shall prevail over those in the Terms & Conditions

GTC Clause Ref 2.1 and 2.2: Prices & Price Basis
Charges of Third Party Inspection (TPI) shall be in L&T's Scope.
Price and Price basis shall be as per clause 2.0 of this Purchase Order.

GTC Clause Ref 3.0: Payment Terms
Payment Terms shall be as per clause 5.0 of this Purchase Order.

GTC Clause Ref 4.10: For Delay in submission of documents /drawings
Not Acceptable

GTC Clause Ref 4.20 & 4.30: Price Discount
LD shall be as per clause 6.0 of this Purchase Order.

GTC Clause Ref 5.00: Delivery
Delivery shall be as per clause 3.0 of this Purchase Order.

GTC Clause Ref 8.00: Shipment Basis
Shipment Basis shall be as per clause 4.0 of this Purchase Order.

9.0 General Terms & Conditions:

1.00 Scope of Work / References

1.10 Scope of work shall be strictly as per the Material Requisition (MR) enclosed with enquiry document, subsequent addenda, correspondence (Technical Queries, Commercial Queries etc.), discussions and MoMs. Any exclusions, clarifications etc. stands withdrawn unless otherwise mutually agreed, duly recorded and accepted by L&T prior to placement of the Order.

2.00 Prices & Price Basis

2.10 "Price shall be on Ex-works basis inclusive of packing and loading onto transporter's vehicle. Price in full or in part are firm and fixed with no escalation whatsoever.

Variation in prices of raw material or bought-out items shall not be admissible. Any variation in price on account of exchange rate fluctuations, changes in taxes/duties/law, changes in Codes and standard, increase in wages, Commodity rates, labor rates, fuel prices etc. shall not be admissible.

Prices to be submitted in Indian Rupees (INR) only and shall be valid for minimum 90 days from the date of offer prior to the Purchase Order "

2.20 Appointment of Third-Party Inspection Agency (TPIA) for performing inspections as per approved Inspection Test Plan (ITP), Quality Procedures/Specifications and Material Requisition at Supplier's works & Sub-Supplier works (Requiring Final Inspection Release Note as per ITP/ agreed with L&T) shall be Supplier's scope, Charges for the same shall be borne by Supplier, including coordination with Third Party Inspection Agencies for timely Inspection shall be in Supplier's scope.

"TPIA Inspection and testing at sub-suppliers works shall be in supplier's scope (unless otherwise mutually agreed).

TPIA Inspection and testing charges for any new procedure qualifications and Material testing shall be under supplier's scope.

TPIA chosen by Suppliers for the TPIA inspection under their scope shall be strictly from following approved TPIA's:

- 1) PDIL
- 2) LRQA

Continue..

L.C.: 11.09.2025 11:58:05



LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - II
Page No: 5 of 30

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

- 3) TUV India Pvt. Ltd.
- 4) Bureau Veritas (India) Pvt. Ltd.
- 5) DNV
- 6) SGS
- 7) TUV Sud South Asia Pvt. Ltd.
- 8) Certification Engineers India Ltd (CEIL)
- 9) Engineers India Limited (EIL)

OR other reputed Inspection Agency may be selected with prior approval from L&T/PMC/Owner.

Cost towards repeat tests and inspection due to failures, repairs etc. for reasons attributable to the supplier/sub-supplier shall be borne by the supplier. Supplier shall not obtain any Inspection waiver from their appointed TPIA without prior approval from L&T."

"TPIA Inspection/L&T Inspection/ Inspection waiver does not relieve supplier/manufacturer/sub-suppliers from contractual obligations and their responsibilities to supply the item(s) concerned in full compliance with the requirements of the Purchase Order and project specifications, applicable codes and standards & approved Quality Plan.

The Owner has the right to inspect and test goods to ensure they meet contract specifications. Inspections can occur at the Buyer's or Supplier's premises or at the final destination. The Supplier must provide necessary facilities and assistances for these inspections. Delays in approval or testing are the Supplier's responsibility. The Supplier must promptly provide copies of all test results to the Buyer."

2.30 Prices are inclusive of following charges: -

2.30.1 Transportation saddles, templates/gauge plates, spider beams, transportation Stools etc., as applicable.

2.30.2 Testing / Trial Run / FAT/ IFAT as per RFQ and approved ITP at Supplier's works, sub-Supplier's works & Site

2.30.3 a) Third-Party Inspection charges for inspection of balance items (not covered under clause 2.2) as per Inspection Test Plan (ITP) at Supplier/sub-Supplier's works shall be in Supplier's scope.
b) Raw materials inspection & certification requirement i.e. EN10204 Type 3.2/3.1, as applicable to be performed through project approved TPIA at Mill / Supplier locations. Including any additional check testing at approved laboratory to comply with PO/MR requirements

c) Inspection & Certification required as per Indian Boiler Regulation (IBR), ASME AI Inspection/Code Stamping and National Board of Boiler & Pressure Vessel Inspectors (NBBI) Registration & and National Board Registration (NBR) as applicable.

d) Third-party Inspection charges to perform check testing of raw material in laboratory with TPIA witness in case raw materials (Plate/ Pipe/ Fitting/ Forgings etc.) is procured from Approved Traders / Stockiest & with mill test certificate EN10204 Type 3.2/3.1.

e) Third-party Inspection Charges at Supplier/sub-Supplier works to perform New/ Fresh Welding Procedure/ personnel Welder Performance Qualifications for welding, NDE, Painting, Refractory, Laboratory Testing Charges shall be in Supplier's scope. In case of any failure/rejection in supplied item/material observed at site, cost of failure analysis (including lab testings, re-inspection) shall be borne by Supplier.

f) For indigenous suppliers, for items deviating IBR requirements, inspection shall be carried out by IBR authorities only.

g) In case of any failure/rejection in supplied item/material observed at site, subject item/material will be sent to the L&T's approved labs for failure analysis. The cost of this failure analysis shall be borne by Supplier, if failure/rejection is attributed to Supplier.

2.30.4 Mandatory Spares - as per list specified in MR.

2.30.5 "2 years O&M spares:

Supplier to quote optional price valid till 31-Dec-2028 as specified in the MR. If the list is not furnished in MR, the same shall be provided as per Supplier's Recommendation in SPIR format provided by L&T.

OWNER reserves the right to place the Order for such O&M spares"

2.30.6 "Spares for Start-up / Erection & Commissioning/Performance Guarantees as specified in the RFQ. If the list is not furnished in RFQ, the same shall be provided as per Supplier's Recommendation. If some Spares, which are considered "Not applicable or not considered in correct quantity as per philosophy" by Supplier becomes applicable directly or becomes applicable by having equivalent function the quantity is corrected based on spares philosophy at the time of order execution, Supplier shall supply them in line with Mandatory Spares Philosophy at no extra cost and / or time implications to L&T."

2.30.7 Special Tools & Tackles required for Erection & Commissioning and performance guarantees as specified in the RFQ. If the list is not furnished in RFQ, the same shall be provided as per Supplier's Recommendation.

2.30.8 "Training Charges (If applicable) for the complete package, individual components as mentioned in MR.

Continued..

L.C.: 11.09.2025 11:58:05



LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - II
Page No: 6 of 30

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

These shall include charges for training at Supplier/Sub-supplier Works and / or at Project site, training manual, etc.
Training charges shall be quoted as Lump sum or Per Diem basis."

2.30.9 Charges for documentation (hard & soft copy) for approval & as-built etc. in requisite no. of sets as per RFQ. In case the design of any equipment / ordered items is in L&T scope, all such design documents shall be shared to Supplier and all such documents shall be included as part of Final Documentation (soft and hard copies) without any cost implication to L&T.

2.30.10 List along with quantities for all first-fills for all equipment i.e. Lubricating oils, Grease, Silicon Oil, chemicals, consumables etc. in addition to commissioning and start-up requirement for first fill + six months normal operation after commissioning. Supply shall be by L&T

2.30.11 NA

2.30.12 Supplier confirms acceptance of following as MINIMUM across the Table Meetings at L&T / Detail Engineering Consultant / PMC / Owner Office with presence of competent team member :-

a) Kick Off Meeting (2 of days)

b) 1st Design / Document Review Meeting (3 of days)

c) 2nd Design / Document Review Meeting (3 of days)

d) Model Review Meetings (30%, 60%, 90% - 2 day each)

e) Hazop / SIL Review Meeting (2 day each)

Visit Schedule shall be as decided by L&T and conveyed to Supplier.

Supplier to depute competent team member for all above across the table meetings. All costs associated for attending such across the table meetings at L & T Mumbai are included in base price submitted by Supplier.

2.30.13 Providing information and performing required activities in POMS for progress reporting, drawings and document submission & review cycle, inspection calls & TPIA co-ordination, logistics co-ordination, etc as per the project requirements. Performing required activities in SAP Ariba for P.O. Acknowledgement, Shipping notification, Invoicing, etc.

2.40 Taxes and Duties

2.40.1 Raw Materials / Components imported by Indigenous Supplier to their works.

For all raw materials / components sourced by the Supplier/Sub supplier, Supplier/Sub Supplier shall not be entitled for any concessional import duty (whether in India or any other location) for components / raw materials being imported by the Supplier and sent to their works / their sub-supplier works. Any such imported components shall be customs cleared by the Supplier after paying the applicable customs duties. All import duty and other taxes & duties on such raw material / components shall be in the scope of the Supplier and paid by the Supplier. Statutory variation in taxes & duties including FTA, CEPA etc. on raw material / components shall be to Supplier's account at all times.

L&T/OWNER will not bear any liability towards payment of Safeguard Duty, Anti-Dumping Duty, Protective Duty and applicable IGST on same Or Countervailing Duty on subsidized articles or any other such duties of Customs imposed by the Government under Customs Tariff Act, 1975 applicable on import of any materials to India for the subject work. Therefore, the Suppliers are expected to source such materials required for the execution of work only from domestic producers in India.

To make Price competitive, Supplier are requested to consider free trade agreement/CEPA etc. for import of Raw material, wherever applicable. Supplier to note that all responsibility of these import and procedures shall be responsibility of Supplier.

Imported Raw Material / Finished product shall not be despatched directly to Site. These will be sent to supplier works and then despatched as local supply to Site

2.40.2 Finished Goods shipped from Supplier Works:

For all raw materials / components sourced by the Supplier, all import duty and any other taxes & duties on such raw material / components shall be in the scope of the Supplier and paid by the Supplier.

Statutory variation in taxes & duties on inputs (raw material / components), shall be to Supplier's account at all times.

The Supplier shall adhere to the Billing Instructions issued by L&T (to be issued before despatch).

Applicable Goods and Services tax (SGST/UTGST, CGST, IGST) on Supplier's Goods and/or Services shall be paid by L&T, against documentary evidence provided by Supplier subject to following terms

#

- Supplier is registered under GST and have valid GST registration at all the time.
- Supplier shall submit GST tax invoice as per applicable SGST / UTGST / CGST / IGST Act, 2017 and corresponding GST rules
- Supplier shall discharge the applicable CGST & SGST/UTGST / IGST liability, as the case may be, and file GST Returns within the stipulated time.
- Applicable GST Amount & rate to be indicated in tax invoice as per relevant GST Act.
- Credit and Debit note to be raised as per the relevant provision of GST Act and rules made thereunder.
- Any increase in GST Rate over and above the applicable rate, whether arising out of statutory changes or otherwise beyond the "Contractual Delivery Date" (CDD) shall be to Supplier's account.
- Any increase in the GST Liability or any other duties, taxes and levies due to wrong classification of HSN (Harmonized System of Nomenclature) / SAC (Services Accounting Code) by the Supplier, within Contractual Delivery Date, shall be to Supplier's account.
- In the event the Supplier does not discharge the applicable GST in time as per the GST payment rules, L&T reserves the right to retain the said amount from Supplier's invoice and release the same

Continue..

L.C.: 11.09.2025 11:58:05



LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - II
Page No: 7 of 30

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

only after evidence of tax payment by the Supplier is furnished.

Supplier shall furnish the details of returns filed against invoice issued to L&T as evidence of their tax liability discharge.

Statutory Variation in Taxes and Duties:

Statutory variation in GST mentioned above and any new taxes and duties, within the Contractual Delivery period on finished Goods and/or Services and Goods directly despatched to site from Supplier works shall be to L&T's account.

Statutory variation in GST mentioned above and any new taxes and duties, beyond the Contractual Delivery period on finished Goods and/or Services and Goods directly despatched to site from Suppliers works shall be to Supplier's account. Any other statutory variations shall be to Supplier's account.

Statutory variation in taxes & duties on raw material / components shall be to Supplier's account at all times.

Income tax / GST TDS shall be deducted from the Supplier Invoices / Claims and deposited with respective Govt. as and when applicable.

Statutory Approvals:

Unless otherwise specified, it shall be the Supplier's sole responsibility to obtain all approvals from any authority (except for CRZ clearance) required under any statute, rule or regulation of the Central or State Government concerned with the performance of the Order and/or the contractual Work. The application on behalf of the L&T for submission to relevant authorities along with copies of required certificates shall be prepared and submitted by the Supplier well ahead of time so that the actual construction/commissioning of the works is not delayed for want of the approval/inspection by the concerned authorities. The SUPPLIER shall arrange for the inspection of the works by the authorities and will undertake necessary coordination and liaison required and shall not be entitled to any extension of time for any delay in obtaining such approvals.

Any Goods and Services Tax (GST) liability arising in India on account of place of supply of goods and / or services deemed to be within India (as per GST provisions) shall be on account of the Supplier. If required, the Supplier will obtain GST registration in India and comply with all GST related requirements in India, including but not limited to provide GST registration certificate, issue of proper tax invoices, uploading of tax returns, and transfer of input tax credit to L&T etc.

Please refer Annexure I "GST Check List" to be ensured for generation of Invoice and Packing list in compliance with GST Act. However, it is sole responsibility of Supplier to ensure total compliance to applicable SGST / UTGST/ CGST Act, 2017 and corresponding GST rules.

Statutory approval (if any) including any type of permission for movement of ODC consignments from Supplier's works to Project site, shall be in Scope of Supplier. Supplier shall arrange such applicable approvals in advance so that actual movement of goods is not delayed for want of the approval/inspection by the concerned authorities.

2.40.3 Supplier shall comply to Tax collected at source (TCS) on Sale of Goods u/s 206C(1H) of Finance Act, 2020 and subsequent amendments. TCS shall form part of the invoice for sale of goods

3.00 Payment Terms

3.10 "10% of the Basic Order value (excluding taxes and duties) shall be released on fulfillment of below conditions:

- Submission of unconditional Purchase Order acceptance.

- Approval of Critical drawings / documents viz. PR, P&IDs and GA drawings by L&T / PMC in Code-2.

- Submission of Advance Bank Guarantee (@ no cost to BUYER) for advance of equivalent amount "

3.20 "10% of the Basic Order value (excluding taxes and duties) shall be released on fulfilment of below conditions:

- Receipt of major raw materials / Bought out Components at Supplier's Works

- Submission of Advance Bank Guarantee (@ no cost to BUYER) for advance of equivalent amount

- Approval of Billing Schedule

- L&T / OWNER / PMC Approval of FAT AND / OR SAT Procedures for establishing Guaranteed Parameters at Supplier Shop AND / OR Project Site

- Delivery of Foundation Templates as applicable

- Approval of Spares List (2 Years O&M Spares - SPIR Format, Erection & Commissioning Spares, Mandatory Spares). Format shall be provided by L&T.

Supplier shall submit the copy of the TPIA Material Identification & Inspection clearance reports as a backup confirming receipt and acceptance of materials"

"All Advance Milestone Payments shall be released on submission of Advance Bank Guarantee for advance for equivalent amount valid until the end of the Contractual Delivery Date Plus 3 months Plus 3 months claim period. Advance Bank Guarantee (ABG) shall be furnished as per L&T's format and from L&T approved banks.

In case delivery date is extended due to whatsoever reason, then Supplier shall extend the validity of ABG without any cost implication to L&T till expected delivery date plus claim period of 3 months.

In case partial delivery is done, the ABG value may be reduced by the Supplier after obtaining specific approval in writing from L&T"

3.30 65% of the Basic Order value shall be released after shipment (i.e. Lorry Receipt) on prorata basis as per scope of order, after settling L&T's entitlements of Order price discounts and adjustments if any, as mentioned elsewhere and on submission of following documents to L&T:

Continues..

L.C.: 11.09.2025 11:58:05



LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - II
Page No: 8 of 30

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

- # Signed Commercial Invoices (in Triplicate).
- # Original GST / Buyer's copy of Tax Invoice (2 Copies)
- # Copy of GST Registration Certificate (2 Copies)
- # Lorry Receipt/ Railway Receipt (2 Copies)
- # Packing List / delivery Challan.
- # Original Manufacturer Test Certificates duly endorsed by TPIA -4 Copies
- # Inspection Release Note by TPIA (2 Copies)
- # Dispatch Clearance in writing from L&T
- # Guarantee/Warranty Certificate stating that the equipment#s + spares + accessories supplied against the subject order are meeting the guarantee requirements of the P.O. no. XXXX and PR No. XXXX
- Rev XX (Latest revision of the approved PR to be mentioned)
- # General Compliance Certificates, issued by Supplier, stating that all terms and conditions of the purchase order until Ex Works shipment have been fully complied with
- # U-1 / U-2 form as per ASME and As-built drawings signed by AI
- # Copy of Email intimation sent to L&T for Insurance
- # Copy of e-way bill
- In case Performance Bank Guarantee as per L&T's format & from the approved banks as specified by L&T is not issued, 10% of the value of items shipped shall be kept on hold till PBG is received
- 3.40 Not used
- 3.50 10% of Basic Order value shall be released on submission of Technical document folder (in soft & hard) as per RFQ, acceptance of the same by L&T, and PBG extension for delay / extended delivery beyond original CDD as applicable.
- 3.60 Not used
- 3.70 5% of the Order value shall be released after Project commissioning and Performance Test Certificate of the Project. For the purpose of this payment, the date for Project Commissioning and Performance Test shall be reckoned as the date certified by L&T Site-in-charge in the Commissioning and Performance Test Certificate which shall be issued upon completion of all jobs, receipt of Final Bill from the Supplier and L&T receives Final Certificate from Owner/PMC, or six (6) months from the date of delivery of material, whichever occurs earlier.
- 3.80 All Advance and Retention Payments shall be made to Supplier within 30 Days from receipt of Original Invoice along with all the correct & complete documents specified above by Wire Transfer.
- 3.90 Despatch Payments shall be made to the Supplier within 90 days from receipt of Original invoice along with all the correct & complete documents specified above by Wire Transfer.
- 3.100 In case partial delivery is done, the ABG value may be reduced by the Supplier after obtaining specific approval in writing from L&T.
- 4.00 Price Discount:
- 4.10 "For delay in submission of documents/ drawings: In case of delay in submission of drawings/ documents (agreed as milestones), the Order value shall be discounted @ 0.5% for non-achievement of each milestone (irrespective of the extent of delay). Milestones shall be as follows :
- PR inputs - XX Weeks from LOI
- GAD - XX Weeks from LOI
- P&ID - XX Weeks from LOI
- Equipment Datasheet Curves - XX Weeks from LOI
- Motor / VFD Datasheet & Curves - XX Weeks from LOI
- ITP - XX Weeks from LOI
- In order to be considered as "submission" for the purpose of this provision, drawings and data submitted by Supplier must meet the Purchase Order requirements sufficiently to receive Buyers review "Code 1" (proceed) or "Code 2" (proceed, subject to acceptance & incorporation of comments) . Documents submitted by Supplier but which do not meet Buyer's minimum requirements will be returned with Buyer's "Code 3" (rejected / do not proceed) review code and are considered not received until revised and resubmitted in acceptable form to Buyer. "
- 4.20 For delay in delivery of material: In case of delay in supply beyond the Contractual Delivery Date, the price will be discounted @1% of the Order value (excluding taxes & duties) per week of delay or part thereof subject to a maximum of 10% of Order value (excluding taxes & duties)
- 4.30 "The total Price discount due to clause 4.1 and 4.2 above shall be limited to 10% of Order value.

It is further agreed above clause(s) shall not constitute a waiver of any rights of Buyer to damages or other remedies of Buyer under this Purchase Order or otherwise for Supplier's improper performance or default in performance of any other aspect of this Purchase Order.

Continue..

L.C.: 11.09.2025 11:58:05



LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - II
Page No: 9 of 30

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

It is agreed by the Parties that the amount corresponding to Price Discount, pursuant to Article 4.30, is genuine pre-estimate of the likely loss to Buyer as a result of Supplier's failure to complete the Work as per the Subcontract/PO Schedule and, as such, should not be considered to constitute a penalty under any applicable laws.

Should the Supplier fail to give effect to the imposition of Price Discount pursuant to Article 4.30, the same shall be payable by the Supplier on demand by Buyer. In the event of such failure by the Supplier, the Buyer reserves the right to recover / set off an amount equivalent to the applicable Price Discount out of the sums payable to the Supplier or from the Guarantees or Deposits furnished by the Supplier or the Retention Money retained from the Invoices of the Supplier.

Any Extra ordinary delay (beyond 10 weeks from CDD) not attributable to L&T will be considered very seriously and Supplier may be kept under Holiday list for any subsequent enquiries/ RFQ for a period of not less than three years."

4.40 Non-fulfilment of Utility Guarantee parameters (As Applicable):

Without prejudice to any other reduction, discount or adjustment in price to which the L&T is entitled to, if the actual consumption of Power /Cooling Water/ MP Steam/LP Steam/ Fuel Gas for the Equipment/Packages exceeds and / or actual generation of MP Steam by Equipment/packages is lower than the Stipulated guaranteed figures of the respective utilities furnished by the SUPPLIER in its offer for the Equipment/Packages, L&T shall be entitled to an adjustment in the lump sum price by way of discount as follows. No benefit shall be passed on to the supplier in case the utility consumption demonstrated by the supplier during guarantee test/s is/are less than the guaranteed figures quoted in the bid. The reduction in price shall be in addition to any price reduction mentioned elsewhere in this document / PO.

A. Reduction in price with respect to power consumption (As Applicable)

All items mentioned above shall be performance tested at Supplier works and performance demonstrated. Further, for all the other power consuming equipment /packages as defined in this section, Supplier is required to establish the performance of the equipment / packages during PGTR at site. In case the total KW consumed by the equipment / packages exceeds the stipulated guaranteed value by more than 4%, the subject equipment/Package shall be rejected.

However for excess power (kW) consumed over and above the guaranteed/quoted KW to a maximum of four (4%) percent, reduction in overall prices shall be applicable for excess power consumption as per the following formula on extra Power consumption of the equipment & Packages as identified in this section.

"Reduction in price for Excess Power Consumption CPC= (KWREA- KWREQ) x CP x 8000 x DF

KWREQ = Guaranteed Power (kW) of the identified Equipment quoted by the Supplier

KWREA = Actual Power Consumption of the identified equipment/package (KW) as observed during Performance Guarantee test run (PGTR)

DF (Discount Factor)= 4.02

CP = Cost of Electric Power INR 7.35 per kWh

8000= Number of operating hours per year."

Power consumption shall be measured at motor terminal.

B. Reduction in price for Steam Consumption (As Applicable)

During performance tests MP & LP Steam Net Consumption (MT/Hr) by the Equipment/package exceeds the stipulated guaranteed value by more than 5%, the subject equipment/package shall be rejected.

However for excess steam consumption over and above the guaranteed Net steam consumption up to a maximum of 5% (five percent), reduction shall be applicable for excess total steam consumption as per the following formula:

"CSteam con = CMPSteam con + CLPSteam con

i. CMPSteam con = (SMEPAC -SMEPQC) x CSMP x 8000 x DF

SMEPAC = Actual MP steam Consumption of the identified equipment/packages (MT/hr) as observed during Performance Guarantee test run.

SMEPQC = Guaranteed MP Steam Consumption (MT/Hr) quoted by Supplier.

CSMP = Price of MP Steam INR 2143 per MT

DF (Discount Factor)=4.02

8000= Number of operating hours per year."

"CLPSteam con = (SLEPAC -SLEPQC) x CSLP x 8000 x DF

SLEPAC = Actual LP steam Consumption in the identified equipment/packages (MT/hr) as observed during Performance Guarantee test run.

SLEPQC = Guaranteed LP Steam Consumption (MT/Hr) quoted by Supplier.

CSLP = Price of LP Steam INR 1990 per MT

DF (Discount Factor) = 4.02

8000 = Number of operating hours per year.

Continue..

L.C.: 11.09.2025 11:58:05



LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - II
Page No: 10 of 30

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

Steam consumption shall be measured individually for each equipment."

C. Reduction in price for excess Cooling Water Consumption (As Applicable)

For all the Cooling Water Consumers (as specified in the RFQ), in case during performance tests the Cooling Water consumed (M3/Hr) by the equipment/package exceeds the stipulated guaranteed value by more than 5%, the subject equipment /systems/Packages shall be rejected.

However for excess Cooling Water Consumption over and above the guaranteed Cooling Water consumption up to a maximum of 5% (five percent), reduction shall be applicable for excess Cooling water consumption as per the following formula.

"Excess Cooling water consumption $CC_{Cooling\ water} = (ECCWA - CCWQ) \times CCW \times 8000 \times DF$

$ECCWQ$ = Total Cooling Water Consumption (M3/Hr) of the Equipment/package as quoted by the Supplier

$ECCWA$ = Actual Cooling Water Consumption (M3/Hr) of the Equipment/Package observed during Performance Guarantee test run

8000 = Number of operating hours per year.

CCW = Cost of Cooling water is INR 1.25 per M3.

DF (Discount Factor) = 4.02 "

Cooling water shall be measured individually for each applicable Cooling water users.

In the event of deviation with respect to guarantees as specified above, Supplier is required to rectify the same without any commercial/technical implication. In case of Supplier is not able to rectify the same, equipment(s) not meeting the guarantees shall be rejected and required to be replaced by Supplier without any time and cost implication to L&T.

D. Additional Guarantees with respect to Equipment Performance

Supplier during the performance of contract is required to carry out hydraulics check and required to guarantee the hydraulics for meeting the throughput & Specification requirement as defined in the MR to meet the hydraulic guarantee of the supplied Equipment / package for both Design Case-1 & Case-2 (including SOR & EOR) as specified in MR.

E. Repair / Rectification / Modification

In case the shortfall in the guaranteed parameters, Supplier may carry out necessary repair / rectification / modification / replacement at his own cost and through his own agency on urgent basis and complete the repair / rectification / modification / replacement within a maximum period of three months to improve the supplied systems to prove guaranteed parameters in the final performance test.

Should the systems continue to underperform, reduction in price shall be leviable after this as specified for shortfall in guaranteed parameters above.

However, if the shortfall in guaranteed parameters is beyond the rejection parameters, Supplier and L&T will mutually agree on the method and possibilities of rectification and if the plant is still not capable of performing within the acceptance limits, it will be L&T's decision with respect to rejection or penalties, which shall be final and binding on the Supplier.

F. Test Run Requirements

Detailed procedure for PGTR shall be discussed with Supplier and finalized mutually, however for field tested equipment/Packages the individual utility consumptions shall be recorded jointly for a period of 72 hours continuous run of the unit. After the completion of successful performance test, average consumption of individual utilities will be worked out. These shall be considered as actual consumption for computation of price adjustment.

All instruments required, if any, to establish the performance are within Supplier's scope of work / supply at no extra cost to OWNER.

In an event that unit operates in a mode / feed case different than specified above or at a throughput lower than design throughput, the utility numbers shall be prorated for reduced Capacity for the purpose of guarantee in mutual discussion with PMC/OWNER.

4.50 Back-charges for Demurrages / Cancellation charges :

ODC/OWC consignments: Supplier shall inform the date for shipment (complete / partial) along with transportation drawings and packing list (Weights and overall dimensions for ODC/OWC) at least six months before the shipment date in order for L&T to finalize the shipping contract, take statutory approvals for movement of ODC consignments from supplier's works to Project site, construction of necessary by-passes, etc. Supplier shall then confirm the firm date of shipment one month in advance for L&T to book the ship / barge and the axles, as applicable and for completing all procedures for further movement to site.

For all other consignments: Supplier shall confirm the firm date of shipment one month in advance for L&T to make the necessary transportation arrangements.

In case the cargo is not ready for shipment as confirmed, any demurrages / detention / cancellation charges, approval cost, etc shall be back-charged to the Supplier at actuals and shall be adjusted from the dispatch payment milestone.

5.00 Delivery:

5.10 Timely delivery is essence of this Purchase Order.

5.20 "Contractual Delivery Date (CDD) is on Ex-works duly packed and loaded onto transporters vehicle, (INCOTERMS 2020) basis.

Delivery is inclusive of time required for acceptance of equipment / item and Release/ Issue of IRN after completion of Inspection activities by Inspection by Third Party Inspection Agency and/or L&T and/or PMC and/or OWNER as per L&T/OWNER approved Inspection Test Plan (ITP)."

Continue..

L.C.: 11.09.2025 11:58:05



LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - II
Page No: 11 of 30

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

- 5.30 "The date of Lorry Receipt shall be reckoned as the date on which the delivery has been effected for delivery on Ex-works basis. The date recorded as "Site Receipt Date" (by the Stores In-charge of L&T at Site) shall be reckoned as the date on which the delivery has been effected for delivery of DAP / DDP Project site basis"
- 5.40 Effective Date of the Order shall be the date of the Order by L&T by way of LOI or P.O., (whichever is earlier), unless specified otherwise.
- 5.50 The number of despatchable units with dimensions & weight (after packing) shall be clearly specified in the offer. Maximum pre-fabrication shall be carried out at Supplier / Supplier's sub-Supplier's works to minimize Site work. The extent of Site fabrication to complete the equipment shall be specified in the offer. All category of spares (i.e. Erection & commissioning, Mandatory, Critical, Capital, 2 years operation, as applicable) shall be packed separately with item wise packing list.
- 5.60 If the SUPPLIER fails to deliver the GOODS within the Contractual Delivery Date due to reasons attributable to the SUPPLIER, the L&T shall have the right to cause SUPPLIER to ship the GOODS by the most expeditious means of transportation, such as air freight, at sole risk, cost and expense of the SUPPLIER.
- 5.70 Supplier shall submit draft Packing List showing all despatchable units with weight & dimensions before 12 weeks# ex-works readiness. Supplier to provide packing list for mandatory spares separately. Box for spares should be separate during dispatch. Any partial supplies of spares is not acceptable
- 5.80 List of inputs required by Supplier to meet the Contractual obligations along with the "Time Schedule" of requirement will be submitted during the Kick-off meeting / within 2 weeks of receipt of LOI/PO whichever is earlier.
- 5.90 Detailed "Delivery Schedule" (Bar Chart) showing Engineering, Procurement, Manufacture, Shop Inspection, Transportation, etc. will be furnished within 2 weeks from the LOI/PO mentioned in PR (Code-I approved by PMC/OWNER). The cost of all such visits by Supplier is included in their price. No separate per diem rate shall be paid to Supplier for such visit.
- 5.11 "For all items except spares - L&T shall, within 16 Weeks of receipt of material at Site, revert regarding any short Supplies w.r.t. Packing List.
For Spares: - L&T shall revert regarding any short supplies during handover of spares to customer.
Supplier shall immediately supply the short supplied items on DDP Site basis with no Price and time implication to L&T."
- 5.12 Supplier shall depute their representative to Site, at least once on a mutually agreed date for reconciliation of all materials dispatched, in order to ensure completeness of the items as per scope mentioned in PR (Code-I approved by PMC/OWNER). The cost of all such visits by Supplier is included in their price. No separate per diem rate shall be paid to Supplier for such visit.
- 5.13 Delay and Recovery Plan (Schedule Recovery)
- 5.13.1 If, in Buyer's sole opinion, the Supplier's performance or progress is inadequate, deficient, or unsatisfactory or the Supplier may fail to achieve any of the milestone dates, Buyer may (but is not obliged to) notify the Supplier of such inadequacy, deficiency, or inability ("Delay Notice").
- 5.13.2 Upon receipt of a Delay Notice, the Supplier must, within seven (7) days or any other period stated in the Delay Notice, submit to Buyer a recovery plan.
- 5.13.3 "The Supplier shall prepare and submit a detailed plan ("Recovery Plan") at its own risk and cost setting out the various measures that it intends to implement in order to recover the delay to the works and milestone dates and eliminate the causes and events which are resulting in such delay, inadequacy, deficiency, or failure, and shall include, but not limited to the following:
- (a) mobilization of additional equipment and personnel;
 - (b) working overtime, increasing the number of shifts or work days or both;
 - (c) expediting delivery of materials by airlifting;
 - (d) enhancing the manufacturing and fabrication capacity;
 - (e) substitution of higher-grade materials or specifications (with prior written authorization of Buyer)."
- 5.13.4 The Recovery Plan shall be subject to Buyer's approval and acceptance and shall be implemented at the Supplier's sole cost.
- 5.13.5 In the event the Supplier fails to submit the Recovery Plan or the submitted Recovery Plan is not acceptable to the Buyer, then the Supplier must, at his sole risk, cost, and expense, implement any remedial measures Buyer may require or instruct.
- 5.13.6 If, in L&T's sole opinion, Supplier's performance or progress is inadequate, deficient, and/or unsatisfactory and the Supplier may fail to achieve any or all of the milestone dates, L&T may depute its own resources at Supplier's Group for expediting purpose. It shall be carried out in consultation with Supplier. Any and all cost incurred by L&T in deputing its resources shall be to Supplier's account and shall be paid by Supplier to L&T.
- 5.13.7 At any time, if the Buyer is of the opinion that the Recovery Plan or any other remedial measures as instructed by the Buyer are not being implemented or not being followed by the Supplier to the satisfaction of the Buyer, the Buyer is free to take all such actions or avail all such rights and remedies available to him under the Purchase Order including but not limited to Step-in, or getting the Work done by third parties Termination for default as per Clause 11.10.2 etc.
- 6.00 Performance Bank Guarantee:
- 6.10 Performance Bank Guarantee for 10% of the basic Order value (excluding taxes & duties) (@ no cost to BUYER) securing the performance of the Supplier as per Order terms & conditions, including but not limited to execution of the Order, delivery, design, material, quality, workmanship, commissioning and satisfactory performance of the Equipment / Package throughout the Defect Liability period (DLP) shall be submitted.
- 6.20 The PBG shall be furnished within one month from the date of LOI or PO, whichever is earlier
- 6.30 Performance Bank Guarantee (PBG) shall be furnished as per L&T's format (Annexure B) and from the Banks approved by L&T. The Performance Bank Guarantee shall be valid until the completion

Continued..

L.C.: 11.09.2025 11:58:05



LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - II
Page No: 12 of 30

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

of Defect liability period i.e. 31-Dec-2028 or 24 months from the date of delivery whichever is later with a further claim period of 3 Months as specified in the Format of PBG
6.40 The Bank Guarantee(s) shall be extended by supplier at no cost implication to L&T by further period(s) as the L&T may require until performance of all the Supplier's obligations under the PO/Contract.
6.50 "ABGs and PBGs shall be issued as per L&Ts format as attached at Annexure-B and Annexure-C. BGs shall be issued from Indian Branch of one of the Banks listed in L&Ts format. BGs issued by other Banks will not be accepted.

Bidders are requested to ensure that the BG confirmation is transmitted by their bank only in IFN 760 format through SFMS (Structured Financial Messaging system) to facilitate faster processing of the BG's. The procedure / requirements is enlisted herein below for reference:

- a) While making the BG application, Bidder to inform their Bank to send BG confirmation only through IFN 760 (Guarantee) vide SFMS to our Bank.
- b) IFN 760 (Guarantee) should contain the following details: BG No, BG Amount, BG Type, date of issuance, Expiry date, Name of BG Applicant & Beneficiary's name and address.
- c) Bidder should obtain a copy of IFN 760 sent through SFMS by their bank and attach the same with the Original hardcopy of BG and submit the same to L&T.

The details of our bank to which SFMS confirmation has to be sent is as under:

Name of Beneficiary # Larsen & Toubro Limited

Bank Name: ICICI BANK LIMITED

IFSC Code: ICIC0000009

Bank Address: 110, First Floor, Nungambakkam High Road, Nungambakkam, Chennai # 600034"

7.00 "Insurance:

Insurance of the items up to loading on Transporter Vehicle as per delivery basis shall be in Supplier's scope.

Transit Insurance of items from dispatch point up to Project Site shall be in L&T's scope as per below:

Clause 7.0

POLICY NO.:5001004424P121101475 (SCE) / 5001002124P121101476 (MCE)

Policy issued by UNITED INDIA INSURANCE COMPANY LIMITED

7.10 "L&T / OWNER shall arrange the Marine / Transit Insurance for the Project Supplies. Supplier shall ensure that the Policy number is clearly written on the dispatch documents. Supplier shall intimate L&T following details of the dispatch within 24 hours of dispatch.

- Purchase Order No. and Date

- Invoice No. & Date

- LR No. and Date / BL No. and Date/AWB No. and Date

- Name of Transporter / Freight Forwarder

- Place of Works

- Value of shipment

- Number of Packaged cases and gross weight & Net weight, Gross Volume

- Shipment from & to"

In case the Supplier fails to communicate the above information, Supplier will be liable to replace/repair the goods at his cost, in case of damage during transit. Supplier shall provide all the support in case of a claim under the insurance.

Supplier shall provide all the support in case of a claim under the insurance.

8.00 Shipment Basis:

8.10 Shipment basis shall be on Ex-works duly packed and loaded onto transporters vehicle, (INCOTERMS 2020) basis.

8.20 Transfer of Property shall take place on exchange of negotiable documents required at the time of dispatch

9.00 General Conditions of Purchase Order

9.10 Conformance to Engineering Specifications / "Supplier-List" / PTR:

9.10.1 All Materials / items / equipment shall be supplied strictly as per MR, except for mutually agreed deviations duly recorded & accepted by L&T prior to placement of Purchase Order. All other deviations, clarifications etc. stand withdrawn.

Continue..

L.C.: 11.09.2025 11:58:05



LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - II
Page No: 13 of 30

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

9.10.2 All Materials / sub components shall be procured only from Suppliers as per OWNER / PMC "Project Specific Supplier list" and sub-Supplier list agreed pre-order, if any.

9.10.3 Any Material Sourced from a Supplier Outside OWNER/PMC issued "Project Specific Approved Supplier-List" and sub-Supplier List agreed pre-order, if any, shall stand rejected without any commercial implication to L&T.

Suppliers on Owner / PMC "Holiday List" shall not be considered for ordering. Names of such Suppliers who are put on Owner / PMC "Holiday List" subsequent to Supplier approval at bidding stage shall be informed to the Supplier at any stage of the project. Supplier shall comply with this requirement without any time and cost implication to the L&T / PMC / Owner.

"For items not covered in the OWNER / PMC issued "Project Specific Approved Supplier list", the proposed Supplier list shall be approved by Purchaser / Owner / PMC prior to placement of order by Supplier. Supplier shall submit following with necessary documents for such identified items for Purchaser/ Owner / PMC review / approval

a) Complete List of such items / components along with proposed Suppliers

b) PTR of sub Suppliers for supplies made to OWNER in last 5 years. PTR to include details as item, MOC, project, End user name, year of supply and capacity/ dimensions, etc.

c) Any other data / document as requested by Purchase / Owner / PMC.

Above data to be submitted by Supplier within 2 weeks from the date of L&T LOI / PO (whichever is earlier). "

Non-acceptance of any proposed Supplier due to any reasons whatsoever shall not be a cause of schedule and cost implication. Purchaser/ Owner / PMC shall be the final authority for the approval of proposed Suppliers. PMC / Owner / L&T decision shall be accepted by Supplier without any time and cost implication to L&T.

9.10.4 Proven Track Record (PTR) / Supplier Qualification Criteria (VQC) approval (as applicable) from OWNER shall be the responsibility of the Supplier without any Price and / or Delivery implications to L&T. L&T shall submit the PTR/VQC to OWNER. Supplier's competent representative shall attend across the-table discussions with OWNER for approval. In case of non-acceptance by OWNER, L&T reserves the right to cancel the Order without any Price implications to L&T.

9.10.5 Valid Enlistment of the applicable items as per this order with OWNER / PMC shall be the responsibility of the Supplier. In case of non-availability of valid enlistment from OWNER/PMC, L&T reserves the right to cancel the Order without any Price implications to L&T.

9.20 Drawings/Documents:

9.20.1 Supplier shall submit all drawings/documents for approval in soft copy through L&T's POMS as per the time schedule specified in Supplier Document Requirement (SDR) of MR. Draft DCI in required format to be submitted at least 5 days in advance from KOM date. In case KOM is not applicable, Draft DCI in required format to be submitted within 10 days from LOI/PO whichever is earlier. The SDR list shall be populated in the SDR format provided as per RFQ. L&T / PMC / OWNER will approve / comment on the critical drawings/documents within Three weeks from the receipt. For the remaining drawings/ documents, the duration for submission and review / approval shall be mutually agreed during the KO meeting. Any Change in technical specification (for supplier designed equipment / package) shall not be permitted without approval of OWNER / PMC / Licensor / L&T.

9.20.2 Supplier shall get the designs / drawings reviewed & approved by L&T/ PMC / OWNER. The comments shall be incorporated and implemented without any Price and / or Delivery implications to L&T. Supplier shall be responsible for any delay in approval (for reasons attributable to Supplier), and shall not be eligible for any Delivery extension on this account.

9.20.3 Supplier shall ensure re-submission of drawings/ documents after incorporation of L&T's / PMC / OWNER's comments within 10 days from receipt of comments (for first re-submission) and within 7 days for subsequent re-submissions. Supplier shall also ensure that the above documents/ drawings are complete in all respects. In case presence of Supplier is necessary for approval of drawings / documents / clarifications by L&T/ PMC / OWNER, Supplier shall deploy competent personnel and facilitate early approvals/clarifications as required by L&T/ PMC / OWNER at no extra Delivery and / or Price implications to L&T.

Supplier shall submit soft copy of final QC dossier documents within two (2) weeks of dispatch of an equipment. QC dossier shall contain all stage and final inspection reports including Approved QA-QC procedures, Stage inspections and Final inspection reports, Material Certifications, NDT Records, Welding Procedures, Weld Maps, Manufacturing Reports, Factory Test Records (Equipment/ Piping), Statutory Certificate and Drawings etc

9.20.4 Final Documentation as per SDR in RFQ will be submitted in requisite number of copies (both Hard & Soft) failing which the Order will be deemed to be incomplete. Index for final documentation shall be submitted 4 weeks prior to dispatch for approval. Comments from L&T / PMC / OWNER shall be incorporated and re-submitted within 1 week from receipt of comments.

9.20.5 Soft copy of final documents (based on approved index) shall be submitted within 1 month from dispatch for approval. After approval of the soft copy the final documents in soft copies and hard copies as mentioned in MR /RFQ shall be couriered to the address informed by L&T.

9.30 Inspection, Testing and Quality Control:

9.30.1 Supplier confirms acceptance to Indicative Inspection Test Plan (IITP) sent along with the RFQ. In case L&T does not furnish an IITP, Supplier shall furnish ITP along with the offer, as per Inspection requirements specified in the MR

9.30.2 After award of Order, detailed Inspection Test Plan (ITP)/ Quality Control Plan (QCP) shall be, submitted for approval to L&T within three weeks from the date of LOI/PO. L&T / PMC / OWNER shall approve / give comments within three weeks of receipt. Supplier to re submit all quality documents after incorporation of L&T's comments within 10 days. Supplier shall submit all ITP/Procedures for approval through L&T's web based portal (POMS) as per the agreed schedule specified in Supplier Document Requirement (VDR) or MR " L&T/PMC/Owner reserves the right for inspection visits and Quality Audits at Supplier/ Sub Suppliers place/ works wherever felt necessary. Supplier to extend necessary support.

9.30.3 Obtaining approval of ITP from L&T / PMC / OWNER shall be Supplier's responsibility during execution without any price and/or delivery implications to L&T. All comments shall be incorporated

Continue..

L.C.: 11.09.2025 11:58:05



LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - II
Page No: 14 of 30

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

and implemented without any price and / or delivery implications to L&T.

9.30.4 Inspection of items shall be by TPIA / L&T / PMC / OWNER as per approved QCP/ITP. Co-ordination for timely inspection by TPIA shall be Supplier's responsibility. Failure to do so, shall not be a reason for delivery extension.

9.30.5 Failure to inspect goods or payment for goods or acceptance of goods shall in no way impair L&T's right to reject non-conforming goods or to avail of any other remedies to which L&T may be entitled. Any inspection and acceptance thereof, shall not relieve the Supplier of their contractual obligations.

Supplier confirms acceptance to L&T's Supplier's Shop Inspection Co-ordination Procedure. (Annexure M).

9.30.6 TPIA charges for re-inspection due to rejection, incomplete offering, non-readiness etc. for the reasons attributable to Supplier Group shall be to Supplier's account.

9.30.7 Supplier to offer sufficient sizable quantity for Inspection by TPIA / L&T / PMC / Owner (to optimize inspection visit), as applicable as per approved ITP.

Supplier shall raise Inspection Notification through L&T's web based portal (POMS) in line with advance notification period as specified in Supplier Shop Inspection Procedure or as mutually agreed.

In case of abortive visit of TPIA/ PMC/ OWNER due to non-readiness of item for inspection/ cancellation of Inspection Notification without sufficient time as per agreed contract, charges for the same shall be back charged to vendor.

"For any witness and Hold activity as per approved ITP, Supplier cannot proceed for further activity without inspection clearance from LTEH and LTEH TPIA.

TPIA will be available for inspection in normal working day/working hour. Any inspection call/ Visit on weekends/ holidays or extra working hours shall be based on the availability of inspector. Any delays caused due to non-availability of TPIA for aforementioned reasons cannot be claimed for delivery extension.

Supplier to ensure availability of L&T/ PMC/ OWNER approved prerequisites documents for inspection at point of inspection, including sub Supplier shop.

"Participate in inspection activities through VC/ use of Remote Inspection Technique in lieu of physical presence at Supplier/ Sub-Supplier premises shall be at the sole discretion of L&T/ PMC / OWNER.

Participation in remote inspection by L&T/ PMC/ OWNER will be irrespective of TPIA's physical presence at Supplier/ Sub-#Suppliers works.

Supplier / Sub-Supplier should be equipped with IT infrastructure for conducting such remote inspection"

9.30.8 Vendor Inspection Documents

Vendor shall upload MTC and necessary backup document duly endorsed by L&T TPIA in L&T's web portal (POMS) against inspection notification after completion of inspection activities.

Vendor located within India shall submit original hardcopies of MTCs with necessary backup (IRN wise) to L&T QA QC within 1 Week after getting Quality Clearance.

9.40 Billing Schedule / Billing Breakup:

9.40.1 For package items involving multiple dispatches / multiple locations Billing Schedule / Billing Break-up indicating the place of dispatch shall be submitted by the Supplier along with LOI acceptance for approval by L&T and generation of the Purchase Order. Final billing break-up for dispatches shall be clearly mention individual dispatch items with clear unit of measure & quantities. . The generic terms like "Lot", "Set" as unit of measure shall not be acceptable. This shall be subject to L&T's approval and Final Billing break-up to be submitted at least three (3) months prior to commencement of dispatch.

9.50 Progress Reports:

9.50.1 Supplier shall submit, within 2 weeks from the date of LOI/PO, bar chart/S-curve showing start and finish dates of various activities. Updated progress reports shall be submitted on weekly and monthly basis as per L&T's format. After start of manufacturing / production progress report reflecting the updated manufacturing status to be submitted on weekly basis.

9.50.2 Supplier shall provide and/or upload required information and/or pictures and/or data by accessing POMS. The information and/or pictures and/or data (like planned/forecast/actual dates, manufacturing/inspection stages, unpriced Purchase orders issued by Supplier, certain information for logistics arrangement, so on and so forth) to be provided by filling pre-defined and/or mutually agreed MS Excel based templates/formats for facilitating Monitoring, Progress calculation & monitoring, related report generation from POMS for information.

L&T / PMC / OWNER's representative reserves the right to visit Supplier's and/or Supplier Group's premises and/or facilities and/or works to review, assess physical progress, expedite etc. Supplier shall ensure and provide free access during normal working hours (and extended working hours, if required) at Supplier's and/or Supplier Group's premises and/or facilities and/or works. Such expediting shall, in no way, relieve the Supplier of their delivery obligations under the terms of the Order. Supplier shall also provide unpriced copies of Purchase Orders, for major parts & components placed by Supplier and/or Supplier Group to support progress calculated & reported as part of progress report. Cut-off date and submission date for monthly and/or weekly reports shall be defined in the Kickoff meeting.

"Supplier shall convey all applicable Purchase Order requirements to sub-Suppliers. All sub-orders shall show the following statement:

"THIS ORDER MAY BE SUBJECT TO INSPECTION, EXPEDITING AND/OR AUDITING BY BUYER AND/OR OWNER WHOSE REPRESENTATIVES SHALL BE ENTITLED TO ENTER THE ADMINISTRATIVE AND PRODUCTION FACILITIES OF SUB-SUPPLIER'S PREMISES of any tier ""."

Upon request copies of sub-order(s) shall be submitted to L&T. Copies may be unpriced but should clearly show the description of material or equipment involved, agreed delivery date(s) and evidence of

Continued..

L.C.: 11.09.2025 11:58:05



LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - II
Page No: 15 of 30

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

acceptance of the sub-order by the sub-Supplier.

9.50.3 Kickoff Meeting shall be carried out at L&T's offices. Supplier's Engineering, Quality & Project Manager and sales personal involved in bidding stage shall be present (as may be required by L&T/OWNER). Supplier to ensure presence of key representatives of their Critical / KEY sub-Suppliers as may be required for items falling on critical path for order execution.

9.50.4 Detailed organization chart with contact details (E-mail, Hand-phone numbers & direct numbers) of all key personnel viz. Project Manager, Engineering Manager, Quality Manager & Production / Manufacturing manager and Service Team for Site activities to be submitted by Supplier in KOM.

9.50.5 Supplier shall provide CV of the Project manager who shall be responsible for execution of the order. L&T reserve the right for interaction with the proposed project manager and will reserve the right to accept or reject the CV. In case of rejection, Supplier shall propose an alternate candidate for L&T approval.

9.50.6 All Review meetings (Design, document review and approval, progress review, etc.) shall be held at L&T / PMC / OWNER's office as may be required by L&T/ OWNER. Supplier and their representative including sub-Suppliers shall attend all such meetings without any cost implication to L&T / PMC /Owner.

9.50.7 Project sponsors (members of management that sponsor the Project) from "L&T" and "Supplier" shall attend the meetings once in two months as minimum or frequency as felt necessary.

9.50.8 Progress measurement weightages & Milestones shall be discussed with supplier during KOM and accordingly vendor to submit the progress reports

9.60 Dispatch clearance:

9.60.1 "Supplier shall submit copy of IRN issued by TPIA, Inspection reports and other QA documents duly reviewed / approved by TPIA & any other inspection agencies as per approved ITP for dispatch clearance by L&T. Goods / individual items shall be dispatched only after issue of Code-I approval (approved with no comments) of PR and drawings/ documents by L&T / PMC / OWNER

Items shall not be dispatched by Supplier without L&T's written dispatch clearance."

9.70 Billing Instructions:

9.70.1 The Billing Instructions (including Formats of Invoice, Packing List, and LR) shall be forwarded to the Supplier along with the Purchase Order or along with dispatch instructions. Supplier shall prepare specimen of these documents TWO weeks prior to dispatch and submit the same to L&T for approval. If the Billing Instructions are not strictly followed, L&T shall withhold the amount payable till such time the corrected documents are submitted.

9.70.2 Advance Dispatch Documents:

"Supplier shall forward to L&T copies of the following documents within 48 hours of dispatch by fax/e-mail: --

- Commercial Invoices
 - GST Invoice
 - Lorry Receipt
 - Packing List duly approved by Supplier.
 - Inspection Release Note issued by TPIA (PMC Endorsed # as applicable)
 - Manufacturer's Certificate of Inspection for Shipment issued by Supplier, Stating that all terms and conditions of the Purchase Order / Contract until Ex works shipment have been fully complied"
- "Supplier shall attach / send following documents along with consignment : GST invoice (Transporter copy)

1) E-way / Road permit bill where necessary

2) Packing list with proper quantity and HSN codes

E-way Bill shall be in Supplier's Scope."

9.80 Transportation:

9.80.1 If transportation is in Supplier's scope, items shall be dispatched on "Door-Delivery and Freight Pre-paid basis". Goods shall be sent on full truckload basis only. Prior permission of L&T shall be taken for dispatch on Part-Load basis. Retail booking or Transshipment is not permitted. Under no circumstances, consignment shall be dispatched on #delivery against consignee copy. Items should not be dispatched in Shipper's / Supplier's own container.

Currently Entry Permits are not required. However if required, L&T shall provide the required Entry Permits for supplies (meant for permanent incorporation into the Project) made to site. Supplier shall dispatch goods only after receipt of the same. Supplier/ transporter shall mention the Form No. on Invoice and LR. The Supplier shall furnish reconciliation of Road Permits issued to them along with final Bill. Supplier shall issue necessary way bill / e-way bill as and when goods are dispatched from Supplier's works / site.

9.90 Damage to items in Transit:

9.90.1 In case the consignment has met with an accident in transit and/or the item(s) are received by L&T in damaged condition at the Site, it shall notify the same to the Supplier and Supplier shall send competent representative immediately to Site / accident Site as required for assessing the damage so that the damaged components / parts can be re-Ordered. Any other documents Support as required by Insurance company / L&T/ OWNER will be furnished by Supplier. Supplier shall arrange to obtain the #Damage Certificate# for the value declared by Buyer and all other documents such as first information report (FIR) etc. from the transporter for claiming / settlement of insurance claims.

10.00 Packing:

Continue..

L.C.: 11.09.2025 11:58:05



LARSEN & TOUBRO

LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - II
Page No: 16 of 30

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

10.10 Supplier shall adhere to Approved Packing & Marking Instructions. (Annexure-D)

The Supplier wherever applicable, shall, after proper painting, pack and crate all materials for shipment in a manner suitable for export to a tropical, humid climate in accordance with internationally accepted export practices and in such a manner so as to protect them from damage and deterioration in transit by road, rail and/or sea and during storage at the Site till the time of erection. Without prejudice to any other liabilities or obligations of the Supplier, the Supplier shall be responsible for all damage(s) to the materials due to improper packing. Depending on their type, goods are to be protected against both mechanical damage (shocks, rupture, breakage, loss) and corrosion (moisture, rain, salty atmosphere, sand, etc.). All the items for this Project shall be shrink wrapped. All packing materials will be considered non-returnable.

Should L&T, OWNER or any of its representatives incur any additional costs in rectification works due to a failure of the Goods, rectification work of damage(s) due to improper packaging or documentation to conform to the requirements of the Purchase Order, L&T shall back charge such costs to Supplier and shall deduct such amounts from unpaid amounts owed to Supplier.

10.20 Packing lists shall be reviewed and endorsed by supplier prior to the dispatch. All short Supplies shall be listed separately & communicated to L&T by supplier immediately upon dispatch along with the dispatch plan of the short supplied items.

10.30 Purchase Order No. and P.O. Sr. No. shall be mentioned in all the commercial documents like Packing lists, Invoices etc. Failure to do so shall result in returning of documents to the Supplier and delay in payments.

10.40 Supplier shall submit lashing/ loading scheme to L&T for approval for ODC consignments, if applicable. L&T's Logistics Engineer reserves the right for inspection prior to dispatch of the consignment at the loading point.

10.50 Supplier to pack the Start up / Erection & Commissioning Spares, 2 years# operating spares and Special Tools & Tackles in separate wooden boxes.

10.60 Supplier shall submit, "Transportation Methodology" which includes, but not limited to the following at least five months prior to Contractual Delivery Date:

- Protection arrangements for Internals to avoid the damage during multimodal transportation up to Project Sites
- Lifting & loading plans at Supplier works for loading the cargo on Axle
- Transportation Sketch showing Overall Length, Width, Height, Weight & Three Dimensional CG Location, Saddles locations, Lifting and lashing Points
- Transportation Loading diagram on Hydraulic Axles & marching plan from Fabrication Area to Jetty
- Supplier to provide required Jetty to LSP free of Cost.
- Special requirements for unloading at on Barge & Roll-off at Jetty and subsequent transportation to Site etc.
- Design and fabrication drawing for Stools (Pedestals) for Saddles for off-loading on stools on barge as well as while off-loading the equipment at site.
- Scope of Stools to be provided while off-loading the equipment at Site.
- Saddle Width and Length to be discussed with the Nominated LSP and Supplier to arrange for the design accordingly to avoid any issue while off-loading the cargo on barge and further movement of the cargo to Project Site.
- Transportation Drawing should also have the details for the point load for individual saddle so that LSP can arrange for the stability calculation on barge and axle.
- Supplier to arrange for the individual Invoice, Packing List and Certificate of Origin (COO) for shipment equipment wise.
- Supplier to arrange for the separate Invoice, Packing list for the cargo such as loose items, spares and accessories which will be shipped or transporter separately.
- Supplier to arrange for the Lifting Diagram for individual packages based on which LSP shall discuss with shipping line for loading pattern for cargo loading on vessel.

Supplier shall design and provide the adequate number of transportation saddles for transportation by Multimodal way - road & barge transportation.

Supplier will check adequacy of lashing Supplier shall submit the above documents at least six months prior to dispatch to L&T & Insurance Company for approval. L&T or Insurance Company reserves the right to comment and the comments will be incorporated without any time & cost to L&T prior to the dispatch of the consignment. L&T reserve the right to inspect the transportation arrangement before dispatch

11.00 Special Conditions of Purchase Order

11.10 Deviations to the RFQ Specifications:

11.10.1 Deviations shall not be acceptable after release of P.O.

11.10.2 If unavoidable, same will be processed as follows:

- Supplier to submit the same to L&T along with all backups for approval (format as per OWNER/ PMC standard).

- Responsibility of processing the request and acceptance thereafter by OWNER as applicable shall rest with L&T. In case the deviation is acceptable there shall be no cost and time implications (in case what is being offered is superior to the bid specifications in terms of cost).

- If rejected by OWNER / PMC, L&T shall in no way be responsible and all terms & conditions including delivery / time of completion and / or price as per the Purchase Order shall remain unaffected and the deviations stand withdrawn by Supplier.

- If the deviation is accepted by OWNER, the Cost benefit sought by OWNER, if any, will be deducted and the Order value shall be discounted accordingly. Any recoveries if due, shall be made from Supplier's subsequent invoices / pending payments if any. This deduction shall be over and above any of the other deductions / limitation of liability indicated elsewhere. Supplier shall provide all the

Continue..

L.C.: 11.09.2025 11:58:05



LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - II
Page No: 17 of 30

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

necessary and sufficient back-ups for justifying the cost benefit applicable for the deviation passed on to L&T.

11.10.3 Deviation(s) taken by Supplier during pre-order stage which is responded by L&T as "Subject to PMC / OWNER acceptance" shall also be processed as per above methodology.

11.20 Liability under the Order:

11.20.1 Supplier's maximum aggregate liability under this Order shall not exceed the Order value. This does not include liability for "Make-Good" and "Risk Purchase" as specified elsewhere in this document.

No such limit shall apply in respect of:

- i. Any liability pursuant to Supplier's indemnity obligations under the PO ; or
- ii. any loss resulting from fraud, intentional or willful misconduct or illegal or unlawful acts or omissions of Supplier, its affiliates or any sub-contractor or any supplier or any of its or their respective officers, directors, employees, servants or agents; or
- iii. any liability to rectify, repair, restore or replace any materials and/or works or deficiencies therein in terms of the PO;
- iv. any liability under this PO because of which Owner is unable to take the possession of the Equipment/system/package/Plant;
- v. In the event of any claim or loss or damage arising out of infringement of Intellectual Property;
- vi. For any damage to any third party, including death or injury of any third party caused by the Supplier or any person or firm acting on behalf of the Supplier in executing the works
- vii. Supplier's Liability for Price Adjustment for utility consumption as PO
- viii. Supplier's Liability for Process Guarantees (if any) or other Guarantees as mentioned in the Technical Part/PO.
- ix. Any liability arises out due to perform of any work or part thereof under this PO by L&T/Owner at risk, cost and expense of Supplier.

11.20.2 The deductions on account/ Recovery of any of the reasons at Sr. No. 4 & 11 of this document shall be made from the pending bills of the Supplier under this Purchase Order or any other Purchase Order and/or the Bank Guarantees and/ or submitted by the Supplier. It is clarified that the Buyer reserves the right to initiate appropriate proceedings against the Supplier and for the recovery of the shortfall amounts if any.

11.20.3 Levy of Price discount shall not relieve the Supplier from any of their contractual obligations and shall not limit the Buyer's rights in any manner.

11.20.4 Neither Party shall be liable to the other for any indirect or consequential loss or damage howsoever arising, including without limitation loss of product or equipment or facility down-time or loss of profit or loss of opportunity or revenue or increased costs of finance or like items of loss or damage, without regard to the causes thereof including, without limitation, willful misconduct or fraud, the fault, negligence, breach of statutory or contractual duty or obligation or otherwise of either Supplier or OWNER provided that (a) no liability or indemnity under this clause shall be considered as a liability to pay or to indemnify a Party for indirect or consequential loss or damage and (b) the provisions of this Clause shall not limit the Supplier's obligations to pay Price Discount under this Order. This Article shall survive termination of the Purchase Order.

11.30 Guarantee/Warranty

11.30.1 All materials / Equipment supplied, (irrespective of whether engineering, design data or other information has been furnished, reviewed or approved by L&T/PMC/OWNER) shall be free from faulty design, material & workmanship, and shall be of sufficient size and capacity and of proper materials so as to fulfill in all respects all operating conditions, specified in the Order.

11.30.2 Engineering Guarantee:

11.30.2.1 It shall be the prime responsibility of the Supplier to carry out design, engineering and supply in accordance with the RFQ and such design shall also be in accordance with good and sound engineering practices. Supplier must ensure that all equipment and items supplied by him shall comply with the technical specifications to achieve the guarantees and warranties specified under this Purchase Order.

11.30.2.2 In case any errors or omissions in such design or engineering, attributable to the Supplier, which require re-engineering resulting in any new requirements for the subject item / materials / packages, the same shall be supplied and / or carried out by the Supplier within the scope of work and/or supply and within the contractual delivery date without any extra price and / or delivery implications to L&T.

11.30.2.3 Supplier shall check and satisfy themselves with Material Requisition, Equipment datasheets and other attachments for its accuracy, correctness and completeness to meet the agreed guarantees and in case of deficiency, Supplier shall inform L&T the modifications proposed to be carried out to overcome the deficiency and rectify the same at no extra cost.

Supplier, if required, shall carry out corrective technical studies and engineering as may be required without any extra cost to the L&T. Before proceeding with the re-work, L&T/Owner/PMC approval, if applicable, shall be obtained.

11.30.3 Material/ Workmanship Guarantee:

11.30.3.1 Workmanship for manufacture and construction shall be carried out in accordance with the stipulations of the MR/RFQ.

11.30.3.2 Supplier shall guarantee that the subject Package (i.e. Equipment and/ or Materials including spare parts, chemicals, lubricants and consumables, if any) supplied under this Order shall be new and unused (not reconditioned) and of recent manufacture, are of the best quality & workmanship, free from defects in design, material & workmanship, are suitable for the operating conditions specified in the Order and that the performance of the Equipment / Material etc. supplied shall be as per stipulated parameters.

11.30.3.3 Any rectification of any defective material supplied or work done shall be made good without any Price implications or entitlement of extension of time to L&T or if so considered by L&T/OWNER, shall be replaced by new equipment within the scope of work and/or supply on DDP Site basis.

Continued..

L.C.: 11.09.2025 11:58:05



LARSEN & TOUBRO

LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - II
Page No: 18 of 30

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

11.30.3.4 "The Supplier guarantees and accepts full, responsibility for all materials supplied / installed / erected (including all components/parts) with regard to:

- Selection of material (if not specified by L&T)
- Material specification and metallurgy as per Specification
- Fabrication and Manufacturing workmanship
- Work specification
- Engagement of highly experienced, reliable and qualified sub-Suppliers/sub-contractors, engineers, workmen etc."

11.30.3.5 The above shall exclude damages due to normal wear and tear, application for other than the intended purpose, improper handling or inadequate maintenance by L&T/OWNER.

11.30.4 Performance Guarantee :

11.30.4.1 The items designed, supplied and installed / erected shall operate to the desired capacity to produce the desired and guaranteed duty conditions.

11.30.4.2 This guarantee shall cover the guaranteed mechanical performance for each and every related equipment, their efficiencies and their performance as laid down in the specifications including guarantee for utilities(power / Steam / Cooling Water/ Fuel Gas) consumption/generation as indicated by the Supplier in their Offer / agreed in PO.

The Supplier shall select the equipment considering the economy of utilities consumption/generation within the guaranteed figures provided and minimum effluent or pollution discharge satisfying the specifications/requirements specified in the MR.

11.30.4.3 Equipment / items which do not perform to the guarantees shall either be replaced or altered, repaired or replaced in parts or components (including dismantling, transportation, erection, hook-up, commissioning etc.) at no Price implication to L&T/OWNER and without entitlement of extension of delivery date to the Supplier.

11.30.4.4 Supplier shall carry out all activities for collecting the required data during guarantee runs to identify problems of non-performance for further analysis and modifications required to meet process performance parameters.

11.30.4.5 Supplier shall be solely responsible for supply of all instruments required for establishing performance of the subject item at no extra Price to L&T.

11.30.4.6 Supplier shall provide a list of laboratory test procedures and frequencies thereof required for validating the performance guarantees.

11.30.4.7 Performance tests shall be started when the machine/equipment is stabilized under design conditions. The equipment / machine / package shall be operated and controlled in accordance with procedures set up beforehand. The performance shall be measured on the basis of the average of data obtained during 72 hours of performance test runs under continuous operation of the machine.

11.30.4.8 If on any testing any material or equipment or any individual Unit of the equipment does not meet the design, rated or guaranteed performance relative thereto, the Supplier shall forthwith, within the Supplier's scope of work and at no additional Price to L&T, undertake such additional tests and/or operations that are necessary to identify the cause of such failure in conjunction with L&T.

11.30.4.9 If as a result of tests and / or operation it is determined that the design/ rated/guaranteed outputs/capacities have not been met because of defect(s) in any material, service or workmanship, the Supplier shall forthwith arrange to repair / replace part or whole of the item supplied with no Price implications to L&T/OWNER. The Supplier shall, for this purpose, forthwith establish a "Time Schedule" acceptable to L&T / OWNER for such replacement / rectification bearing in mind the exigencies of the Project requirements. Should the Supplier fail to establish such "Time Schedule", L&T shall establish the "Time Schedule" and the "Time Schedule" so established shall be binding on the Supplier. Should the Supplier thereafter fail to adhere to the "Time Schedule" so established for the replacement / rectification, L&T shall (but without obligation to do so), take-over in whole or part such replacement / rectification at the Risk & Cost of the Supplier. In so doing, L&T shall be entitled to identify and employ the quickest available resources of supply and / or work on its own and/or from third parties. L&T reserves the right to charge Supplier overheads and / or administrative charges for any such supply and / or work.

11.40 Guarantee / Defect Liability Period:

11.40.1 Notwithstanding anything stated to the contrary elsewhere in the documents comprising the RFQ, but subject to 11.4.2 & 11.4.3) below, the Guarantee / Defect Liability Period (DLP) of the Equipment / Material / Services for design, material, workmanship and performance shall be till 31-Dec-2028 or 24 months from the date of delivery whichever is later. In case the delivery of the order is delayed beyond the original Contractual Delivery Date (CDD), the DLP shall be extended by the period equivalent to the delay.

11.40.2 Should any defect and / or under performance in the Equipment / Material supplied be noticed during the guarantee / defect liability period, the Supplier shall, at no Price to L&T / OWNER make the defect good at Site promptly, by way of repair / modification or replacement and re-installment of the Equipment / Material.

11.40.3 Any Equipment / Materials repaired / modified or replaced / re-installed during the above Defect Liability Period shall be subject to defect free guarantee / defect liability period for a further period of twelve (12) months from the date of correction, repair, rectification, replacement and/or re-installation with the intent that the provisions of other clauses under "Guarantee / Defect Liability Period" shall apply thereto in respect of all defects discovered during a period of twelve (12) months from the date of completion of the relative correction, repair, rectification, replacement and/or re-installation as the case may be, in the same manner and to the same extent as apply in respect of the original works.

11.40.4 In case of replacement of goods Supplier shall not be entitled to return of the defective goods.

11.40.5 In case of any claim arising out of this guarantee within guarantee / defect liability period, L&T shall notify the Supplier in writing and upon receipt of the same, immediately Supplier shall, start repair/ replace/ work for the defective goods without any Price to L&T / OWNER. The delivery schedule for the same shall be mutually discussed & agreed upon.

11.40.6 The Supplier shall provide at his own cost and initiative all labor, material, equipment, crafts and inputs, transportation, taxes, duties etc. whatsoever required in and relative to the correction, repair, rectification, replacement, erection, installation and / or re-performance of the relative work(s) and / or systems(s) within the guarantee / defect liability period.

Continue..

L.C.: 11.09.2025 11:58:05



LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - II
Page No: 19 of 30

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

11.40.7 Should the Supplier fail to fulfill his obligations during Guarantee / Defect liability period, all costs / charges / taxes & duties / expenses related to engineering / supply / construction / erection / testing / commissioning etc. for the said equipment / material etc. incurred by L&T/OWNER on this account shall be back-charged to the Supplier. However, this shall not relieve the Supplier from any of the contractual obligations including guarantees.

11.40.8 In case Supplier's guarantee period / defect liability period as per clause above expires and L&T requires an extension in the defect liability period, then Supplier shall extend the defect liability period, including extension in validity of PBG and implications thereof if any, will be discussed at that point of time.

11.40.9 At the sole discretion of L&T/OWNER, Supplier shall supply New, re-manufactured, Buyer approved repaired part or assembly components required to correct the defect(s) observed during Defect Liability Period. Rejected items/defected items under this warranty shall remain property of Buyer.

11.50 Technical Co-operation # Joint Responsibility :

11.50.1 Should the supply be complementary to materials or equipment supplied by third parties, the SUPPLIER undertakes to co-operate with said other SUPPLIERS, in order to co-ordinate with them the planning, manufacture, erection and/or setting in operation of whatever is pertaining to his supply.

11.50.2 Any cost arising from a Supplier's wrong technical information to other Suppliers shall be at Supplier's charge.

11.50.3 The Supplier shall deliver to the BUYER, a copy of all pertinent documentation.

11.50.4 The Supplier and such other Supplier/s shall be jointly liable for the good running of groups, plants, equipment, etc., supplied to BUYER. Should any inconvenience occur due to erroneous exchange of technical information, the Supplier/s involved shall directly co-operate with each other, in order to eliminate such inconveniences as soon as possible according to their technical responsibilities, at no cost to the BUYER.

11.60 "Non-Waiver:
Failure by BUYER to insist upon strict performance of any terms or conditions of the Order, or failure or delay to exercise any rights or remedies provided therein or by law, or failure to properly notify Supplier in the event of breach, or the acceptance of or payment for any goods or services thereunder, or the review or failure to review designs/ documents or inspection of material by Buyer / OWNER / PMC / Buyer nominated TPIA shall not release Supplier from any of the warranties or obligations of the Order and shall not be deemed a waiver of any right of BUYER to insist upon strict performance thereof or any of its rights or remedies as to any prior or subsequent default thereunder nor shall any termination of work under the Order by BUYER operate as a waiver of any of the terms thereof."

11.70 "Non Disclosure agreement:
The Buyer and the OWNER (if any) reserve the sole right to disclose and/or publicize in any manner (i.e., for instance, through press release, speeches, photographs, videos, etc.), directly or indirectly (i.e., for instance, authorizing someone to make such disclosure), any kind of data, document and/or information concerning the Supply (materials and/or services) or any part thereof. The Supplier shall not make any such disclosure and/or publicity without the prior written consent of the Buyer and the OWNER.
Supplier shall limit its disclosure of any information supplied by Buyer/Company in connection with this PO only to those of its personnel, Sub-Vendors, Sub-Contractors who require it for the performance of the Work. If Company/ Buyer designates any other person who may receive such information, Buyer shall obtain from each such person a written confidentiality and non-disclosure agreement obligating them with respect to such information and to the same extent that Supplier is obligated under this PO.
Except as specifically permitted by the terms of this PO or otherwise authorized in writing by Buyer/Company, the Supplier and members of Supplier Group shall not duplicate, use, or disclose any information supplied by Buyer or its agents during the course of the Work so long as, and to the extent that, the information has not become part of the public domain. To the extent Company / Buyer approves any disclosure pursuant to this clause, the Supplier shall ensure that any third party to whom the Supplier discloses such information, executes a confidentiality agreement containing provisions protecting such disclosed information from further disclosure that are no less stringent than those contained herein, and which grant both Company and Buyer the right to directly enforce such provisions. Supplier shall provide copies of such confidentiality agreements to Buyer upon its request."

11.80 "Code of Conduct
Supplier shall adhere to the L&T Code of Conduct.
Supplier shall ensure that all members of Supplier/s Group comply with the requirements of this clause 11.80 of the PO. Any violation of the provisions of this clause 11.80 shall constitute a material breach of this PO which, without prejudice to Buyer/s right to enforce any other remedy provided by law or under this PO, shall allow Buyer to terminate this PO for default and recover damages including, but not limited to, any increased costs incurred by Buyer as a result of such breach."

11.90 "HSE Requirements
The Supplier shall abide by all the health, safety and environmental requirements in compliance with the applicable local statutory rules & regulations and L&T HSE Policy and shall ensure that all such requirements are communicated to all the personnel involved in executing this Purchase Order"

11.10 Termination / Cancellation and Suspension:
11.10.1 L&T may, at any time terminate the Order in whole or part by giving written notice thereof and without assigning any reasons. Supplier, shall on receipt of notice of termination discontinue all further activities connected with the execution of the Order and inform L&T of details of work carried out as on date, together with financial implication. In the event of such termination, L&T shall discuss with Supplier to ascertain extent of work carried out by Supplier and to reach an agreement on cost mutually acceptable to L&T and Supplier.

11.10.2 In case specified delivery schedule is not adhered to or the progress of manufacture of the goods is not satisfactory or not in accordance with the Delivery schedule, L&T shall inform the Supplier

Continues..

L.C.: 11.09.2025 11:58:05



LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - II
Page No: 20 of 30

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

about the delay. The Supplier shall take necessary actions to catch-up with the agreed delivery schedule that result in Supplier meeting the agreed schedule. In the event that the Supplier takes no action or even after the Supplier taking necessary actions, as mentioned above, the anticipated delay is in excess of 4 weeks, L&T reserves the right to cancel the Purchase Order in whole or in part without liability for damages/ compensation. In such event, L&T may procure from elsewhere goods, at Supplier's Risk & Cost, which in L&T's opinion would meet the same purpose as the goods for which Purchase Order is cancelled and Supplier shall be liable for reimbursing L&T cost of such substitution. L&T reserves the right to charge Supplier overheads and / or administrative charges for any such supply and / or work.

11.10.3 In the event of rejection of non-conforming goods, Supplier shall be allowed, without any extension of delivery time, to rectify the non-conformities. Should, however, the Supplier fail to do so within the stipulated time, L&T may cancel the Order as to the non-conforming goods and retain the same right with respect to substitution as are set out in preceding paragraph and in addition recover actual expenses incurred by L&T, in installing and removing the non-conformity to be rectified at Supplier's Risk and Cost. L&T reserves the right to charge Supplier overheads and / or administrative charges for any such supply and / or work.

11.10.4 If the Order is suspended (By Written instructions) for whatsoever reasons and for whatever time duration by L&T, the Delivery and price shall be amended based on mutually agreed terms. Buyer shall pay all reasonable and substantiated costs incurred by the Supplier in giving effect to the Suspension, unless the suspension is:

- "a) necessary because of Force Majeure; or
- b) necessary for the proper execution of the Work or any part thereof; or
- c) necessary because of negligence, error or other default on part of the Supplier; or
- d) necessary for the health or safety of Company /Contractor/Supplier Personnel, Third Parties or for the protection of the work, Company Property or environment; or
- e) otherwise provided for in the Purchase order."

11.11 Insolvency and Bankruptcy

11.11.1 "The Supplier shall inform the Buyer in case of occurrence of one of the following events or if there is substantial reason for Buyer to believe that any one of the following events may occur:

- a) Supplier becomes insolvent,
- b) a petition in bankruptcy is filed with respect to or by Supplier,
- c) opening of an official receivership procedure with respect to Supplier,
- d) Supplier's request for obtaining controlled administration,
- e) makes an arrangement or composition with (or assignment in favour of) his creditors,
- f) agrees to carry out the Purchase Order under a committee of inspection of his creditors,
- g) goes into liquidation,
- h) has an execution/restraining order levied on his goods,
- i) important changes on the Supplier's organisational structure or Ownership which can undermine the successful conclusion of the supply,
- j) any authority having jurisdiction takes or institutes any action or proceedings for the dissolution or winding up of Supplier or for the suspension of his operations"

11.11.2 Upon knowledge of any such events from the Supplier or from any other sources, the Buyer, upon notice in writing to Supplier, has the right without prejudice to the procedural consequences, to terminate totally or in part the Purchase Order as per clause no. 11.10.2 and to take all the special and/or particular measures needed to fulfil his obligations towards the Buyer. In case of insolvency no prior notice for cure is required to be issued by the Buyer before issuing such termination notice.

11.11.3 In case of the above events and irrespective to the fact that whether the Purchase Order is terminated by the Buyer or still in subsistence when it has reason to believe that any of such event are likely to occur, the Buyer, at his option, can forthwith enter upon the worksite and take possession of all the material, drawings and designs, work in progress pertaining to the Purchase Order whether issued by the Buyer or otherwise. The Buyer at his option may use and utilise the plant and equipment of the Supplier for completion of the works. At the option of the Buyer, the Supplier shall assign all the purchase orders, service contracts that it had executed pertaining to the Works with its sub-Suppliers in favour of the Buyer and accordingly inform the sub-Suppliers.

11.11.4 The Buyer shall not be liable to pay the Supplier any money under the purchase order until the costs of completion are ascertained.

11.12 Force Majeure

11.12.1 "The term ""Force Majeure"" shall mean any of the following acts, events, or circumstances which renders a Party unable to perform its obligations which in each instance is not reasonably foreseeable, cannot be sufficiently mitigated by reasonable efforts, and the cause of which and the inability to perform is not caused by any act or omission of the Party asserting Force Majeure:

- a) act of Terrorism
- b) riot, war, invasion, act of foreign enemies, rebellion, revolution, insurrection of military or usurped power
- c) Ionizing radiation or contamination, radio activity from any nuclear fuel or from any nuclear waste from the combustion of nuclear fuel, radioactive toxic explosive or other hazardous properties of any explosive assembly or nuclear component.
- d) epidemics(Except Covid 19 or Coronavirus Pandemic), earthquakes, flood, fire, hurricanes, typhoons or other physical natural disaster, but excluding weather conditions regardless of severity
- e) freight embargoes, strikes at national or state-wide level or industrial disputes at a national or state-wide level in any country where Works are performed, and which affect an essential portion of the

Continue..

L.C.: 11.09.2025 11:58:05



LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - II
Page No: 21 of 30

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

Works but excluding any industrial dispute which is specific to the performance of the Works or the Contract"

11.12.2 The following shall not afford the Supplier a ground for extension of time for delivery of materials:

- a. Inclement or unforeseen weather, strike or lock-out, shutdown, third party breach, delay in payment or commercial hardship shutdown or idleness or other impediment in progress or completion of the supply or work due to any reason whatsoever shall not afford the Supplier a ground for extension of time or relieve the Supplier of his/its full obligations under the contract.
- b. Delay in the supply of any material to Supplier due to any whatsoever reasons (including Force Majeure) from Supplier's vendors/sub-suppliers / sub-contractors shall not entitle Supplier for any extension of time for completion or to any claim for costs/loss/remuneration or damages or compensation whatsoever.

11.12.3 If either Party is rendered unable, wholly or in part, by Force Majeure to perform its obligations under this Purchase Order, it is agreed that performance of such obligations by such Party, so far as they are affected by Force Majeure, shall be excused from the inception of any such inability until it is corrected or relieved, but for no longer period. If either Party desires to invoke Force Majeure, it shall notify the other Party in writing of the act, event, or circumstance that constitutes the event of Force Majeure, the date on which such event of Force Majeure commenced, with proper substantiation (duly certified by the local Chamber of Commerce or statutory authorities, relevant to the Supplier). Such notice shall be delivered not later than three (3) days after the date on which such Party first had knowledge of the effect of such event of Force Majeure. Either party shall forthwith inform the effect of the event of Force Majeure on the affected Party's ability to perform its obligations under this Purchase Order. The Party claiming inability to perform must make all reasonable efforts to minimize the delay caused to the Works as a result of the occurrence of an event of Force Majeure and mitigate any other effects of Force Majeure.

11.12.4 Affected parties shall diligently mitigate or remove the effect of Force Majeure. Each party shall upon receipt of the Notice of Force Majeure under the preceding Article shall confer promptly with the affected party and agree upon, within fifteen days, a course of action to be adopted by the affected party to remove or alleviate such effect(s), and shall seek reasonable methods of resuming full performance of affected party's obligations and achieving the objectives under the Order.

11.12.5 In the event of any force majeure cause, either party shall not be liable for delays in performing their obligations under this Order and the delivery dates will be extended without being subject to Price Discount for delayed deliveries, as stated elsewhere.

11.12.6 For delays arising out of Force Majeure, Supplier shall not claim extension in completion date for a period exceeding the period of delay attributable to the causes of Force Majeure and neither Buyer nor Supplier shall be liable to pay extra costs or claim any damages or compensation in addition to or in lieu of extension in completion date. To clarify, during the Force Majeure no party shall be liable to each other for the payment of any hire charges for equipment or manpower, storage charges of material, stand-by charges of equipment etc.

11.12.7 The Supplier shall not be entitled for extension in completion / Delivery Date if the effect of Force Majeure does not exceed 7 days.

11.12.8 Immediately after the end of the event of Force Majeure, the affected Party having invoked such Force Majeure shall notify the other Party in writing that the event of Force Majeure has ended and such Party shall resume performance of its obligations under the Purchase Order.

11.12.9 In case of an overlapping delay that is when more than one event causes a delay and the cause of at least one of those events is attributable to Supplier, then to the extent and period that such delays are concurrent, the Supplier shall not be entitled to seek resort under the Force Majeure clause and seek an extension of time for the period of such delay which is attributable to the Supplier.

11.12.10 The following are specifically excluded as Force Majeure and shall not constitute a basis for claims for schedule extensions, under this Purchase Order:

"# Events or circumstances involving a previous or existing condition on or before the effective date of the Purchase Order; or

Delay of Material by Supplier's Vendor, Subcontractors, Sub suppliers

Late performance by a Supplier and / or his sub-Supplier caused by a shortage of supervisors or labour, inefficiencies, or similar occurrences; or

Late delivery of equipment or materials by any sub-Supplier caused by congestion at a manufacturer's plant or elsewhere, an oversold condition of the market, inefficiencies, or similar occurrences; or

Any inability to obtain visas or renewal of visas for expatriate workers; or

Changes in market conditions

Social distancing norms/ consequences of COVID 19 pandemic/quarantine requirements or the like.

Inclement or unforeseen weather, strike or lock-out, shutdown, third party breach, delay in payment or commercial hardship, shutdown or idleness or other impediment in progress or completion of the supply or work due to any reason whatsoever shall not afford the Supplier a ground for extension of time or relieve the Supplier of his/its full obligations under the PO.

Any other clause mentioned in this order"

11.12.11 Should the Works bedelayed for more than thirty (30) consecutive days or sixty (60) days in aggregate as a result of Force Majeure, Buyer at its option may either suspend the Work affected or terminate this Purchase Order or the portion of the Work involved. The provisions governing Cancellation shall apply. However, L&T shall not be liable to pay any Cancellation charges over and above the charges as admissible under Clause of Cancellation.

11.12.12 Failure by Supplier to comply with the notice requirements mentioned hereinabove shall be deemed to conclusively waive Supplier's rights to invoke Force Majeure in respect of the relevant acts, events or circumstances and to any consequent entitlements to extension of time for completion of the Work or any separable portion thereof.

11.12.13 Notwithstanding anything mentioned hereinabove, the Buyer shall have right to invoke Force Majeure if the Buyer is unable to utilize/use the services supplied by Supplier under the Purchase Order due to events mentioned above.

11.13 "Infringement of Intellectual Property Rights etc.

Continue..

L.C.: 11.09.2025 11:58:05



LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - II
Page No: 22 of 30

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

Suppliers shall warrant that the sale or use of goods supplied under the Contract, whether designed and manufactured so as to comply with L&T's specifications or otherwise, shall be free of any claim, whether rightful or otherwise of any third person, by way of infringement of any patent, copyright, trademark or industrial design or the like, and the Supplier shall hold L&T harmless and indemnify L&T at Supplier's own cost, from any and all such claims and legal proceeding. L&T makes no warranty that the production, sale or use of goods designed and manufactured so as to comply with L&T's specification will not give rise to the claim, whether rightful or otherwise, of any third person by way of infringement of any patent, copy-right trademark or industrial design or the like and in no event shall L&T be liable to Supplier for indemnification in the event of any action being brought against Supplier in connection with any such claim. If Buyer's right to use such designs, drawings, calculations, software, or Materials is enjoined or otherwise restrained or precluded as a result of a claim of infringement, Supplier shall either procure for Buyer the right to use the infringing item, replace the infringing item with a substantially compatible and functionally equivalent non-infringing item, or remove the infringing item and compensate Buyer for the costs associated with procuring and installing a suitable substitute.

This Clause shall survive termination of the Order."

11.14 Dispute Resolution:

11.14.1 Any dispute or difference between the Parties arising out of or in connection with this Order which cannot be resolved amicably between the Parties at the level at which it arose within fifteen days thereof shall, in the first instance, be referred to the nominees of Directors of the respective Party for resolution. If the dispute cannot be settled within a further period of thirty days such dispute shall be resolved by arbitration in accordance with The Arbitration and Conciliation Act, India 1996 and any amendments thereof, by one arbitrator to be appointed by agreement between the Parties, failing which the appointment shall be made under the said Act.

11.14.2 The arbitration proceedings shall be conducted in English language. The arbitration venue shall be in Mumbai, India. The Parties agree that the dispute resolution process provided herein shall be the sole remedy and the Parties shall not suspend their obligations under the Order.

11.14.3 This Order shall be subject to the laws in force in India.

11.14.4 This Clause to arbitrate shall survive termination of this Order.

11.14.5 Notwithstanding the existence of any dispute or arbitration in terms hereof or otherwise, unless otherwise directed in writing by L&T, the Supplier shall continue and be bound to continue and perform the works to completion in all respects according to the Order (unless the Order or works be determined by L&T or by the Supplier under the provisions of the Order), and the Supplier shall remain liable and bound in all respects under the Order.

11.14.6 The work under the order shall, however, continue during the Arbitration proceedings and no payment due or payable to the concerned party shall be withheld (except to the extent disputed) on account of initiation, commencement or pendency of such proceedings.

11.14.7 "Local rules and regulations:

Supplier shall ensure that the Goods within the scope of supply for this Purchase Order are in compliance with local codes and regulations. Supplier shall ensure that local rules and regulations and procedures have been complied with in obtaining certificates if and when required. Costs related to compliance with aforementioned are included in the Order Value.

Supplier has to take note of steel policy, Value addition norms, Subcontractor and import restrictions as applicable to order while quoting and execution of the project."

11.14.8 "Harmonized Tariff Codes:

Supplier shall provide Buyer with the applicable Harmonized Tariff (HSN) Codes per line item for this Purchase Order / Packing List. Failure to do so may result in back charges to the Supplier."

11.15 Assignment and Sub-Contracting:

11.15.1 Supplier shall not, except with the prior written consent of L&T, transfer or assign their obligations and interest in supply of materials, or sub-contract whole or part of the work under the Purchase Order in any manner whatsoever.

11.15.2 Grant of any such consent or approval shall not however absolve the Supplier in any manner from all or any of their obligations, duties and responsibilities, including delivery of materials under this Order within the stipulated Delivery schedule.

11.15.3 Moreover, delay, if any, by L&T in approving any Sub-Contractor(s) proposed by the Supplier, or, rejection if any, by the L&T of any Sub-Contractor(s) proposed by the Supplier, shall not entitle the Supplier for any claims for additional compensation or any claim for an extension in the Contractual Date of delivery. Supplier shall ensure that competent and resourceful agencies with proven track record should be proposed for the work to be sub-contracted.

11.15.4 Delay in the supply of any material to Supplier by Supplier's vendors, sub-suppliers or sub-contractors due to whatsoever reasons, shall not entitle Supplier for any extension of time for completion or to any claim for costs, loss, remuneration or damages or compensation.

11.16 Modifications and Amendments:

11.16.1 L&T shall have the right to modify or amend this Purchase Order, by way of a written communication to the Supplier, subject to an adjustment in the price and/or delivery date. Adjustments in price and/or delivery date shall be mutually agreed between L&T and the Supplier.

In case price and/or delivery date adjustment cannot be settled immediately, upon written instruction from Purchaser, Supplier will proceed with the modification and price and/or delivery date adjustment

Continue..

L.C.: 11.09.2025 11:58:05



LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - II
Page No: 23 of 30

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

shall be settled by mutual agreement before order close-out. Any delay in executing the modification after receipt of written instructions shall be to Supplier's account.

11.16.2 Supplier shall forthwith inform regarding any claim for "Change-Order" prior to commencing with the same.

"If there is any alteration or change in the scope of work or extra item and the Supplier or L&T considers that the change requires revision in the Order price and / or delivery, Supplier shall issue / submit the change order proposal (COP) within 7 days of such instructions issued to Supplier.

Supplier shall submit the following minimum information and documents in support thereof -

- (i) a list of affected deliverables
 - (ii) a breakdown of man-hours by deliverable and job title/equipment item
 - (iii) a list of Materials and quantities with associated cost for each individual item or - cost per unit quantity as applicable
 - (iv) copies of all related Sub-contractor quotations for the Work / Materials / equipment as stated in the proposed Change together with any discount or rebate Supplier would receive from Sub-contractor(s), directly or indirectly, for those Work / Materials / equipment
 - (v) a network schedule fragment showing how the proposed Change Order Work would be incorporated into the Work Schedule and any resulting impact on CDD
 - (vi) any other information / documents / clarifications as may be required by the Buyer
- e) In addition to describing the Change, a Change Order shall include:
- (i) any adjustment in the CDD / milestone dates resulting from the Change; and
 - (ii) the lump sum price of or other basis (as determined by Buyer) for determining any increase in the PO Price either due to Vendor or credit due to Contractor as a result of such Change, if any as mutually discussed and agreed between the Parties."

"Change-Orders" informed later or at the time of delivery shall not be entertained.

If Supplier proceeds with the additional Work involved in a Change without first obtaining a Change Order signed by both Parties, the Supplier shall not be entitled to any additional compensation for the Work so performed or to any adjustment of the CDD and/or milestone dates as a result of the said Change.

The Supplier specifically waives any and all rights to claim from Buyer for such costs or additional time to perform the Work as a result of compliance by Supplier with any such oral changes."

11.16.3 The Supplier shall carry out such amendments to the Purchase Order and shall be bound by the same terms and conditions incorporated in the original Purchase Order.

11.16.4 "Nothing shall constitute a change order to the extent that additional work / efforts / resource deployment etc. are carried out / required only:

- a) to ensure that the Work is carried out and completed as per the delivery schedule
- b) As a consequence of Supplier's failure to comply with any of its obligations under the Purchase Order."

"Provided always that the provisions with respect to a Change Order or a Change Order Proposal shall not be applicable if:

- a) the change of supply or services or work is necessary at any time in order for the Supplier to comply with the requirements of the Contract or the Supplier's responsibilities under the Contract,
- b) the additional Work/ services and/or materials are required to make good the Supplier's Warranties and/or Guarantees as set forth in the Contract.
- c) the change relates to the repair, rectification or re-performance of any of the defective Work(s) or materials within the Supplier's scope or supply or services or work."

11.16.5 Any extension of time, if granted by L&T, shall be the sole remedy of the Supplier for any cause or event of delay and the Supplier shall not be entitled in addition to or in lieu of such extension, to claim any damages or compensation whether under the law governing contracts or quasi-contracts or any other relationship, and the Supplier hereby waives and disclaims any and all contrary rights.

11.17 "Right of the Buyer to set-off:

L&T shall be entitled to recover from the Supplier any sum(s) due to L&T on account of any damage(s) or otherwise, whether in respect of Supplies under this Purchase Order or under any of their previous Purchase Orders / Contracts, by deducting such sums from the amount due by them to the Supplier in respect of Supplies made under this Purchase Order or any of their prior or subsequent Purchase Orders / Contracts and/or Bank Guarantees."

11.18 "Confidentiality:

All drawings, specifications and details furnished by L&T to the Supplier shall be kept confidential. The technical information imparted and supplied to the Supplier by L&T shall at all times remain the absolute property of L&T. Supplier shall preserve and cause its employees to preserve the secrecy of any confidential information.

Supplier shall read and un-conditionally accept the terms and conditions of Non-Disclosure Agreement (NDA) as per Annexure E and Countersign (with stamp).

Supplier shall not use or cause to be used any confidential information for any purpose other than the performance of the Work, and as such Supplier shall not a) reproduce, copy or use any confidential information, or b) disclose to, place at the disposal of, or use on behalf of any third party, or enable any third party to peruse, copy or use any confidential information unless with prior written consent of L&T.

This Clause shall survive termination of the Order."

Continue..

L.C.: 11.09.2025 11:58:05



LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - II
Page No: 24 of 30

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

11.19 Post Warranty Comprehensive Annual Maintenance Contract (PWCAMC)

Supplier to submit the quote and confirm acceptance to Terms and Conditions for Post Warranty Comprehensive Annual Maintenance Contract (PWAMC) enclosed as Annexure H of this document (will be provided during Project phase). For Proposal, Supplier to refer RFQ for respective PWCAMC items.

The AMC Charges shall be inclusive of all the charges for Transportation, Lodging, Boarding, all insurances including third party insurance, all Taxes /Duties / Cess /Levies / Fees and all other incidental charges etc. but excluding GST which shall be payable extra at actual on Submission of Invoice as per GST Invoicing rules. Purchase/OWNER will not have any liability, whatsoever, over and above the quoted prices of PWCAMC.

Other Terms & Conditions of PWCAMC:

Payment Term: The payment terms for the AMC shall be on quarterly basis after completion of each quarter against submission of Bills duly certified by the Engineer-in-charge. Payment will be made through Wire transfer within 60 days from certified invoice.

Validity: The order for PWCAMC will be placed before the completion of Project Defect Liability Period PWCAMC Prices offered must be valid for ordering till one year after completion of Project Defect Liability Period. The price of AMC services will remain firm & fixed for the complete execution of AMC contract.

PBG: Within 10 Days of placement of Order for PWCAMC, SUPPLIER shall submit PBG for 5% of the annual PWCAMC amount which shall be valid for the entire AMC period

Logistic Support: Supplier to furnish Logistic support certificate as per Annexure J. The logistic support certificate shall be signed by corporate level person of the Supplier.

OWNER may decide to enter into separate contract with AMC service provider / Supplier at its discretion on the same prices and terms & conditions.

11.20 NA

11.21 NA

11.22 "Supplier's Sales / Commercial Conditions, if any, and/or any other terms & conditions indicated in their offer shall not be applicable and stand withdrawn in lieu of "Terms & Conditions" agreed and recorded between "Supplier" and "L&T" before placement of Order.

Deviations whatsoever after placement of LOI / P.O. (whichever is earlier) are not acceptable & valid.

In case of any contradictions in the Terms & Conditions, the more stringent shall be applicable."

11.23 NA

11.24 STEP-IN RIGHTS:

11.24.1 If, in the opinion of Buyer, the Supplier's financial affairs become unsound or he suspends payment of his commercial debts or if there are reasons for Buyer to believe that Supplier may become insolvent or it has committed the breach of the terms of Purchase Order or there is any delay in performance of the Purchase order, then Buyer may without prejudice to any other rights it may have under the Purchase Order, have the right to enter upon the worksite and without thereby terminating the Purchase Order, or releasing the Supplier of his obligations or liability under the Purchase Order take over the balance Works and complete the same by using Supplier resources including but not limited to yard, equipment, personnel, workmen and/or other sub-Supplier, as Buyer in its absolute discretion may think proper and at the sole risk and cost of Supplier.

11.24.2 If Buyer in exercising any of the rights conferred by this clause incurs any expenditure in excess of the Purchase Order Value, then such excess amount shall be paid by the Supplier/ Sub-Supplier to Buyer, and such amount shall be considered as debt due to the Buyer.

11.24.3 Notwithstanding any provision to the contrary the Buyer while exercising its rights under this clause shall not be liable to pay to the Supplier any money until the cost of completion of the works and all other expenses incurred by Buyer have been ascertained. Supplier shall provide Indemnity Bond as per Annexure N attached with this Terms & Conditions.

11.24.4 The Supplier guarantees that such Buyer's right of taking over of the works will be accepted by its sub-Supplier and will be included in the respective sub-purchase orders.

11.24.5 In case the Buyer decides to make use of its aforesaid right and if so requested by him, the Supplier shall facilitate and assist Buyer. Notwithstanding Buyer's use of such rights, it shall also have a right to pay any sub-Supplier directly to prevent from suspending or terminating performances. The amount so paid will subsequently be set-off from the Purchase Order Value.

11.25 FREE ISSUE MATERIAL

11.25.1 The Buyer can supply, free of charge certain material (hereinafter referred as the Free-Issued Material) (if any) in accordance with the details stated Purchase Order. The Buyer can provide such Free Issued Material either at the Supplier's Site / Yard / Warehouse or any other location stated in the Purchase Order. Supplier shall be liable for all demurrage or other charges in connection with any delay in unloading, hauling, lifting or handling of Free-Issued Material.

11.25.2 As soon as Free-Issued Material is received in Supplier's Site/Yard/Warehouse, it shall mark them with an identification number and Buyer's name, and shall keep them separate from other items. Upon receipt of such Free-Issued Material, the Supplier shall thoroughly inspect them, and shall promptly give notice within three (3) days from the receipt of the Free Issued Material to the Buyer of any shortfall, theft, pilferage, defect, or damage in these Free-Issued Material failing which the Supplier shall be deemed to have accepted and confirmed that the Free Issued Material are free from any shortfall, defects, or damage.

11.25.3 Once the Free-Issued Material is delivered by the Buyer, the Supplier shall be responsible for the care, custody, control, storage, handling, protection, preservation, re-packing return of surplus or

Continue..

L.C.: 11.09.2025 11:58:05



LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - II
Page No: 25 of 30

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

unused material and use of the Free Issued Material. Supplier shall provide Indemnity Bond as per Annexure N attached with this Terms & Conditions.

11.25.4 Supplier must, at all times, segregate the Free Issued Materials from the other material, Construction Equipment, and any other Supplier's property. Supplier must use the Free Issued Materials solely and exclusively for incorporation in and the performance of Works.

11.25.5 The Free Issued Materials shall be always considered to be the property of Buyer and the Supplier shall ensure that it is free from any lien / charge / encumbrances. Supplier shall acknowledge receipt of all materials and/or equipment furnished to Supplier by Buyer for its packaging or assembly into a "complete package". It is specifically understood and agreed that title to all said items furnished by Buyer shall remain with Buyer at all times regardless of whether said items are incorporated into material or equipment being constructed hereunder and whether said items remain separable or not. Said items can at any time be reclaimed and repossessed by Buyer.

11.25.6 If during the term of Purchase Order there is evidence of a lien or a charge created by the Supplier on the Free-Issued Material, the Buyer may retain an amount from Supplier sufficient to indemnify Buyer against such lien or claim. Buyer may keep said amounts until the Supplier pays and discharges the lien or charge. The Buyer at his discretion may pay and discharge the same and deduct the amount paid from amounts due to Supplier under Purchase Order.

11.25.7 The Supplier shall be responsible for any theft, loss or damage to any such Free-Issued Material and any deterioration to any such Free-Issued Materials as a result of the Supplier's care, custody, control, handling and storage and shall indemnify and hold harmless the Buyer from any and all claim in this respect. The Supplier shall execute and sign Indemnity Bond in the format annexed herewith. The Supplier shall not remove Free-Issued Material from the Site/Yard/Warehouse without first obtaining a written release authorizing such removal from Buyer.

11.25.8 Upon the completion of the Works relating to the Free Issued Materials, the Supplier must notify the Buyer of any unused or surplus Free Issued Materials and the Supplier must immediately return the surplus Free Issued Materials as instructed by the Buyer in the same condition as received by the Supplier from the Buyer, except for normal wear and tear.

11.25.9 FIM Insurance, material reconciliation, wastages, scrap and excess material terms and conditions mutually agreed between Buyer and Supplier and covered under Purchase Order shall govern.

11.26 TITLE AND RISK

11.26.1 "Title to the raw material/ Work in Progress (WIP) / finished goods shall pass to Buyer:

- a) on arrival of raw material on Supplier's Site / Yard / Warehouse, or
- b) when payment for raw material is made by Buyer, or
- c) when the Supplier has commenced manufacturing at its/ sub-Supplier's Works, or
- d) when raw materials, WIP, finished goods are dispatched from Supplier's Works whichever occurs earlier"

11.26.2 Notwithstanding any transfer of title, Supplier shall at all times be solely responsible for all costs arising in respect of payment for Supplier supplied materials and for transport and importation of such raw material/ WIP / finished goods including without limitation, shipment costs, customs duties and insurance costs.

11.26.3 Notwithstanding the above, the risk and responsibility for any damage, or loss of the raw material/WIP/finished goods shall remain with the Supplier until the final delivery.

11.26.4 The Supplier shall, at its sole risk and cost, take insurance cover for the risk of loss or damage to the raw material/ WIP / finished goods for its full replacement value until delivery of the finished goods in accordance with the terms of the Purchase Order.

11.26.5 The raw material/ WIP / finished goods shall remain under the care and custody of the Supplier until the date of delivery or achieving completion.

11.26.6 Supplier shall properly store and ensure maintenance, custody and control of any and all goods in accordance with the requirements of this Purchase Order and the best professional practices and shall protect the same against weather hazards, water, humidity, dirt, fire, theft, vandalism and the like. Supplier shall use every means to prevent at all times any defect, corrosion, damage, theft or loss whatsoever to the goods in its custody.

11.26.7 Raw material/ WIP / finished goods pertaining to the Works shall be considered to be the property of Buyer and the Supplier shall always ensure that it is free from any lien / charge / encumbrances. If during the term of Purchase Order there is evidence of a lien or a claim for which Buyer might be or become liable or to which Buyer's property might be or become subject and which is chargeable to Supplier, its sub-Supplier, Buyer may retain an amount from Supplier sufficient to indemnify Buyer against such lien or claim. Buyer may keep said amounts until the Supplier pays and discharges the lien or claim or until Buyer is satisfied that such lien or claim is invalid.

11.26.8 If such lien or claim is valid in Buyer's judgement, Buyer may pay and discharge the same and deduct the amount paid from amounts due to Supplier under Purchase Order.

11.26.9 If a lien or claim remains unsatisfied after termination of Work or completion, Supplier shall promptly refund to Buyer all amounts paid by Buyer in discharging such lien or claim, including costs and reasonable attorney fees.

11.26.10 "Liens.

The Supplier shall take full responsibility for the payment of its Sub-vendors / Sub-contractors under all subcontracts or purchase orders issued by it and for the management of all claims for payment thereunder, including payments to all its Sub-vendors / Sub-contractors of any tier, and shall take all proper precautions to prevent the imposition of any lien or charge against any property of the Buyer/ Company and to indemnify, defend and hold the Buyer / Owner harmless against any and all claims, demands, actions, suits, proceedings and judgments which may be brought or secured against the Buyer / Owner by reason of the Supplier's failure to make payments under any of the sub-contracts / purchase orders to its Sub-vendors / Sub-contractors.

Continue..

L.C.: 11.09.2025 11:58:05



LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - II
Page No: 26 of 30

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

Breach of law

Supplier shall defend, indemnify and hold harmless Buyer / Owner from and against any claims including libels, maritime liens and other liens, claims, charges, encumbrances, suits or penalties which may be #led on or levied upon Buyer / Owner or their associates, employees, due to any breach of any Applicable Law (including but not limited to Applicable Economic Sanctions Laws and Regulations, Applicable Export Control Laws and Regulations, other laws, regulations and requirements relating to personnel, health, safety and environmental matters, international maritime laws, regulations or requirements, or any laws restricting the import, use or possession or firearms, explosives, alcohol, pornography or other controlled or prohibited materials or substances) by any member of Supplier Group in connection with the performance of the Work and provision of Supplies under this PO.

Criminal misappropriation or misapplication

Notwithstanding any other provision of this PO, Suppliers shall release and indemnify and hold harmless Owner and Buyer from any and all claims arising from or related to any criminal misappropriation or misapplication by any personnel of Supplier Group of any property, whether tangible or intangible, occurring during the course of or in connection with the performance of the Work and provision of Supplies under this PO. Supplier shall obtain similar indemnities running to Owner and Buyer from each of its Sub-Vendor and Sub#Contractor."

11.27 "COVID Clause:

Supplier acknowledges that it is aware of change in the working conditions that has arisen due to the ongoing Coronavirus situation (COVID19). Supplier while submitting its bid has analysed all the aspects of the present situation of COVID19 including but not limited to - the quarantine requirements of personnel and vessels, social distancing measures, restrictions on transport, requirements of personal protection equipment, testing requirements, requirements of medical insurance etc. The consideration amount under this Purchase Order is inclusive of all such costs arising out of COVID19."

11.27.1 "Notwithstanding anything contained elsewhere in this Purchase Order, the Buyer shall not bear any additional time and costs impact arising out of COVID19. Supplier shall indemnify the Buyer from:

(i) all costs arising out of COVID19 pertaining to the scope of work of the Supplier and

(ii) all claims arising out of Supplier's employees, agents, subcontractors, personnel etc. including but not limited to their medical tests, hospitalisation, medical insurance, transportation, quarantine requirement, accommodation arrangements, stand-by etc.

(iii) All claims arising out due to different notifications from State/Central authorities."

11.28 "The Supplier agrees at all times to indemnify and keep indemnified L&T/Owner/PMC and its officers, servants, agents from and against any and all losses or damage caused at any time to its own property or personnel. It shall hold harmless and keep indemnified L&T/Owner/PMC against -

any third party claims (including but not limited to property loss and damage, personal accident, injury or death of any person)

any and all losses arising directly or indirectly from acts of Supplier, its affiliates, sub-suppliers or any of their respective personnel during performance of obligations under the PO.

any and all losses, arising directly or indirectly from or incurred by reason of claims or sanctions or penalties imposed by any governmental authorities or others for any actual or asserted failure of Supplier to comply with any applicable law or applicable consent(s), sanction(s) and/or authorization(s) or with any rules or regulations applicable to it

any and all losses, arising directly or indirectly from or incurred by reason of failure of Supplier to pay any taxes or any amounts in respect thereof."

11.29 Other Terms & Conditions

Data Protection and Privacy: The Supplier shall comply with all applicable data protection and privacy laws and regulations. The Supplier shall ensure that any personal data processed in connection with the Purchase Order is handled in accordance with applicable laws and regulations. The Supplier shall indemnify and hold the Buyer harmless from any claims, damages, or penalties arising from the Supplier's breach of data protection and privacy obligations.

Anti-Bribery and Corruption: The Supplier shall comply with all applicable anti-bribery and anti-corruption laws including the Prevention of Corruption Act, 1988, and any other relevant legislations and regulations amended from time to time. The Supplier shall not offer, give, or receive any bribes, gifts, or other inducements in connection with the execution of this Purchase Order. Any breach of this clause shall entitle the Buyer to terminate the Purchase Order with immediate effect and claim damages.

Intellectual Property Rights: The Supplier shall ensure that all goods and services supplied under this Purchase Order do not infringe any third-party intellectual property rights. The Supplier shall indemnify and hold the Buyer harmless from any claims, damages, or expenses arising from any infringement or alleged infringement of intellectual property rights.

All intellectual property rights, including but not limited to patents, copyrights, trademarks, and trade secrets, created or used in the performance of this contract shall remain the property of the respective party. The Supplier grants Buyer (L&T) a non-exclusive, royalty-free license to use any intellectual property necessary for the completion and operation of the project.

Compliance with Laws and Regulations: The Supplier shall comply with all applicable laws, regulations, and standards in the performance of its obligations under this Purchase Order. This includes, but is not limited to, labor laws, tax/custom laws, environmental laws, and safety regulations. The Supplier shall indemnify and hold the Buyer harmless from any claims, damages, or penalties arising from the Supplier's non-compliance with applicable laws. Any breach of this clause shall be considered a material breach of the contract.

Ethical Conduct: The Supplier shall conduct its business in an ethical manner and in accordance with the highest standards of integrity and professionalism. The Supplier shall ensure that its employees, agents, and subcontractors adhere to these standards in the performance of their duties under this Purchase Order. Supplier shall comply with the terms and conditions of Buyer's Supplier Code of Conduct available at Buyer's website.

Sustainability and Environmental Responsibility: The Supplier shall adopt sustainable practices and minimize the environmental impact of its operations. The Supplier shall comply with all applicable

Continues..

L.C.: 11.09.2025 11:58:05



LARSEN & TOUBRO

LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - II
Page No: 27 of 30

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

environmental laws and regulations and shall take all necessary measures to prevent pollution, reduce waste, and conserve resources.

Audit Rights: Notwithstanding any other provision of this PO, Contractor shall have the right to audit all of Vendor's records for the purpose of verifying compensation paid for terminated Work, including Lump Sum and Work Unit Basis compensation paid. The Supplier shall provide access to all relevant records and cooperate fully with the Buyer's audit team. Any discrepancies or non-compliance identified during the audit shall be rectified by the Supplier at its own cost.

Business Continuity and Disaster Recovery: The Supplier shall have in place a business continuity and disaster recovery plan to ensure the uninterrupted supply of goods and services under this Purchase Order. The Supplier shall provide a copy of this plan to the Buyer upon request and shall notify the Buyer immediately in the event of any disruption to its operations.

Subcontractor Approval: The Supplier shall not subcontract any part of its obligations under this Purchase Order without the prior written consent of the Buyer. The Supplier shall remain fully responsible for the performance of its subcontractors and shall ensure that they comply with all terms and conditions of this Purchase Order.

Prior Agreements: This PO supersedes all previous contracts, correspondence, and understandings between the Parties concerning the subject matter hereof and constitutes their entire agreement and understanding in relation to the performance of Work / provision of Supplies as stated herein. The Parties shall not be bound by, or be liable for, any statement, representation, promise, inducement, or understanding of any kind or nature not recorded in this PO or its subsequent amendments and Change Orders.

No Release The obligations and liabilities of the Supplier under this PO shall not be released, diminished or in any other way affected by any enquiry, direction, inspection, comment, consent, sanction, acknowledgement, confirmation, approval, or advice made or given by or on behalf of Buyer / Company, any Buyer/ Company representative or lenders, a Buyer's financiers (including any of their nominated entities), or any of their respective employees, servants, or agents; or any failure to enquire, direct, inspect, comment, consent, sanction, acknowledge, confirm, approve, or advise, whether or not such act or omission might give rise to an independent liability of any such person.

Invalidity if any one or more of the provisions contained in this PO is held as invalid, illegal or unenforceable in any respect under any Applicable Law, the validity, legality and enforceability of the remaining provisions contained in this PO shall not in any way be affected or impaired.

Independent Contractors The Parties to this PO are independent contractors and have entered into this agreement for the execution of Work / provision of Supplies on a principal-to-principal basis. Neither Supplier nor any member of the Supplier Group shall be deemed to be servants, agents, or employees of the Buyer.

Survival The provisions in relation to Guarantee/Warranty, Patents and Royalties, liabilities, Indemnity, Governing law and Dispute resolution, infringement of IPR and Confidentiality as stated in this Purchase Order shall survive its expiry or early termination.

Payment Of Costs, Expenses And Damages Payment of costs, expenses and damages to the Buyer shall not release the Supplier from its obligation to carry out and complete the work in accordance with the provisions of this Purchase Order and/or to discharge its obligations and responsibilities arising of this Purchase Order, nor prevent the Buyer from exercising its right to terminate the Purchase Order in accordance with Article 11.10.2.

Standards The goods and services must meet the technical specifications# standards. If no standard is mentioned, they should follow the Owner's/manufacturer's/licensor's standards.

Cooperation with other contractors The Supplier must not hinder other contractors and should facilitate their work. The Supplier should cooperate and share technical information with the Buyer/Owner and other contractors. Supplier must comply with all safety measures at the Supplier's expense.

Repeat Order In case of additional requirement, Supplier shall confirm to supply as per Unit Rate mentioned in the price schedule. Delivery schedule of such repeat order shall be prioritised by Supplier to enable L&T to meet project requirement.

11.3 Terms & Conditions for Supplier's Supervision of Erection, Commissioning & Performance Tests and for Training of Owner's Personnel (as applicable)

A The per diem rates shall be inclusive of cost of Boarding & Lodging (at Site or during transit), travel during Mob and Demob, daily to & fro travel to Site, communication cost, overseas & local telephone calls, insurance, pocket money & all other incidental expenses.

Per Diem Rates shall be inclusive of all taxes, duties, levies including the income tax / withholding taxes, which are required to be withheld by LTHE for the services rendered in India.

Per Diem Rate for Year 2025 -- Physical Visits -- INR XXX

Per Diem Rate for Year 2026 -- Physical Visits -- INR XXX

Per Diem Rate for Year 2027 -- Physical Visits -- INR XXX

Per Diem Rate for Year 2028 -- Physical Visits -- INR XXX

Per Diem Rate for Year 2025 -- Remote Visits/Supervisions -- INR XXX

Per Diem Rate for Year 2026 -- Remote Visits/Supervisions -- INR XXX

Per Diem Rate for Year 2027 -- Remote Visits/Supervisions -- INR XXX

Per Diem Rate for Year 2028 -- Remote Visits/Supervisions -- INR XXX

To & Fro Travel (Economy Class Air Fare / II AC Train Fare) to Project Site shall be reimbursed extra at actuals by LTHE.

Above Per-diem rate is also valid for Sub-supplier visit during Erection, Commissioning & Performance test at Project Site.

The Per diem rate for day /Mandays shall not be payable/considered, if Supplier representative(s) are required to be "Quarantined" at site as per the guidelines of the Local Authorities / LTHE / Owner HSE requirement etc.

Continues..

L.C.: 11.09.2025 11:58:05



LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - II
Page No: 28 of 30

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

B The Per Diem charges shall be applicable from the day the engineer reports to Site-In-Charge to the day the engineer leaves the site.

C Non-work days, such as Sunday or any holiday observed by OWNER / LTHE falling during the period of work shall not be considered for calculation of number of days payable, unless such days are certified as work days by LTHE#s site in-charge.

D The per diem rate mentioned above is considering 10 hours of working per day (excluding lunch hours) for 6 working days in a week. No overtime shall be paid for working beyond 10 hours in a day. Working on Sundays / Holidays shall be paid at normal per diem rate mentioned above. Time consumed during travelling to & fro between hotel / lodging location to site shall not be considered under working hour.

E Supplier will bring along Special apparatus / instrument / measuring devices etc., duly calibrated (if required) to carry out adjustment/setting etc. and to perform various tests as required.

F In the event the duration of stay of Supplier's supervision is solely attributable to the Supplier, (i.e. due to re-work or repair, waiting for material or instructions from head office etc.) then all costs incurred by the Supplier(s) for those number of days shall be to account of the Supplier.

G The supervision expert shall be mobilized within 10 days of notice given to Supplier.

H Supplier shall take all necessary Insurance Policies as applicable to cover Supplier#s owned, leased or hired equipment, tools, vehicles etc. Necessary Insurance such as Workman compensation policy and/or ESI policy and/or Employer#s liability policy as applicable, for the personnel deputed to site by Supplier shall be taken by the Supplier and the charges for the same shall be to Supplier#s account and is included in the per diem rates mentioned above. Third Party Liability Insurance (TPL) to be procured by Supplier shall cover legal liability for bodily injury to loss of life of and/or damage to and loss of properties of the third person party arising out of the performance by the Supplier of the works.

I "Supplier shall submit the following at least 4 weeks prior to deputation of the engineer :-

- Check-list of all activities / resources (manpower, material, machinery) to be conducted / arranged by LTHE before the arrival of engineer at project site.
- Detailed Bar Chart highlighting all the activities with duration for Erection / Installation / Testing of the Equipment.
- List of Tools & Tackles, measuring Instruments and manpower resources required for Erection / Installation / Testing which are to be arranged by LTHE."

J Payment for Supervision of erection & commissioning shall be effected by Wire Transfer against time sheets duly certified by LTHE#s site in-charge within 60 days of submission of monthly Invoice with following correct supporting documents like:

- # Invoice of Flight & Boarding Pass or Train Ticket.
- # Time sheet duly certified by site in-charge.
- # Copy of MOM made at site.
- # Copy of Insurance Policy for Personnel and/or equipment/tools as applicable.

The Supplier shall adhere to the Billing Instructions issued by LTHE while submitting Service Invoice.

Applicable Goods and Services tax (SGST/UTGST, CGTS, IGST) on Services shall be paid by LTHE, subject to following terms #

- Suppliers are registered under GST and have valid GST registration at all the time.
- Supplier shall submit GST tax invoice as per applicable SGST / UTGST / CGST / IGST Act, 2017 and corresponding GST rules
- Supplier shall discharge the applicable CGST & SGST/UTGST / IGST liability, as the case may be, and file GST Returns within the stipulated time.
- Applicable GST value & rate to be indicated in tax invoice, as per relevant GST Act / Rules.
- Credit and Debit note to be raised as per the relevant provision of GST Act and rules made thereunder.
- Any increase in GST Rate over and above the applicable rate, whether arising out of statutory changes or otherwise beyond the "Contractual Delivery Date" (CDD) shall be to Supplier#s account.
- Any increase in the GST Liability or any other duties, taxes and levies due to wrong classification of SAC (Services Accounting Code) by the Supplier shall be to Supplier#s account.
- In the event the Supplier does not discharge the applicable GST in time as per the GST payment rules and input tax credit is not available to LTHE as on the date of payment to Supplier, the Company (LTHE) reserves the right to retain such GST amounts from the Supplier#s Payments and release the same only after evidence of tax payment by the Supplier is furnished.
- Supplier shall furnish the details of returns filed against invoice issued to LTHE as evidence of his tax liability discharge.

K Health, Safety & Environmental Protection Procedures (HSE)

The Purchaser and the Supplier agree to abide to all HSE norms as established by LTHE, PMC, Owner and laws of India.

L Other Terms

The Supplier shall carry out the Technical Field Services using sufficient persons having adequate knowledge of the operations to be carried out (including the methods and techniques required, the hazards likely to be encountered and methods of preventing accidents) for the satisfactory and safe performance of the Technical Field Services.

The Supplier shall employ (or cause to be employed) only persons who are careful and appropriately qualified, skilled and experienced in their respective trades or occupations in connection with the works. LTHE/ PMC / OWNER may remove (or cause to be removed) from the site or from involvement in the works, any employee, who in the opinion of LTHE site in-charge/PMC/Owner :

- a. persists in any misconduct
- b. is incompetent or negligent in the performance of his duties

Continue..

L.C.: 11.09.2025 11:58:05



LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - II
Page No: 29 of 30

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

- c. fails to comply with any provisions in the P.O. deemed important to LTHE/OWNER, acting reasonably for
d. persists in any conduct which is prejudicial to safety, health, or the protection of the environment.
If appropriate, the Supplier shall then appoint (or cause to be appointed) a suitable replacement person at its own cost.

Definitions / Abbreviations

"OWNER/

COMPANY" Rashtriya Chemicals & Fertilisers Limited (RCF)

Licensor INCRO S.A. (Spain)

Project 1200 MTPD (DAP Basis) NPK Project and Associated Facilities

Order "Shall mean the totality of Contract between L&T and Supplier and shall include the following in the listed order of precedence:

- (a) The Purchase Order and any Amendments thereof
(b) Letter of Award / Letter of Intent
(c) Agreed Terms and Conditions of Purchase, and any mutually agreed amendments to the Agreed Terms and Conditions
(d) Correspondences exchanged between the Parties i.e.(Technical Queries, Commercial Queries and responses thereof by the Contractor).
(e) Approved ITP
(f) MATERIAL REQUISITION / Technical Specifications / Drawings / Applicable Code & Standard.
(g). Description of Bill of Quantity
(h) RFQ & its Amendments / Addendums

Any exclusions, clarifications etc. exchanged between the parties shall stand withdrawn unless otherwise mutually agreed, duly recorded and accepted by Buyer in writing.

"

Mechanical Completion "Shall mean installation of all Supplies by Supplier thereafter completion of all activities as per approved specification and drawings/acceptable International Engineering practices, to be performed including pre-commissioning and start-up activities, completion of all punch-list items, as provided by OWNER/PMC and/or Process Licensor and/or statutory bodies like IBR, OISD, CCE, TAC, Factory Inspector, Pollution Control Authorities etc.

Mechanical Completion shall be certified to Supplier after L&T receives Mechanical Completion Certificate from Owner/PMC"

Commissioning Shall mean pressing into service of the plant(s), Equipment(s), Vessel(s), Pipeline(s), Machinery (ics) and systems & sub-systems comprised within the Unit(s) in accordance with the procedures as approved in the applicable Operating Manual and as per the requirements of OWNER/PMC and/ or Licensor after successful testing, pre-commissioning and trial run of the Unit(s).

Performance Test Shall mean the test or series of tests to be carried out by the SUPPLIER/CONTRACTOR to prove the contractual guarantees as per the requirement of OWNER/ PMC/ Licensor / L&T. (PGT/ PGTR).

Code-1 Shall mean final approval of drawings/documents incorporating all comments of the OWNER / Licensor / PMC / L&T.

Code-2 Shall mean tentative approval of drawings / documents by OWNER / Licensor / PMC / L&T with comments to be incorporated by Supplier, with the intent that subject to incorporation of and/or rectification in accordance with such comments, construction / manufacture can proceed based on commented drawings / documents pending their re-submission and grant of Code-1.

Code-3 Shall mean that on review of the drawings/documents by the OWNER / Licensor / PMC / L&T the same have not been found in accordance with the applicable codes, standards, design basis and contractual stipulations and must therefore be re-submitted for review and approval after appropriate correction and/or re-preparation.

Code# R Shall mean Document is retained for records. Proceed with manufacture / fabrication.

Parties Shall mean the Parties executing this Contract, viz. L&T and the Supplier.

Party Shall mean one of the Parties.

AI Authorised Inspector (ASME)

TPIA Third Party Inspection Agency

LOI Letter of Intent

PO Purchase Order

DLP Defect Liability Period

ITP Inspection Test Plan

Continue..

L.C.: 11.09.2025 11:58:05



LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - II
Page No: 30 of 30

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

SDR Supplier Data Requirement
PTR Proven Track Record
VQC / SQC Vendor / Supplier Qualification Criteria
MR Material Requisition
PR Purchase Requisition
LSP Logistic Service Provider
PBG Performance Bank Guarantee
KOM Kick Off Meeting
HAZOP Hazard and Operability Study
SIL Safety Integrity Level
Supplier Shall mean the Supplier of Goods and/or Services on whom the Purchase Order is released
Sub-Supplier Shall mean Supplier#s Supplier of any tier
Supplier Group Shall mean Supplier, its Sub-Supplier of any tier, and their respective representatives, but shall not include any member of L&T
POMS Shall mean "Post Order Management System" a digital (web based) portal developed by L&T for information capturing and/or data sharing and/or performing various required activities by Supplier subsequent to LOI/PO issuance.
Free Issued material Shall mean any equipment and/or materials and/or Goods provided by L&T/OWNER.
Package Supplies under this Contract.
Supplies Shall mean the totality of Goods and/or Services by expression or implication required to be supplied by the Supplier within the Scope of Work as per Order.
RFQ Request for Quotation including amendments issued to Supplier and covers instruction to bidders, Terms & conditions, Material requisition and all other documents.
L&T/Buyer Larsen & Toubro Limited
FAT / IFAT Factory Acceptance test / Integrated Factory Acceptance Test to be carried out at Supplier / sub-Supplier facilities / factory as per agreed scope
SAT Site Acceptance Test to be carried out at Project Site as per agreed scope
Day Shall mean Gregorian calendar day unless specified otherwise
QC Quality Control



LARSEN & TOUBRO LIMITED
L&T ENERGY - HYDROCARBON
Technology Centre, North Block -II

PURCHASE ORDER

ANNEXURE - III
Page No: 1 of 1

PO NO. :LTES/75001-83664/BS
PO Date : 03.09.2025

Standard data confidentiality & protection related clauses

1. The Vendor shall not use Larsen & Toubro Limited / Subsidiaries / Associates (Hereby referred as **L&T**) confidential & business sensitive Data for any **purpose** other than the provision of the Supplies or Services and shall return any L&T confidential & business sensitive Data to L&T immediately upon request at any time providing such return does not prevent the Vendor from fulfilling its obligations under this Contract.
2. The Vendor shall **retain** L&T confidential & business sensitive Data **no longer** than is necessary for the provision of the Supplies or Services, in accordance with the relevant Data Protection Legislation and such instructions as L&T may provide from time to time. Upon expiry or termination of this Contract for whatever reason, the Vendor shall immediately destroy (if in soft form) / return to L&T (if any hard copies) all confidential & business sensitive Data and certify that no copies have been made or retained by the Vendor or any third party acting on its behalf.
3. The Vendor shall **Process** L&T confidential & business sensitive Data only on the instructions of L&T and to the extent necessary for the performance of this Contract.
4. The Vendor shall not **modify, amend, or alter** the contents of the L&T confidential & business sensitive Data except as required or permitted by this contract or with L&T's prior formal **consent**.
5. The Vendor will transparently share locations of data storage with Customer. In case, Customer has concerns about data storage in specific geographies/locations, The Vendor will take appropriate steps to resolve customer's concerns. The Vendor will take adequate measures to protect customer data **shared with supplier** against information security threats and would bear the cost associated with addressing a data leak/loss of data integrity.
6. The Vendor shall implement the appropriate **technical and organizational measures** to protect L&T confidential & business sensitive Data against accidental or unlawful destruction or accidental loss, alteration, unauthorized disclosure or access, and against all other unlawful forms of processing, and provide to L&T a written description of the measures taken when requested by L&T.
7. The vendor shall comply with all relevant provisions of any L&T codes of practice notified to the Vendor from time to time and the **Data Protection requirements from applicable regulations**.
8. The vendor shall keep all L&T confidential & business sensitive Data secure and confidential, act only on L&T's instructions with respect to it, and comply with such further reasonable requirements from time to time of L&T for the security of it.
9. The vendor shall ensure that, of the Vendor's staff, only those of the Contract Personnel who need to have **access** to the L&T confidential & business sensitive Data are granted access to the data only for the purposes of the performance of this Contract and the Contract Personnel are informed of the confidential nature of the L&T confidential & business sensitive Data and comply with the obligations set out in this Condition.
10. The vendor shall notify L&T in the event that it receives **a request or notice** from any data subject to have access to that person's L&T confidential & business sensitive Data held by it and will provide L&T with full co-operation and assistance in relation to any complaint or request including providing L&T with any relevant L&T confidential & business sensitive Data it holds within the timescales provided by the request or notice or as otherwise required by L&T.
11. The vendor shall abstain the sharing of L&T confidential & business sensitive data at the initial onset however if required the vendor will need to obtain L&T's prior formal consent before transferring L&T confidential & business sensitive Data to any subcontractors in connection with the provision of the Supplies or Services.
12. The vendor shall in respect of L&T confidential & business sensitive Data transferred by L&T to the vendor or acquired by the vendor from L&T's systems to a country outside of India shall be on the basis of the Legislation issued by the Indian Government, or such other data **protection model contract terms** as may be agreed between the Parties from time to time, except where the relevant Data Protection Legislation provides for a derogation from this requirement. Any breach of this Condition by the Vendor shall be deemed to be a material breach of the **Contract and the Vendor shall indemnify** L&T against any costs, losses, damages, proceedings, claims, expenses or demands incurred or suffered by L&T which arise as a result of such breach.
13. The Vendor shall not **disclose** or allow access to any L&T confidential & business sensitive data to any person placed by the Vendor for managing performance of contract i.e. person who is not involved in operational activities.
14. The Vendor shall, upon L&T giving reasonable **notice**, allow L&T or its nominated representatives such access to its premises, Information and records and those of its agents subsidiaries and sub-contractors, as may be reasonably required by L&T from time to time to assess the Vendor's and/or Contract Personnel's compliance with this Condition.
15. During the Term of the Agreement, L&T shall reserve the **right to audit** for the Vendors to check the reasonable security practices followed within the organization to achieve satisfactory assurance that the associate will appropriately safeguard the information.
16. The vendor should maintain system/application logs and accesses being held for at least period of three months for audit or investigation purposes.
17. For all personnel to whom access is granted to L&T Systems having L&T confidential & business sensitive data, information or network, the Vendor shall:
 - o Ensure each individual has a unique user identification and password known only to such individual for his/her sole use
 - o Allow Access using a secure login process
 - o Grant access on least privilege basis
 - o Ensure that audit logs are generated to record user activity and security-relevant events and securely managed and retained with nil ability on the part of the Vendor to allow any un-authorized access or amendment to the audit logs. Such audit logs must be maintained for future reference for a period of at least three months
18. Vendor & it's subcontractors shall comply with L&T Third party information security policy requirements including the above ones.

L.C.: 11.09.2025 11:58:05



☐ Short Delivery
 ☐ Only for Engg. Activities
☐ Bought out valves
 ☐ Others, Please Specify

		Date	29.09.2025
		CORB Reference	DM25066L
Customer / Buyer Name	LARSEN & TOUBRO LIMITED	CEC Quote Number with Date	250702-0400-PA Dtd 28.08.2025
Site / End User Name & Country	Rashtriya Chemicals and Fertilizers Limited, India	Application Engineer SPOC	Karthikeyan Sekar Satheshkumar Eagambaram
Buyer PO Number/Date	LTES/75001-83664/BS Dtd 03.09.2025	Outside Sales Engineer/Manager	Ashokvijay R
Buyer PO/LOI Received Date	12.09.2025	PO Value	INR 9,99,750
Agreed / Approved Payment Terms	Refer PO clause no. 5.0	1)PO Delivery Date 2)Agreed Delivery Date	26.03.2026
Agreed Incoterms /Shipping Terms	CPT, RCF Thal Project Site	Margin	22%
LD Clause	@0.5% of the undelivered portion of Order value	Agent Name & Commission	NA
Ship to Address with GST#:	Rashtriya Chemical and Fertilizers Limited Thal, Thal-Vaishet, Alibag # 402 208 State: Maharashtra, India GSTIN: 27AAACL0140PEZ6	Bill to Address with GST#:	Larsen & Toubro Limited Divison Name: L&T Energy Hydrocarbon 14th Floor, AMN Tower, AMN Tower, Jogeshwari - Vikroli Link Road, Powai Campus, Gate 3, Mumbai Suburban, Maharashtra, 400072

CIRCOR PROPOSAL/QUOTE

Price Schedule



Project	1200 MTPD (DAP Basis) NPK Project
Customer	L&T Energy Hydrcarbon
End User	Rashtriya Chemicals andFertilizers Limited
Destination	INDIA
Our Quote Ref	250702-0400-PA
Date	28-Aug-25
Rev	3

Technical Details																	Price Details (INR)			
S.No	Tag Number	Valve/Item Type	Model Name	Body Size	Body Rating	End Conn	Body Mat	Trim Type	Cage / Plug Type	Trim Char	Travel (mm)	Actuator Type	Fail Action	Handwheel	Others	Accessories	Qty	Unit Price (INR)	Total Price (INR)	
1	D5-9801	DSH	CIR 3230	3"	300#	RF	A106/A105	SL Nozzle	-	-	-	None	-	-	-	N.A	1	₹ 84,023	₹ 84,023	
2	TCV-A1-9802	Globe	CIR 3100	1"	300#	RF	A105	Unbalanced	Contour Plug	Equal%	20	Spring & Diaphragm	Close	Yes - Side	-	Refer Spec Sheet	1	₹ 2,26,571	₹ 2,26,571	
3	D5-9805	DSH	CIR 3220	3"	150#	RF	A106/A105	Fixed Nozzle	-	-	-	None	-	-	-	N.A	1	₹ 32,763	₹ 32,763	
4	TCV-A1-9806	Globe	CIR 3100	1"	300#	RF	A105	Unbalanced	MF Plug	Modified	25	Spring & Diaphragm	Close	Yes - Side	-	Refer Spec Sheet	1	₹ 2,06,968	₹ 2,06,968	
5	Start-up & commissioning spares																Refer Spec Sheet	1	₹ 15,829	₹ 15,829
6	Mandatory spares (Consumption within 2 years)															-	Refer Spec Sheet	1	₹ 4,33,596	₹ 4,33,596
																	6	Total	₹ 9,99,750	

Remarks:
1. Scope: Valve + Actuator and DSH along with accessories as mentioned in CIRCOR Datasheet.

For CIRCOR Flow Technologies India Pvt Ltd

Karthikeyan Sekar
Application Engineering

No.	T&C Clause	CIRCOR Confirmation
	Advanced Bank Guarantee (ABG's) and Performance Bank Guarantee (PBG's) shall be issued as per L&T's format attached in this tender. BG's shall be issued from Indian Branch of one of the Banks listed in L&Ts format. BG's issued by other Banks will not be accepted	Not Applicable
1.00	Scope of Work / References	
1.10	Scope of work shall be strictly as per the Material Requisition (MR) enclosed with enquiry document, subsequent addenda, correspondence (Technical Queries, Commercial Queries etc.), discussions and MoMs. Any exclusions, clarifications etc. stands withdrawn unless otherwise mutually agreed, duly recorded and accepted by L&T prior to placement of the Order.	Agreed
2.00	Prices & Price Basis	
2.10	Price shall be on Ex-works basis inclusive of packing and loading onto transporter's vehicle. Price in full or in part are firm and fixed with no escalation whatsoever. Variation in prices of raw material or bought-out items shall not be admissible. Any variation in price on account of exchange rate fluctuations, changes in taxes/duties/law, changes in Codes and standard, increase in wages, Commodity rates, labor rates, fuel prices etc. shall not be admissible. Prices to be submitted in Indian Rupees (INR) only and shall be valid for minimum 90 days from the date of offer prior to the Purchase Order	Price basis agreed for CPT site basis
2.20	Appointment of Third-Party Inspection Agency (TPIA) for performing inspections as per approved Inspection Test Plan (ITP), Quality Procedures/Specifications and Material Requisition at Supplier's works & Sub-Supplier works (Requiring Final Inspection Release Note as per ITP/ agreed with L&T) shall be Supplier's scope. Charges for the same shall be borne by Supplier, including coordination with Third Party Inspection Agencies for timely Inspection shall be in Supplier's scope. TPIA Inspection and testing at sub-suppliers works shall be in supplier's scope (unless otherwise mutually agreed). TPIA Inspection and testing charges for any new procedure qualifications and Material testing shall be under supplier's scope. TPIA chosen by Suppliers for the TPIA inspection under their scope shall be strictly from following approved TPIA's: 1) PDIL 2) LRQA 3) TUV India Pvt. Ltd. 4) Bureau Veritas (India) Pvt. Ltd. 5) DNV 6) SGS 7) TUV Sud South Asia Pvt. Ltd 8) Certification Engineers India Ltd (CEIL) 9) Engineers India Limited (EIL) OR other reputed Inspection Agency may be selected with prior approval from L&T/PMC/Owner. Cost towards repeat tests and inspection due to failures, repairs etc. for reasons attributable to the supplier/sub-supplier shall be borne by the supplier. Supplier TPIA Inspection/L&T Inspection/ Inspection waiver does not relieve supplier/manufacturer/sub-suppliers from contractual obligations and their responsibilities to supply the item(s) concerned in full compliance with the requirements of the Purchase Order and project specifications, applicable codes and standards & approved Quality Plan. The Owner has the right to inspect and test goods to ensure they meet contract specifications. Inspections can occur at the Buyer's or Supplier's premises or at the final destination. The Supplier must provide necessary facilities and assistances for these inspections. Delays in approval or testing are the Supplier's responsibility. The Supplier must promptly provide copies of all test results to the Buyer	Agreed
2.30	Prices are inclusive of following charges:-	
2.30.1	Transportation saddles, templates/gauge plates, spider beams, transportation Stools etc., as applicable.	Agreed
2.30.2	Testing / Trial Run / FAT/ IFAT as per RFQ and approved ITP at Supplier's works, sub-Supplier's works & Site	Agreed
2.30.3	a) Third-Party Inspection charges for inspection of balance items (not covered under clause 2.2) as per Inspection Test Plan (ITP) at Supplier/sub-Supplier's works shall be in Supplier's scope. b) Raw materials inspection & certification requirement i.e. EN10204 Type 3.2/3.1, as applicable to be performed through project approved TPIA at Mill / Supplier locations. Including any additional check testing at approved laboratory to comply with PO/MR requirements	Agreed

No.	T&C Clause	CIRCOR Confirmation
	c) Inspection & Certification required as per Indian Boiler Regulation (IBR), ASME AI Inspection/Code Stamping and National Board of Boiler & Pressure Vessel Inspectors (NBBI) Registration & and National Board Registration (NBR) as applicable. d) Third-party inspection charges to perform check testing of raw material in laboratory with TPIA witness in case raw materials (Plate/ Pipe/ Fitting/ Forgings etc.) is procured from Approved Traders / Stockiest & with mill test certificate EN10204 Type 3.2/3.1. e) Third-party Inspection Charges at Supplier/sub-Supplier works to perform New/ Fresh Welding Procedure/ personnel Welder Performance Qualifications for welding, NDE, Painting, Refractory, Laboratory Testing Charges shall be in Supplier's scope. In case of any failure/rejection in supplied item/material observed at site, cost of failure analysis (including lab testings, re-inspection) shall be borne by Supplier. f) For indigenous suppliers, for items deviating IBR requirements, inspection shall be carried out by IBR authorities only.	

No.	T&C Clause	CIRCOR Confirmation
	g) In case of any failure/rejection in supplied item/material observed at site, subject item/material will be sent to the L&T's approved labs for failure analysis. The cost of this failure analysis shall be borne by Supplier, if failure/rejection is attributed to Supplier.	
2.30.4	Mandatory Spares - as per list specified in MR.	Agreed
2.30.5	2 years O&M spares: Supplier to quote optional price valid till 30-Jun-2027 as specified in the MR. If the list is not furnished in MR, the same shall be provided as per Supplier's Recommendation in SPIR format provided by L&T. OWNER reserves the right to place the Order for such O&M spares	Agreed
2.30.6	Spares for Start-up / Erection & Commissioning/Performance Guarantees as specified in the RFQ. If the list is not furnished in RFQ, the same shall be provided as per Supplier's Recommendation. If some Spares, which are considered "Not applicable or not considered in correct quantity as per philosophy" by Supplier becomes applicable directly or becomes applicable by having equivalent function the quantity is corrected based on spares philosophy at the time of order execution, Supplier shall supply them in line with Mandatory Spares Philosophy at no extra cost and / or time implications to L&T.	Agreed
2.30.7	Special Tools & Tackles required for Erection & Commissioning and performance guarantees as specified in the RFQ. If the list is not furnished in RFQ, the same shall be provided as per Supplier's Recommendation.	Not Applicable
2.30.8	Training Charges (if applicable) for the complete package, individual components as mentioned in MR. These shall include charges for training at Supplier/Sub-supplier Works and / or at Project site, training manual, etc. Training charges shall be quoted as Lump sum or Per Diem basis.	Not Applicable
2.30.9	Charges for documentation (hard & soft copy) for approval & as-built etc. in requisite no. of sets as per RFQ. In case the design of any equipment / ordered items is in L&T scope, all such design documents shall be shared to Supplier and all such documents shall be included as part of Final Documentation (soft and hard copies) without any cost implication to L&T.	Agreed
2.30.10	List along with quantities for all first-fills for all equipment i.e. Lubricating oils, Grease, Silicon Oil, chemicals, consumables etc. in addition to commissioning and start-up requirement for first fill + six months normal operation after commissioning. Supply shall be by L&T	Not Applicable
2.30.11	NA	
2.30.12	Supplier confirms acceptance of following as MINIMUM across the Table Meetings at L&T / Detail Engineering Consultant / PMC / Owner Office with presence of competent team member :- a) Kick Off Meeting (2 of days) b) 1st Design / Document Review Meeting (3 of days) c) 2nd Design / Document Review Meeting (3 of days) d) Model Review Meetings (30%, 60%, 90% - 2 day each) e) Hazop / SIL Review Meeting (2 day each) Visit Schedule shall be as decided by L&T and conveyed to Supplier. Supplier to depute competent team member for all above across the table meetings. All costs associated for attending such across the table meetings at L & T Mumbai are included in base price submitted by Supplier.	Not Applicable
2.30.13	Providing information and performing required activities in POMS for progress reporting, drawings and document submission & review cycle, inspection calls & TPIA co-ordination, logistics co-ordination, etc as per the project requirements. Performing required activities in SAP Ariba for P.O. Acknowledgement, Shipping notification, Invoicing, etc.	Agreed

No.	T&C Clause	CIRCOR Confirmation
2.40	Taxes and Duties	
2.40.1	Raw Materials / Components imported by Indigenous Supplier to their works. For all raw materials / components sourced by the Supplier/Sub supplier, Supplier/Sub Supplier shall not be entitled for any concessional import duty (whether in India or any other location) for components / raw materials being imported by the Supplier and sent to their works / their sub-supplier works. Any such imported components shall be customs cleared by the Supplier after paying the applicable customs duties All import duty and other taxes & duties on such raw material / components shall be in the scope of the Supplier and paid by the Supplier. Statutory variation in taxes & duties including FTA, CEPA etc. on raw material / components shall be to Supplier's account at all times. L&T/OWNER will not bear any liability towards payment of Safeguard Duty, Anti-Dumping Duty, Protective Duty and applicable IGST on same Or Countervailing Duty on subsidized articles or any other such duties of Customs imposed by the Government under Customs Tariff Act, 1975 applicable on import of any materials to India for the subject work. Therefore, the Suppliers are expected to source such materials required for the execution of work only from domestic producers in India. To make Price competitive, Supplier are requested to consider free trade agreement/CEPA etc. for import of Raw material, wherever applicable. Supplier to note that all responsibility of these import and procedures shall be responsibility of Supplier. Imported Raw Material / Finished product shall not be despatched directly to Site. These will be sent to supplier works and then despatched as local supply to Site	Agreed
2.40.2	Finished Goods shipped from Supplier Works: For all raw materials / components sourced by the Supplier, all import duty and any other taxes & duties on such raw material / components shall be in the scope of the Supplier and paid by the Supplier. Statutory variation in taxes & duties on inputs (raw material / components), shall be to Supplier's account at all times. The Supplier shall adhere to the Billing Instructions issued by L&T (to be issued before despatch). Applicable Goods and Services tax (SGST/UTGST,CGST,IGST) on Supplier's Goods and/or Services shall be paid by L&T, against documentary evidence provided by Supplier subject to following terms – - Supplier is registered under GST and have valid GST registration at all the time. - Supplier shall submit GST tax invoice as per applicable SGST / UTGST/ CGST / IGST Act, 2017 and corresponding GST rules - Supplier shall discharge the applicable CGST & SGST/UTGST / IGST liability, as the case may be, and file GST Returns within the stipulated time. - Applicable GST Amount & rate to be indicated in tax invoice.as per relevant GST Act. - Credit and Debit note to be raised as per the relevant provision of GST Act and rules made thereunder. - Any increase in GST Rate over and above the applicable rate, whether arising out of statutory changes or otherwise beyond the "Contractual Delivery Date" (CDD) shall be to Supplier's account. - Any increase in the GST Liability or any other duties, taxes and levies due to wrong classification of HSN (Harmonized System of Nomenclature) / SAC (Services Accounting Code) by the Supplier, within Contractual Delivery Date, shall be to Supplier's account. - In the event the Supplier does not discharge the applicable GST in time as per the GST payment rules, L&T reserves the right to retain the said amount from Supplier's invoice and release the same only after evidence of tax payment by the Supplier is furnished. - Supplier shall furnish the details of returns filed against invoice issued to L&T as evidence of their tax liability discharge. Statutory Variation in Taxes and Duties: Statutory variation in GST mentioned above and any new taxes and duties, within the Contractual Delivery period on finished Goods and/or Services and Goods directly despatched to site from Supplier works shall be to L&T's account. Statutory variation in GST mentioned above and any new taxes and duties, beyond the Contractual Delivery period on finished Goods and/or Services and Goods directly despatched to site from Suppliers works shall be to Supplier's account. Any other statutory variations shall be to Supplier's account. Statutory variation in taxes & duties on raw material / components shall be to Supplier's account at all times. Income tax / GST TDS shall be deducted from the Supplier Invoices / Claims and deposited with respective Govt. as and when applicable.	Agreed

No.	T&C Clause	CIRCOR Confirmation
	Statutory Approvals: Unless otherwise specified, it shall be the Supplier's sole responsibility to obtain all approvals from any authority (except for CRZ clearance) required under any statute, rule or regulation of the Central or State Government concerned with the performance of the Order and/or the contractual Work. The application on behalf of the L&T for submission to relevant authorities along with copies of required certificates shall be prepared and submitted by the Supplier well ahead of time so that the actual construction/commissioning of the works is not delayed for want of the approval/inspection by the concerned authorities. The SUPPLIER shall arrange for the inspection of the works by the authorities and will undertake necessary coordination and liaison required and shall not be entitled to any extension of time for any delay in obtaining such approvals. Any Goods and Services Tax (GST) liability arising in India on account of place of supply of goods and / or services deem to be within India (as per GST provisions) shall be on account of the Supplier. If required, the Supplier will obtain GST registration in India and comply with all GST related requirements in India, including but not limited to provide GST registration certificate, issue of proper tax invoices, uploading of tax returns, and transfer of input tax credit to L&T etc. : Please refer Annexure I "GST Check List" to be ensured for generation of Invoice and Packing list in compliance with GST Act. However, it is sole responsibility of Supplier to ensure total compliance to applicable SGST / UTGST/ CGST Act, 2017 and corresponding GST rules. Statutory approval (if any) including any type of permission for movement of ODC consignments from Supplier's works to Project site, shall be in Scope of Supplier. Supplier shall arrange such applicable approvals in advance so that actual movement of goods is not delayed for want of the approval/inspection by the concerned authorities.	
2.40.3	Supplier shall comply to Tax collected at source (TCS) on Sale of Goods u/s 206C(1H) of Finance Act, 2020 and subsequent amendments. TCS shall form part of the invoice for sale of goods	
3.00	Payment Terms	
3.10	10% of the Basic Order value (excluding taxes and duties) shall be released on fulfillment of below conditions: - Submission of unconditional Purchase Order acceptance. - Approval of Critical drawings / documents viz. PR, P&IDs and GA drawings by L&T / PMC in Code-2. - Submission of Advance Bank Guarantee (@ no cost to BUYER) for advance of equivalent amount	Same as previous PO# LTES/75001-58231/AS
3.20	10% of the Basic Order value (excluding taxes and duties) shall be released on fulfillment of below conditions: - Receipt of major raw materials / Bought out Components at Supplier's Works - Submission of Advance Bank Guarantee (@ no cost to BUYER) for advance of equivalent amount - Approval of Billing Schedule - L&T / OWNER / PMC Approval of FAT AND / OR SAT Procedures for establishing Guaranteed Parameters at Supplier Shop AND / OR Project Site - Delivery of Foundation Templates as applicable - Approval of Spares List (2 Years O&M Spares - SPIR Format, Erection & Commissioning Spares, Mandatory Spares). Format shall be provided by L&T. Supplier shall submit the copy of the TPIA Material Identification & Inspection clearance reports as a backup confirming receipt and acceptance of materials	1) 95% of the Order value shall be released upon receipt of Desuperheaters at project site as per scope of order, after settling L&T's entitlements of Order price discounts and adjustments if any, as mentioned elsewhere and on submission of following documents to L&T: - Signed Commercial Invoices (in Triplicate). - Original GST / Buyer's copy of Tax Invoice (2 Copies). - Copy of GST Registration Certificate (2 Copies). - Lorry Receipt/ Railway Receipt (2 Copies). - Packing List / delivery Challan. - Original Manufacturer Test Certificates duly endorsed by TPIA -4 Copies. - Inspection Release Note by TPIA -2 Copies. - Dispatch Clearance in writing from L&T. - Guarantee/Warranty Certificate stating that the equipment's + spares + accessories supplied against the subject order meet with the guarantee requirements of MR Ref. No. E23001-COM-IN-MRQ-5056, Rev. 0 and relevant points mentioned in TQ closure. - Copy of Email intimation sent to L&T for Insurance. - Copy of e-way bill. - Certification from site of receipt of material in good condition. - Submission of Performance Bank Guarantee (i.e. within 30 days from the date of PO) equivalent to 10% of basic order value to remain valid until Defect Liability Period, i.e., until 04-Feb-2028 plus claim period of 3 months. Performance Bank Guarantee (PBG) shall be furnished as per L&T's format and from L&T approved banks. This Payment shall be made to the Supplier within 60 days from the date

No.	T&C Clause	CIRCOR Confirmation
	All Advance Milestone Payments shall be released on submission of Advance Bank Guarantee for advance for equivalent amount valid until the end of the Contractual Delivery Date Plus 3 months Plus 3 months claim period. Advance Bank Guarantee (ABG) shall be furnished as per L&T's format and from L&T approved banks. In case delivery date is extended due to whatsoever reason, then Supplier shall extend the validity of ABG without any cost implication to L&T till expected delivery date plus claim period of 3 months. In case partial delivery is done, the ABG value may be reduced by the Supplier after obtaining specific approval in writing from L&T.	
3.30	65% of the Basic Order value shall be released after shipment (i.e. Lorry Receipt) on prorata basis as per scope of order, after settling L&T's entitlements of Order price discounts and adjustments if any, as mentioned elsewhere and on submission of following documents to L&T: - Signed Commercial Invoices (in Triplicate). - Original GST / Buyer's copy of Tax Invoice (2 Copies) - Copy of GST Registration Certificate (2 Copies) - Lorry Receipt/ Railway Receipt (2 Copies) - Packing List / delivery Challan. - Original Manufacturer Test Certificates duly endorsed by TPIA -4 Copies - Inspection Release Note by TPIA (2 Copies) - Dispatch Clearance in writing from L&T - Guarantee/Warranty Certificate stating that the equipment's + spares + accessories supplied against the subject order are meeting the guarantee requirements of the P.O. no. XXXX and PR No. XXXX Rev XX (Latest revision of the approved PR to be mentioned) - General Compliance Certificates, issued by Supplier, stating that all terms and conditions of the purchase order until Ex Works shipment have been fully complied with - U-1 / U-2 form as per ASME and As-built drawings signed by AI - Copy of Email intimation sent to L&T for Insurance - Copy of e-way bill In case Performance Bank Guarantee as per L&T's format & from the approved banks as specified by L&T is not issued, 10% of the value of items shipped shall be kept on hold till PBG is received	
3.40	Not used	
3.50	10% of Basic Order value shall be released on submission of Technical document folder (in soft & hard) as per RFQ, acceptance of the same by L&T, and PBG extension for delay / extended delivery beyond original CDD as applicable.	
3.60	Not used	
3.70	5% of the Order value shall be released after Project commissioning and Performance Test Certificate of the Project. For the purpose of this payment, the date for Project Commissioning and Performance Test shall be reckoned as the date certified by L&T Site-in-charge in the Commissioning and Performance Test Certificate which shall be issued upon completion of all jobs, receipt of Final Bill from the Supplier and L&T receives Final Certificate from Owner/PMC, or six (6) months from the date of delivery of material, whichever occurs earlier.	
3.80	All Advance and Retention Payments shall be made to Supplier within 30 Days from receipt of Original Invoice along with all the correct & complete documents specified above by Wire Transfer.	
3.90	Despatch Payments shall be made to the Supplier within 90 days from receipt of Original invoice along with all the correct & complete documents specified above by Wire Transfer.	
3.100	In case partial delivery is done, the ABG value may be reduced by the Supplier after obtaining specific approval in writing from L&T.	

No.	T&C Clause	CIRCOR Confirmation
4.00	Price Discount:	
4.10	For delay in submission of documents/ drawings: In case of delay in submission of drawings/ documents (agreed as milestones), the Order value shall be discounted @ 0.5% for non-achievement of each milestone (irrespective of the extent of delay). Milestones shall be as follows : PR inputs - XX Weeks from LOI GAD - XX Weeks from LOI P&ID - XX Weeks from LOI Equipment Datasheet Curves - XX Weeks from LOI Motor / VFD Datasheet & Curves - XX Weeks from LOI ITP - XX Weeks from LOI In order to be considered as "submission" for the purpose of this provision, drawings and data submitted by Supplier must meet the Purchase Order requirements sufficiently to receive Buyers review "Code 1" (proceed) or "Code 2" (proceed, subject to acceptance & incorporation of comments) . Documents submitted by Supplier but which do not meet Buyer's minimum requirements will be returned with Buyer's "Code 3" (rejected / do not proceed) review code and are considered not received until revised and resubmitted in acceptable form to Buyer	Not accepted
4.20	For delay in delivery of material: In case of delay in supply beyond the Contractual Delivery Date, the price will be discounted @1% of the Order value (excluding taxes & duties) per week of delay or part thereof subject to a maximum of 10% of Order value (excluding taxes & duties)	LD is accepted for delay in delivery beyond agreed delivery term at 0.5% of the basic order value per week subject to maximum of 5% of the basic order value.
4.30	The total Price discount due to clause 4.1 and 4.2 above shall be limited to 10% of Order value. It is further agreed above clause(s) shall not constitute a waiver of any rights of Buyer to damages or other remedies of Buyer under this Purchase Order or otherwise for Supplier's improper performance or default in performance of any other aspect of this Purchase Order. It is agreed by the Parties that the amount corresponding to Price Discount, pursuant to Article 4.30, is genuine pre-estimate of the likely loss to Buyer as a result of Supplier's failure to complete the Work as per the Subcontract/PO Schedule and, as such, should not be considered to constitute a penalty under any applicable laws. Should the Supplier fail to give effect to the imposition of Price Discount pursuant to Article 4.30, the same shall be payable by the Supplier on demand by Buyer. In the event of such failure by the Supplier , the Buyer reserves the right to recover / set off an amount equivalent to the applicable Price Discount out of the sums payable to the Supplier or from the Guarantees or Deposits furnished by the Supplier or the Retention Money retained from the Invoices of the Supplier. Any Extra ordinary delay (beyond 10 weeks from CDD) not attributable to L&T will be considered very seriously and Supplier may be kept under Holiday list for any subsequent enquiries/ RFQ for a period of not less than three years.	Total LD shall be 5% of the basic order value.
4.40	Non-fulfilment of Utility Guarantee parameters (As Applicable): Without prejudice to any other reduction, discount or adjustment in price to which the L&T is entitled to, if the actual consumption of Power /Cooling Water/ MP Steam/LP Steam/ Fuel Gas for the Equipment/Packages exceeds and / or actual generation of MP Steam by Equipment/packages is lower than the Stipulated guaranteed figures of the respective utilities furnished by the SUPPLIER in its offer for the Equipment/Packages, L&T shall be entitled to an adjustment in the lump sum price by way of discount as follows. No benefit shall be passed on to the supplier in case the utility consumption demonstrated by the supplier during guarantee test/s is/are less than the guaranteed figures quoted in the bid. The reduction in price shall be in addition to any price reduction mentioned elsewhere in this document / PO.	Not Applicable

No.	T&C Clause	CIRCOR Confirmation
	A. Reduction in price with respect to power consumption (As Applicable) All items mentioned above shall be performance tested at Supplier works and performance demonstrated. Further, for all the other power consuming equipment /packages as defined in this section, Supplier is required to establish the performance of the equipment / packages during PGTR at site. In case the total KW consumed by the equipment / packages exceeds the stipulated guaranteed value by more than 4%, the subject equipment/Package shall be rejected. However for excess power (kW) consumed over and above the guaranteed/quoted KW to a maximum of four (4%) percent, reduction in overall prices shall be applicable for excess power consumption as per the following formula on extra Power consumption of the equipment & Packages as identified in this section. Reduction in price for Excess Power Consumption $C_{PC} = (KW_{REA} - KW_{REQ}) \times C_P \times 8000 \times D_F$ KW_{REQ} = Guaranteed Power (KW) of the Identified Equipment quoted by the Supplier KW_{REA} = Actual Power Consumption of the identified equipment/package (KW) as observed during Performance Guarantee test run (PGTR) D_F (Discount Factor)= 4.02 C_P = Cost of Electric Power INR 7.35 per kWh 8000= Number of operating hours per year. Power consumption shall be measured at motor terminal. B. Reduction in price for Steam Consumption (As Applicable) During performance tests MP & LP Steam Net Consumption (MT/Hr) by the Equipment/package exceeds the stipulated guaranteed value by more than 5%, the subject equipment/package shall be rejected. However for excess steam consumption over and above the guaranteed Net steam consumption up to a maximum of 5% (five percent), reduction shall be applicable for excess total steam consumption as per the following formula: $C_{Steam\ con} = C_{MPSteam\ con} + C_{LPSteam\ con}$ i. $C_{MPSteam\ con} = (SMEPAC - SMEPQC) \times CSMP \times 8000 \times D_F$ $SMEPAC$ = Actual MP steam Consumption of the identified equipment/packages (MT/hr) as observed during Performance Guarantee test run. $SMEPQC$ = Guaranteed MP Steam Consumption (MT/Hr) quoted by Supplier. $CSMP$ = Price of MP Steam INR 2143 per MT D_F (Discount Factor)=4.02 8000= Number of operating hours per year. $C_{LPSteam\ con} = (SLEPAC - SLEPQC) \times CSLP \times 8000 \times D_F$ $SLEPAC$ = Actual LP steam Consumption in the identified equipment/packages (MT/hr) as observed during Performance Guarantee test run. $SLEPQC$ = Guaranteed LP Steam Consumption (MT/Hr) quoted by Supplier. $CSLP$ = Price of LP Steam INR 1990 per MT D_F (Discount Factor) = 4.02 8000 = Number of operating hours per year. Steam consumption shall be measured individually for each equipment. C. Reduction in price for excess Cooling Water Consumption (As Applicable) For all the Cooling Water Consumers (as specified in the RFQ), in case during performance tests the Cooling Water consumed (M³/Hr) by the equipment/package exceeds the stipulated guaranteed value by more than 5%, the subject equipment /systems/Packages shall be rejected. However for excess Cooling Water Consumption over and above the guaranteed Cooling Water consumption up to a maximum of 5% (five percent), reduction shall be applicable for excess Cooling water consumption as per the following formula. Excess Cooling water consumption $C_{Cooling\ water} = (EC_{CWA} - C_{CWQ}) \times C_{CW} \times 8000 \times D_F$ EC_{CWQ} = Total Cooling Water Consumption (M3/Hr) of the Equipment/package as quoted by the Supplier $ECCWA$ = Actual Cooling Water Consumption(M3/Hr) of the Equipment/Package observed during Performance Guarantee test run 8000 = Number of operating hours per year. C_{CW} = Cost of Cooling water is INR 1.25 per M3. D_F (Discount Factor)=4.02 Cooling water shall be measured individually for each applicable Cooling water users.	

No.	T&C Clause	CIRCOR Confirmation
	In the event of deviation with respect to guarantees as specified above, Supplier is required to rectify the same without any commercial/technical implication. In case of Supplier is not able to rectify the same, equipment(s) not meeting the guarantees shall be rejected and required to be replaced by Supplier without any time and cost implication to L&T. D. Additional Guarantees with respect to Equipment Performance Supplier during the performance of contract is required to carry out hydraulics check and required to guarantee the hydraulics for meeting the throughput & Specification requirement as defined in the MR to meet the hydraulic guarantee of the supplied Equipment / package for both Design Case-1 & Case-2 (including SOR & EOR) as specified in MR. E. Repair / Rectification / Modification In case the shortfall in the guaranteed parameters, Supplier may carry out necessary repair / rectification / modification / replacement at his own cost and through his own agency on urgent basis and complete the repair / rectification / modification / replacement within a maximum period of three months to improve the supplied systems to prove guaranteed parameters in the final performance test. Should the systems continue to underperform, reduction in price shall be leviable after this as specified for shortfall in guaranteed parameters above. However, if the shortfall in guaranteed parameters is beyond the rejection parameters, Supplier and L&T will mutually agree on the method and possibilities of rectification and if the plant is still not capable of performing within the acceptance limits, it will be L&T's decision with respect to rejection or penalties, which shall be final and binding on the Supplier. F. Test Run Requirements Detailed procedure for PGTR shall be discussed with Supplier and finalized mutually, however for field tested equipment/Packages the individual utility consumption shall be recorded jointly for a period of 72 hours continuous run of the unit. After the completion of successful performance test, average consumption of individual utilities will be worked out. These shall be considered as actual consumption for computation of price adjustment. All instruments required, if any, to establish the performance are within Supplier's scope of work / supply at no extra cost to OWNER. In an event that unit operates in a mode / feed case different than specified above or at a throughput lower than design throughput, the utility numbers shall be prorated for reduced Capacity for the purpose of guarantee in mutual discussion with PMC/OWNER.	

No.	T&C Clause	CIRCOR Confirmation
4.50	Back-charges for Demurrages / Cancellation charges :	
	<u>ODC/OWC consignments:</u> Supplier shall inform the date for shipment (complete / partial) along with transportation drawings and packing list (Weights and overall dimensions for ODC/OWC) at least six months before the shipment date in order for L&T to finalize the shipping contract, take statutory approvals for movement of ODC consignments from supplier's works to Project site, construction of necessary by-passes, etc. Supplier shall then confirm the firm date of shipment one month in advance for L&T to book the ship / barge and the axles, as applicable and for completing all procedures for further movement to site.	Not applicable as not ODC.
	<u>For all other consignments:</u> Supplier shall confirm the firm date of shipment one month in advance for L&T to make the necessary transportation arrangements.	Not applicable as transportation is in CIRCOR scope.
	In case the cargo is not ready for shipment as confirmed, any demurrages / detention / cancellation charges, approval cost, etc shall be back-charged to the Supplier at actuals and shall be adjusted from the dispatch payment milestone.	Not applicable as transportation is in CIRCOR scope.
5.00	Delivery:	
5.10	Timely delivery is essence of this Purchase Order.	
5.20	Contractual Delivery Date (CDD) is on Ex-works duly packed and loaded onto transporters vehicle, (INCOTERMS 2020) basis. Delivery is inclusive of time required for acceptance of equipment / item and Release/ Issue of IRN after completion of Inspection activities by Inspection by Third Party Inspection Agency and/or L&T and/or PMC and/or OWNER as per L&T/OWNER approved Inspection Test Plan (ITP).	Agreed.
5.30	The date of Lorry Receipt shall be reckoned as the date on which the delivery has been effected for delivery on Ex-works basis. The date recorded as "Site Receipt Date" (by the Stores In-charge of L&T at Site) shall be reckoned as the date on which the delivery has been effected for delivery of DAP / DDP Project site basis	Agreed.
5.40	Effective Date of the Order shall be the date of the Order by L&T by way of LOI or P.O., (whichever is earlier), unless specified otherwise.	Agreed, subject to PO is being released not later than 4 weeks from LOI/LOA.
5.50	The number of despatchable units with dimensions & weight (after packing) shall be clearly specified the offer. Maximum pre-fabrication shall be carried out at Supplier / Supplier's sub-Supplier's works to minimize Site work. The extent of Site fabrication to complete the equipment shall be specified in the offer. All category of spares (i.e. Erection & commissioning, Mandatory, Critical, Capital, 2 years operation, as applicable) shall be packed separately with item wise packing list.	Agreed.
5.60	If the SUPPLIER fails to deliver the GOODS within the Contractual Delivery Date due to reasons attributable to the SUPPLIER, the L&T shall have the right to cause SUPPLIER to ship the GOODS by the most expeditious means of transportation, such as air freight, at sole risk, cost and expense of the SUPPLIER.	Agreed, subject to agreement by the supplier that the reason of the delay is completely attributable to the supplier.
5.70	Supplier shall submit draft Packing List showing all despatchable units with weight & dimensions before 12 weeks' ex-works readiness. Supplier to provide packing list for mandatory spares separately. Box for spares should be separate during dispatch. Any partial supplies of spares is not acceptable	Agreed.
5.80	List of inputs required by Supplier to meet the Contractual obligations along with the "Time Schedule" of requirement will be submitted during the Kick-off meeting / within 2 weeks of receipt of LOI/PO whichever is earlier.	Agreed.
5.90	Detailed "Delivery Schedule" (Bar Chart) showing Engineering, Procurement, Manufacture, Shop Inspection, Transportation, etc. will be furnished within 2 weeks from the LOI/PO	Agreed, subject to PO is being released not later than 4 weeks from LOI/LOA.
5.100	Supplier shall confirm after the last despatch that all materials required for completeness of the items as per PR have been despatched.	Agreed.
5.11	For all items expect spares - L&T shall, within 16 Weeks of receipt of material at Site, revert regarding any short Supplies w.r.t. Packing List. For Spares:- L&T shall revert regarding any short supplies during handover of spares to customer. <u>Supplier shall immediately supply the short supplied items on DDP Site basis with no Price and time implication to L&T.</u>	Intimation regarding any short supply needs to be communicated within 4 weeks from receipt of material at site.
5.12	Supplier shall depute their representative to Site, at least once on a mutually agreed date for reconciliation of all materials dispatched, in order to ensure completeness of the items as per scope mentioned in PR (Code-1 approved by PMC/OWNER). The cost of all such visits by Supplier is included in their price. No separate per diem rate shall be paid to Supplier for such visit.	Agreed.

No.	T&C Clause	CIRCOR Confirmation
5.13	Delay and Recovery Plan (Schedule Recovery)	
5.13.1	If, in Buyer's sole opinion, the Supplier's performance or progress is inadequate, deficient, or unsatisfactory or the Supplier may fail to achieve any of the milestone dates, Buyer may (but is not obliged to) notify the Supplier of such inadequacy, deficiency, or inability ("Delay Notice").	Agreed.
5.13.2	Upon receipt of a Delay Notice, the Supplier must, within seven (7) days or any other period stated in the Delay Notice, submit to Buyer a recovery plan.	Agreed.
5.13.3	The Supplier shall prepare and submit a detailed plan ("Recovery Plan") at its own risk and cost setting out the various measures that it intends to implement in order to recover the delay to the works and milestone dates and eliminate the causes and events which are resulting in such delay, inadequacy, deficiency, or failure, and shall include, but not limited to the following: (a) mobilization of additional equipment and personnel; (b) working overtime, increasing the number of shifts or work days or both; (c) expediting delivery of materials by airlifting; (d) enhancing the manufacturing and fabrication capacity; (e) substitution of higher grade materials or specifications (with prior written authorization of Buyer).	Agreed.
5.13.4	The Recovery Plan shall be subject to Buyer's approval and acceptance and shall be implemented at the Supplier's sole cost.	Agreed.
5.13.5	In the event the Supplier fails to submit the Recovery Plan or the submitted Recovery Plan is not acceptable to the Buyer, then the Supplier must, at his sole risk, cost, and expense, implement any remedial measures Buyer may require or instruct.	Agreed.
5.13.6	If, in L&T's sole opinion, Supplier's performance or progress is inadequate, deficient, and/or unsatisfactory and the Supplier may fail to achieve any or all of the milestone dates, L&T may depute its own resources at Supplier's Group for expediting purpose. It shall be carried out in consultation with Supplier. Any and all cost incurred by L&T in deputing it's resources shall be to Supplier's account and shall be paid by Supplier to L&T.	After mutual agreement between both the parties if Supplier's performance or progress is inadequate, deficient, and/or unsatisfactory and the Supplier may fail to achieve any or all of the milestone dates, L&T may depute its own resources at Supplier's Group for expediting purpose. It shall be carried out in consultation with Supplier. Any and all cost incurred by L&T in deputing it's resources shall be to Supplier's account and shall be paid by Supplier to L&T.
5.13.7	At any time, if the Buyer is of the opinion that the Recovery Plan or any other remedial measures as instructed by the Buyer are not being implemented or not being followed by the Supplier to the satisfaction of the Buyer, the Buyer is free to take all such actions or avail all such rights and remedies available to him under the Purchase Order including but not limited to Step-in, or getting the Work done by third parties Termination for default as per Clause 11.10.2 etc.	Agreed
6.00	Performance Bank Guarantee:	
6.10	Performance Bank Guarantee for 10% of the basic Order value (excluding taxes & duties) (@ no cost to BUYER) securing the performance of the Supplier as per Order terms & conditions, including but not limited to execution of the Order, delivery, design, material, quality, workmanship, commissioning and satisfactory performance of the Equipment / Package throughout the Defect Liability period (DLP) shall be submitted.	Noted.
6.20	The PBG shall be furnished within one month from the date of LOI or PO, whichever is earlier	PBG can be issued only after dispatch of materials.
6.30	Performance Bank Guarantee (PBG) shall be furnished as per L&T's format (Annexure B) and from the Banks approved by L&T. The Performance Bank Guarantee shall be valid until the completion of Defect liability period i.e. 31-Dec-2028 or 24 months from the date of delivery whichever is later with a further claim period of 3 Months as specified in the Format of PBG	Agreed, subject to the delay is solely attributing to supplier.
6.40	The Bank Guarantee(s) shall be extended by supplier at no cost implication to L&T by further period(s) as the L&T may require until performance of all the Supplier's obligations under the PO/Contract.	

No.	T&C Clause	CIRCOR Confirmation
6.50	ABGs and PBGs shall be issued as per L&Ts format as attached at Annexure-B and Annexure-C. BGs shall be issued from Indian Branch of one of the Banks listed in L&Ts format. BGs issued by other Banks will not be accepted. Bidders are requested to ensure that the BG confirmation is transmitted by their bank only in IFN 760 format through SFMS (Structured Financial Messaging system) to facilitate faster processing of the BG's. The procedure / requirements is enlisted herein below for reference: a) While making the BG application, Bidder to inform their Bank to send BG confirmation only through IFN 760 (Guarantee) vide SFMS to our Bank. b) IFN 760 (Guarantee) should contain the following details: BG No, BG Amount, BG Type, date of issuance, Expiry date, Name of BG Applicant & Beneficiary's name and address. c) Bidder should obtain a copy of IFN 760 sent through SFMS by their bank and attach the same with the Original hardcopy of BG and submit the same to L&T. The details of our bank to which SFMS confirmation has to be sent is as under: Name of Beneficiary – Larsen & Toubro Limited Bank Name: ICICI BANK LIMITED IFSC Code: ICIC0000009 Bank Address: 110, First Floor, Nungambakkam High Road, Nungambakkam, Chennai – 600034	Not Applicable
7.00	Insurance: Insurance of the items up to loading on Transporter Vehicle as per delivery basis shall be in Supplier's scope. <u>Transit Insurance of items from dispatch point up to Project Site shall be in L&T's scope.</u>	Agreed.
7.10	L&T / OWNER shall arrange the Marine / Transit Insurance for the Project Supplies. Supplier shall ensure that the Policy number is clearly written on the dispatch documents. Supplier shall intimate L&T following details of the dispatch within 24 hours of dispatch. - Purchase Order No. and Date - Invoice No. & Date - LR No. and Date / BL No. and Date/AWB No. and Date - Name of Transporter / Freight Forwarder - Place of Works - Value of shipment - Number of Packaged cases and gross weight & Net weight, Gross Volume <u>Shipment from L&T to</u>	Agreed.
	In case the Supplier fails to communicate the above information, Supplier will be liable to replace/repair the goods at his cost, in case of damage during transit.	Agreed.
	Supplier shall provide all the support in case of a claim under the insurance.	Agreed.
	Supplier shall provide all the support in case of a claim under the insurance.	Agreed.
8.00	Shipment Basis:	
8.10	Shipment basis shall be on Ex-works duly packed and loaded onto transporters vehicle, (INCOTERMS 2020) basis.	Agreed.
8.20	Transfer of Property shall take place on exchange of negotiable documents required at the time of dispatch	Agreed.
9.00	General Conditions of Purchase Order	
9.10	Conformance to Engineering Specifications / "Supplier-List" / PTR:	
9.10.1	All Materials / Items / equipment shall be supplied strictly as per MR, except for mutually agreed deviations duly recorded & accepted by L&T prior to placement of Purchase Order. All other deviations, clarifications etc. stand withdrawn.	Agreed.
9.10.2	All Materials / sub components shall be procured only from Suppliers as per OWNER / PMC "Project Specific Supplier list" and sub-Supplier list agreed pre-order, if any.	Agreed.

No.	T&C Clause	CIRCOR Confirmation
9.10.3	Any Material Sourced from a Supplier Outside OWNER/PMC issued "Project Specific Approved Supplier-List" and sub-Supplier List agreed pre-order, if any, shall stand rejected without any commercial implication to L&T. Suppliers on Owner / PMC "Holiday List" shall not be considered for ordering. Names of such Suppliers who are put on Owner / PMC "Holiday List" subsequent to Supplier approval at bidding stage shall be informed to the Supplier at any stage of the project. Supplier shall comply with this requirement without any time and cost implication to the L&T / PMC / Owner. For items not covered in the OWNER / PMC issued "Project Specific Approved Supplier list", the proposed Supplier list shall be approved by Purchaser / Owner / PMC prior to placement of order by Supplier. Supplier shall submit following with necessary documents for such identified items for Purchaser/ Owner / PMC review / approval a) Complete List of such items / components along with proposed Suppliers b) PTR of sub Suppliers for supplies made to OWNER in last 5 years. PTR to include details as item, MOC, project, End user name, year of supply and capacity/ dimensions, etc. c) Any other data / document as requested by Purchase / Owner / PMC. Above data to be submitted by Supplier within 2 weeks from the date of L&T LOI / PO (whichever is earlier). Non-acceptance of any proposed Supplier due to any reasons whatsoever shall not be a cause of schedule and cost implication. Purchaser/ Owner / PMC shall be the final authority for the approval of proposed Suppliers. PMC / Owner / L&T decision shall be accepted by Supplier without any time and cost implication to L&T.	Agreed.
9.10.4	Proven Track Record (PTR) / Supplier Qualification Criteria (VQC) approval (as applicable) from OWNER shall be the responsibility of the Supplier without any Price and / or Delivery implications to L&T. L&T shall submit the PTR/VQC to OWNER. Supplier's competent representative shall attend across the-table discussions with OWNER for approval. In case of non-acceptance by OWNER, L&T reserves the right to cancel the Order without any Price implications to L&T.	Agreed.
9.10.5	Valid Enlistment of the applicable items as per this order with OWNER / PMC shall be the responsibility of the Supplier. In case of non-availability of valid enlistment from OWNER/PMC, L&T reserves the right to cancel the Order without any Price implications to L&T.	Agreed.
9.20	Drawings/Documents:	
9.20.1	Supplier shall submit all drawings/documents for approval in soft copy through L&T's POMS as per the time schedule specified in Supplier Document Requirement (SDR) of MR. Draft DCI in required format to be submitted at least 5 days in advance from KOM date. In case KOM is not applicable, Draft DCI in required format to be submitted within 10 days from LOI/PO whichever is earlier. The SDR list shall be populated in the SDR format provided as per RFQ. L&T / PMC / OWNER will approve / comment on the critical drawings/documents within Three weeks from the receipt. For the remaining drawings/ documents, the duration for submission and review / approval shall be mutually agreed during the KO meeting. Any Change in technical specification (for supplier designed equipment / package) shall not be permitted without approval of OWNER / PMC / Licensor / L&T.	Agreed.
9.20.2	Supplier shall get the designs / drawings reviewed & approved by L&T/ PMC / OWNER. The comments shall be incorporated and implemented without any Price and / or Delivery implications to L&T. Supplier shall be responsible for any delay in approval (for reasons attributable to Supplier), and shall not be eligible for any Delivery extension on this account.	Agreed.
9.20.3	Supplier shall ensure re-submission of drawings/ documents after incorporation of L&T's / PMC / OWNER's comments within 10 days from receipt of comments (for first re-submission) and within 7 days for subsequent re-submissions. Supplier shall also ensure that the above documents/ drawings are complete in all respects. In case presence of Supplier is necessary for approval of drawings / documents / clarifications by L&T/ PMC / OWNER, Supplier shall deploy competent personnel and facilitate early approvals/clarifications as required by L&T/ PMC / OWNER at no extra Delivery and / or Price implications to L&T.	Agreed.
	Supplier shall submit soft copy of final QC dossier documents within two (2) weeks of dispatch of an equipment. QC dossier shall contain all stage and final inspection reports including Approved QA-QC procedures, Stage inspections and Final inspection reports, Material Certifications, NDT Records, Welding Procedures, Weld Maps, Manufacturing Reports, Factory Test Records (Equipment/ Piping), Statutory Certificate and Drawings etc	Agreed.
9.20.4	Final Documentation as per SDR in RFQ will be submitted in requisite number of copies (both Hard & Soft) failing which the Order will be deemed to be incomplete. Index for final documentation shall be submitted 4 weeks prior to dispatch for approval. Comments from L&T / PMC / OWNER shall be incorporated and re-submitted within 1 week from receipt of comments.	Agreed.
9.20.5	Soft copy of final documents (based on approved index) shall be submitted within 1 month from dispatch for approval. After approval of the soft copy the final documents in soft copies and hard copies as mentioned in MR/RFQ shall be couriered to the address informed by L&T.	Agreed.
9.30	Inspection, Testing and Quality Control:	
9.30.1	Supplier confirms acceptance to Indicative Inspection Test Plan (IITP) sent along with the RFQ. In case L&T does not furnish an IITP, Supplier shall furnish ITP along with the offer, as per Inspection requirements specified in the MR	Agreed.
9.30.2	After award of Order, detailed Inspection Test Plan (ITP)/ Quality Control Plan (QCP) shall be, submitted for approval to L&T within three weeks from the date of LOI/PO. L&T / PMC / OWNER shall approve / give comments within three weeks of receipt. Supplier to re submit all quality documents after incorporation of L&T's comments within 10 days. Supplier shall submit all ITP/ Procedures for approval through L&T's web based portal (POMS) as per the agreed schedule specified in Supplier Document Requirement (VDR) or MR"	Agreed.

No.	T&C Clause	CIRCOR Confirmation
	L&T/PMC/Owner reserves the right for inspection visits and Quality Audits at Supplier/ Sub Suppliers place/ works wherever felt necessary. Supplier to extend necessary support.	
9.30.3	Obtaining approval of ITP from L&T / PMC / OWNER shall be Supplier's responsibility during execution without any price and/or delivery implications to L&T. All comments shall be incorporated and implemented without any price and / or delivery implications to L&T.	Agreed.
9.30.4	Inspection of items shall be by TPIA / L&T / PMC / OWNER as per approved QCP/ITP. Co-ordination for timely inspection by TPIA shall be Supplier's responsibility. Failure to do so, shall not be a reason for delivery extension.	Agreed.
9.30.5	Failure to inspect goods or payment for goods or acceptance of goods shall in no way impair L&T's right to reject non-conforming goods or to avail of any other remedies to which L&T may be entitled. Any inspection and acceptance thereof, shall not relieve the Supplier of their contractual obligations Supplier confirms acceptance to L&T's Supplier's Shop Inspection Co-ordination Procedure. (Annexure M).	Agreed.
9.30.6	TPIA charges for re-inspection due to rejection, incomplete offering, non-readiness etc. for the reasons attributable to Supplier Group shall be to Supplier's account.	Agreed.
9.30.7	Supplier to offer sufficient sizable quantity for inspection by TPIA / L&T / PMC / Owner (to optimize inspection visit), as applicable as per approved ITP. Supplier shall raise Inspection Notification through L&Ts web based portal (POMS) in line with advance notification period as specified in Supplier Shop Inspection Procedure or as mutually agreed. In case of abortive visit of TPIA/ PMC/ OWNER due to non-readiness of item for inspection/ cancellation of Inspection Notification without sufficient time as per agreed contract, charges for the same shall be back charged to vendor For any witness and Hold activity as per approved ITP, Supplier cannot proceed for further activity without inspection clearance from LTEH and LTEH TPIA. TPIA will be available for inspection in normal working day/working hour. Any inspection call/ Visit on weekends/ holidays or extra working hours shall be based on the availability of inspector. Any delays caused due to non-availability of TPIA for aforementioned reasons cannot be claimed for delivery extension. Supplier to ensure availability of L&T/ PMC/ OWNER approved prerequisites documents for inspection at point of inspection, including sub Supplier shop. Participate in inspection activities through VC/ use of Remote Inspection Technique in lieu of physical presence at Supplier/ Sub-Supplier premises shall be at the sole discretion of L&T/ PMC / OWNER. Participation in remote inspection by L&T/ PMC/ OWNER will be irrespective of TPIAs physical presence at Supplier/ Sub- Suppliers works. <u>Supplier / Sub-Supplier should be equipped with IT infrastructure for conducting such remote inspection</u>	Agreed.
9.30.8	Vendor Inspection Documents Vendor shall upload MTC and necessary backup document duly endorsed by L&T TPIA in L&Ts web portal (POMS) against inspection notification after completion of inspection activities. Vendor located within India shall submit original hardcopies of MTCs with necessary backup (IRN wise) to L&T QA QC within 1 Week after getting Quality Clearance.	Agreed.
9.40	Billing Schedule / Billing Breakup:	
9.40.1	For package items involving multiple dispatches / multiple locations Billing Schedule / Billing Break-up indicating the place of dispatch shall be submitted by the Supplier along with LOI acceptance for approval by L&T and generation of the Purchase Order. Final billing break-up for dispatches shall be clearly mention individual dispatch items with clear unit of measure & quantities. . The generic terms like "Lot", "Set" as unit of measure shall not be acceptable. This shall be subject to L&T's approval and Final Billing break-up to be submitted at least three (3) months prior to commencement of dispatch.	Agreed.
9.50	Progress Reports:	
9.50.1	Supplier shall submit, within 2 weeks from the date of LOI/PO, bar chart/S-curve showing start and finish dates of various activities. Updated progress reports shall be submitted on weekly and monthly basis as per L&Ts format. After start of manufacturing / production progress report reflecting the updated manufacturing status to be submitted on weekly basis.	Agreed.
9.50.2	Supplier shall provide and/or upload required information and/or pictures and/or data by accessing POMS. The information and/or pictures and/or data (like planned/forecast/actual dates, manufacturing/inspection stages, unpriced Purchase orders issued by Supplier, certain information for logistics arrangement, so on and so forth) to be provided by filling pre-defined and/or mutually agreed MS Excel based templets/formats for facilitating Monitoring, Progress calculation & monitoring, related report generation from POMS for information.	Agreed.

No.	T&C Clause	CIRCOR Confirmation
	L&T / PMC / OWNER's representative reserves the right to visit Supplier's and/or Supplier Group's premises and/or facilities and/or works to review, assess physical progress, expedite etc. Supplier shall ensure and provide free access during normal working hours (and extended working hours, if required) at Supplier's and/or Supplier Group's premises and/or facilities and/or works. Such expediting shall, in no way, relieve the Supplier of their delivery obligations under the terms of the Order. Supplier shall also provide unpriced copies of Purchase Orders, for major parts & components placed by Supplier and/or Supplier Group to support progress calculated & reported as part of progress report. Cut-off date and submission date for monthly and/or weekly reports shall be defined in the Kickoff meeting. Supplier shall convey all applicable Purchase Order requirements to sub-Suppliers. All sub-orders shall show the following statement: "THIS ORDER MAY BE SUBJECT TO INSPECTION, EXPEDITING AND/OR AUDITING BY BUYER AND/OR OWNER WHOSE REPRESENTATIVES SHALL BE ENTITLED TO ENTER THE ADMINISTRATIVE AND PRODUCTION FACILITIES OF SUB-SUPPLIER'S PREMISES of any tier ". Upon request copies of sub-order(s) shall be submitted to L&T. Copies may be unpriced but should clearly show the description of material or equipment involved, agreed delivery date(s) and evidence of acceptance of the sub-order by the sub-Supplier.	
9.50.3	Kickoff Meeting shall be carried out at L&T's offices. Supplier's Engineering, Quality & Project Manager and sales personal involved in bidding stage shall be present (as may be required by L&T/OWNER). Supplier to ensure presence of key representatives of their Critical / KEY sub-Suppliers as may be required for items falling on critical path for order execution.	Agreed.
9.50.4	Detailed organization chart with contact details (E-mail, Hand-phone numbers & direct numbers) of all key personnel viz. Project Manager, Engineering Manager, Quality Manager & Production / Manufacturing manager and Service Team for Site activities to be submitted by Supplier in KOM.	Agreed.
9.50.5	Supplier shall provide CV of the Project manager who shall be responsible for execution of the order. L&T reserve the right for interaction with the proposed project manager and will reserve the right to accept or reject the CV. In case of rejection, Supplier shall propose an alternate candidate for L&T approval.	Agreed.
9.50.6	All Review meetings (Design, document review and approval, progress review, etc.) shall be held at L&T / PMC / OWNER's office as may be required by L&T/ OWNER. Supplier and their representative including sub-Suppliers shall attend all such meetings without any cost implication to L&T / PMC / Owner.	Agreed.
9.50.7	Project sponsors (members of management that sponsor the Project) from "L&T" and "Supplier" shall attend the meetings once in two months as minimum or frequency as felt necessary.	Agreed.
9.50.8	Progress measurement weightages & Milestones shall be discussed with supplier during KOM and accordingly vendor to submit the progress reports	Agreed.
9.60	Dispatch clearance: Supplier shall submit copy of IRN issued by TPIA, Inspection reports and other QA documents duly reviewed / approved by TPIA & any other inspection agencies as per approved ITP for dispatch clearance by L&T. Goods / individual items shall be dispatched only after issue of Code-1 approval (approved with no comments) of PR and drawings/ documents by L&T / PMC / OWNER	
9.60.1	Items shall not be dispatched by Supplier without L&T's written dispatch clearance.	Agreed.
9.70	Billing Instructions:	
9.70.1	The Billing Instructions (including Formats of Invoice, Packing List, and LR) shall be forwarded to the Supplier along with the Purchase Order or along with dispatch instructions. Supplier shall prepare specimen of these documents TWO weeks prior to dispatch and submit the same to L&T for approval. If the Billing Instructions are not strictly followed, L&T shall withhold the amount payable till such time the corrected documents are submitted.	Agreed.
9.70.2	Advance Dispatch Documents: Supplier shall forward to L&T copies of the following documents within 48 hours of dispatch by fax/e-mail: -- - Commercial Invoices - GST Invoice - Lorry Receipt - Packing List duly approved by Supplier. - Inspection Release Note issued by TPIA (PMC Endorsed – as applicable) - Manufacturer's Certificate of Inspection for Shipment issued by Supplier, Stating that all terms and conditions of the Purchase Order / Contract until Ex works shipment have been fully complied Supplier shall attach / send following documents along with consignment :GST invoice (Transporter copy) 1) E-way / Road permit bill where necessary 2) Packing list with proper quantity and HSN codes E-way Bill shall be in Supplier's Scope.	Agreed.
9.80	Transportation:	
9.80.1	If transportation is in Supplier's scope, items shall be dispatched on "Door-Delivery and Freight Pre-paid basis". Goods shall be sent on full truckload basis only. Prior permission of L&T shall be taken for dispatch on Part-Load basis. Retail booking or Transshipment is not permitted. Under no circumstances, consignment shall be dispatched on 'delivery against consignee copy. Items should not be dispatched in Shipper's / Supplier's own container.	Agreed.

No.	T&C Clause	CIRCOR Confirmation
	Currently Entry Permits are not required. However if required, L&T shall provide the required Entry Permits for supplies (meant for permanent incorporation into the Project) made to site. Supplier shall dispatch goods only after receipt of the same. Supplier/ transporter shall mention the Form No. on Invoice and LR. The Supplier shall furnish reconciliation of Road Permits issued to them along with final Bill. Supplier shall issue necessary way bill / e-way bill as and when goods are dispatched from Suppliers works / site.	
9.90	Damage to Items in Transit:	
9.90.1	In case the consignment has met with an accident in transit and /or the item(s) are received by L&T in damaged condition at the Site, it shall notify the same to the Supplier and Supplier shall send competent representative immediately to Site / accident Site as required for assessing the damage so that the damaged components / parts can be re-Ordered. Any other documents Support as required by Insurance company / L&T/ OWNER will be furnished by Supplier. Supplier shall arrange to obtain the 'Damage Certificate' for the value declared by Buyer and all other documents such as first information report (FIR) etc. from the transporter for claiming / settlement of insurance claims.	Agreed.

No.	T&C Clause	CIRCOR Confirmation
10.00	Packing:	
10.10	Supplier shall adhere to Approved Packing & Marking Instructions. (Annexure-D) The Supplier wherever applicable, shall, after proper painting, pack and crate all materials for shipment in a manner suitable for export to a tropical, humid climate in accordance with internationally accepted export practices and in such a manner so as to protect them from damage and deterioration in transit by road, rail and/or sea and during storage at the Site till the time of erection. Without prejudice to any other liabilities or obligations of the Supplier, the Supplier shall be responsible for all damage(s) to the materials due to improper packing. Depending on their type, goods are to be protected against both mechanical damage (shocks, rupture, breakage, loss) and corrosion (moisture, rain, salty atmosphere, sand, etc.). All the items for this Project shall be shrink wrapped. All packing materials will be considered non-returnable. Should L&T, OWNER or any of its representatives incur any additional costs in rectification works due to a failure of the Goods, rectification work of damage(s) due to improper packaging or documentation to conform to the requirements of the Purchase Order, L&T shall back charge such costs to Supplier and shall deduct such amounts from unpaid amounts owed to Supplier.	Agreed.
10.20	Packing lists shall be reviewed and endorsed by supplier prior to the dispatch. All short Supplies shall be listed separately & communicated to L&T by supplier immediately upon dispatch along with the dispatch plan of the short supplied items.	Agreed.
10.30	Purchase Order No. and P.O. Sr. No. shall be mentioned in all the commercial documents like Packing lists, Invoices etc. Failure to do so shall result in returning of documents to the Supplier and delay in payments.	Agreed.
10.40	Supplier shall submit lashing/ loading scheme to L&T for approval for ODC consignments, if applicable. L&T's Logistics Engineer reserves the right for inspection prior to dispatch of the consignment at the loading point.	Not applicable.
10.50	Supplier to pack the Start up / Erection & Commissioning Spares, 2 years' operating spares and Special Tools & Tackles in separate wooden boxes.	Agreed.
10.60	Supplier shall submit, "Transportation Methodology" which includes, but not limited to the following at least five months prior to Contractual Delivery Date: - Protection arrangements for Internals to avoid the damage during multimodal transportation up to Project Sites - Lifting & loading plans at Supplier works for loading the cargo on Axle - Transportation Sketch showing Overall Length, Width, Height, Weight & Three Dimensional CG Location, Saddles locations, Lifting and lashing Points - Transportation Loading diagram on Hydraulic Axles & marching plan from Fabrication Area to Jetty - Supplier to provide required Jetty to LSP free of Cost. - Special requirements for unloading at on Barge & Roll-off at Jetty and subsequent transportation to Site etc. - Design and fabrication drawing for Stools (Pedestals) for Saddles for off-loading on stools on barge as well as while off-loading the equipment at site. - Scope of Stools to be provided while off-loading the equipment at Site. - Saddle Width and Length to be discussed with the Nominated LSP and Supplier to arrange for the design accordingly to avoid any issue while off-loading the cargo on barge and further movement of the cargo to Project Site. - Transportation Drawing should also have the details for the point load for individual saddle so that LSP can arrange for the stability calculation on barge and axle. - Supplier to arrange for the individual Invoice, Packing List and Certificate of Origin (COO) for shipment equipment wise. - Supplier to arrange for the separate Invoice, Packing list for the cargo such as loose items, spares and accessories which will be shipped or transporter separately. - Supplier to arrange for the Lifting Diagram for individual packages based on which LSP shall discuss with shipping line for loading pattern for cargo loading on vessel. Supplier shall design and provide the adequate number of transportation saddles for transportation by Multimodal way - road & barge transportation.	Agreed.
	Supplier will check adequacy of lashing Supplier shall submit the above documents at least six months prior to dispatch to L&T & Insurance Company for approval. L&T or Insurance Company reserves the right to comment and the comments will be incorporated without any time & cost to L&T prior to the dispatch of the consignment. L&T reserve the right to inspect the transportation arrangement before dispatch	
11.00	Special Conditions of Purchase Order	
11.10	Deviations to the RFQ Specifications:	
11.10.1	Deviations shall not be acceptable after release of P.O.	Agreed.
11.10.2	If unavoidable, same will be processed as follows: - Supplier to submit the same to L&T along with all backups for approval (format as per OWNER/ PMC standard). - Responsibility of processing the request and acceptance thereafter by OWNER as applicable shall rest with L&T. In case the deviation is acceptable there shall be no cost and time implications (in case what is being offered is superior to the bid specifications in terms of cost).	Agreed.

No.	T&C Clause	CIRCOR Confirmation
	- If rejected by OWNER / PMC, L&T shall in no way be responsible and all terms & conditions including delivery / time of completion and / or price as per the Purchase Order shall remain unaffected and the deviations stand withdrawn by Supplier. - If the deviation is accepted by OWNER, the Cost benefit sought by OWNER, if any, will be deducted and the Order value shall be discounted accordingly. Any recoveries if due, shall be made from Supplier's subsequent invoices / pending payments if any. This deduction shall be over and above any of the other deductions / limitation of liability indicated elsewhere. Supplier shall provide all the necessary and sufficient back-ups for justifying the cost benefit applicable for the deviation passed on to L&T.	
11.10.3	Deviation(s) taken by Supplier during pre-order stage which is responded by L&T as "Subject to PMC / OWNER acceptance" shall also be processed as per above methodology.	Agreed.
11.20	Liability under the Order:	
11.20.1	Supplier's maximum aggregate liability under this Order shall not exceed the Order value. This does not include liability for "Make-Good" and "Risk Purchase" as specified elsewhere in this document. No such limit shall apply in respect of: i. Any liability pursuant to Supplier's indemnity obligations under the PO ; or ii. any loss resulting from fraud, intentional or willful misconduct or illegal or unlawful acts or omissions of Supplier, its affiliates or any sub-contractor or any supplier or any of its or their respective officers, directors, employees, servants or agents; or iii. any liability to rectify, repair, restore or replace any materials and/or works or deficiencies therein in terms of the PO; iv. any liability under this PO because of which Owner is unable to take the possession of the Equipment/system/package/Plant; v. In the event of any claim or loss or damage arising out of infringement of Intellectual Property; vi. For any damage to any third party, including death or injury of any third party caused by the Supplier or any person or firm acting on behalf of the Supplier in executing the works vii. Supplier's Liability for Price Adjustment for utility consumption as PO viii. Supplier's Liability for Process Guarantees (if any) or other Guarantees as mentioned in the Technical Part/PO. ix. Any liability arises out due to perform of any work or part thereof under this PO by L&T/Owner at risk, cost and expense of Supplier.	Agreed.
11.20.2	The deductions on account/ Recovery of any of the reasons at Sr. No. 4 & 11 of this document shall be made from the pending bills of the Supplier under this Purchase Order or any other Purchase Order and/or the Bank Guarantees and/ or submitted by the Supplier. It is clarified that the Buyer reserves the right to initiate appropriate proceedings against the Supplier and for the recovery of the shortfall amounts if any.	Agreed.
11.20.3	Levy of Price discount shall not relieve the Supplier from any of their contractual obligations and shall not limit the Buyer's rights in any manner.	Agreed.
11.20.4	Neither Party shall be liable to the other for any indirect or consequential loss or damage howsoever arising, including without limitation loss of product or equipment or facility down-time or loss of profit or loss of opportunity or revenue or increased costs of finance or like items of loss or damage, without regard to the causes thereof including, without limitation to, willful misconduct or fraud, the fault, negligence, breach of statutory or contractual duty or obligation or otherwise of either Supplier or OWNER provided that (a) no liability or indemnity under this clause shall be considered as a liability to pay or to indemnify a Party for indirect or consequential loss or damage and (b) the provisions of this Clause shall not limit the Supplier's obligations to pay Price Discount under this Order. This Article shall survive termination of the Purchase Order.	Agreed.

No.	T&C Clause	CIRCOR Confirmation
11.30	Guarantee/Warranty	
11.30.1	All materials / Equipment supplied, (irrespective of whether engineering, design data or other information has been furnished, reviewed or approved by L&T/PMC/OWNER) shall be free from faulty design, material & workmanship, and shall be of sufficient size and capacity and of proper materials so as to fulfill in all respects all operating conditions, specified in the Order.	Agreed.
11.30.2	Engineering Guarantee:	
11.30.2.1	It shall be the prime responsibility of the Supplier to carry out design, engineering and supply in accordance with the RFQ and such design shall also be in accordance with good and sound engineering practices. Supplier must ensure that all equipment and items supplied by him shall comply with the technical specifications to achieve the guarantees and warranties specified under this Purchase Order.	Agreed.
11.30.2.2	In case any errors or omissions in such design or engineering, attributable to the Supplier, which require re-engineering resulting in any new requirements for the subject item / materials / packages, the same shall be supplied and / or carried out by the Supplier within the scope of work and/or supply and within the contractual delivery date without any extra price and / or delivery implications to L&T.	Agreed.
11.30.2.3	Supplier shall check and satisfy themselves with Material Requisition, Equipment datasheets and other attachments for its accuracy, correctness and completeness to meet the agreed guarantees and in case of deficiency, Supplier shall inform L&T the modifications proposed to be carried out to overcome the deficiency and rectify the same at no extra cost.	Agreed.
	Supplier, if required, shall carry out corrective technical studies and engineering as may be required without any extra cost to the L&T. Before proceeding with the re-work, L&T/Owner/PMC approval, if applicable, shall be obtained.	Agreed.
11.30.3	Material/ Workmanship Guarantee:	
11.30.3.1	Workmanship for manufacture and construction shall be carried out in accordance with the stipulations of the MR/RFQ.	
11.30.3.2	Supplier shall guarantee that the subject Package (i.e. Equipment and/ or Materials including spare parts, chemicals, lubricants and consumables, if any) supplied under this Order shall be new and unused (not reconditioned) and of recent manufacture. , are of the best quality & workmanship, free from defects in design, material & workmanship, are suitable for the operating conditions specified in the Order and that the performance of the Equipment / Material etc. supplied shall be as per stipulated parameters.	Agreed.
11.30.3.3	Any rectification of any defective material supplied or work done shall be made good without any Price implications or entitlement of extension of time to L&T or if so considered by L&T/OWNER, shall be replaced by new equipment within the scope of work and/or supply on DDP Site basis.	Agreed.
11.30.3.4	The Supplier guarantees and accepts full, responsibility for all materials supplied / installed / erected (including all components/parts) with regard to: - Selection of material (if not specified by L&T) - Material specification and metallurgy as per Specification - Fabrication and Manufacturing workmanship - Work specification - Engagement of highly experienced, reliable and qualified sub-Suppliers/sub-contractors, engineers, workmen etc.	Agreed.
11.30.3.5	The above shall exclude damages due to normal wear and tear, application for other than the intended purpose, improper handling or inadequate maintenance by L&T/OWNER.	Agreed.
11.30.4	Performance Guarantee :	
11.30.4.1	The items designed, supplied and installed / erected shall operate to the desired capacity to produce the desired and guaranteed duty conditions.	Agreed.
11.30.4.2	This guarantee shall cover the guaranteed mechanical performance for each and every related equipment, their efficiencies and their performance as laid down in the specifications including guarantee for utilities(power / Steam / Cooling Water/ Fuel Gas) consumption/generation as indicated by the Supplier in their Offer / agreed in PO.	Agreed.
	The Supplier shall select the equipment considering the economy of utilities consumption/generation within the guaranteed figures provided and minimum effluent or pollution discharge satisfying the specifications/requirements specified in the MR.	Agreed.
11.30.4.3	Equipment / items which do not perform to the guarantees shall either be replaced or altered, repaired or replaced in parts or components (including dismantling, transportation, erection, hook-up, commissioning etc.) at no Price implication to L&T/OWNER and without entitlement of extension of delivery date to the Supplier.	Agreed.
11.30.4.4	Supplier shall carry out all activities for collecting the required data during guarantee runs to identify problems of non-performance for further analysis and modifications required to meet process performance parameters.	Agreed.
11.30.4.5	Supplier shall be solely responsible for supply of all instruments required for establishing performance of the subject item at no extra Price to L&T.	Agreed.
11.30.4.6	Supplier shall provide a list of laboratory test procedures and frequencies thereof required for validating the performance guarantees.	Not applicable.
11.30.4.7	Performance tests shall be started when the machine/equipment is stabilized under design conditions. The equipment / machine / package shall be operated and controlled in accordance with procedures set up beforehand. The performance shall be measured on the basis of the average of data obtained during 72 hours of performance test runs under continuous operation of the machine.	Agreed.
11.30.4.8	If on any testing any material or equipment or any individual Unit of the equipment does not meet the design, rated or guaranteed performance relative thereto, the Supplier shall forthwith, within the Supplier's scope of work and at no additional Price to L&T, undertake such additional tests and/ or operations that are necessary to identify the cause of such failure in conjunction with L&T.	Agreed.

No.	T&C Clause	CIRCOR Confirmation
11.30.4.9	If as a result of tests and / or operation it is determined that the design/ rated/guaranteed outputs/capacities have not been met because of defect(s) in any material, service or workmanship, the Supplier shall forthwith arrange to repair / replace part or whole of the item supplied with no Price implications to L&T/OWNER. The Supplier shall, for this purpose, forthwith establish a "Time Schedule" acceptable to L&T / OWNER for such replacement / rectification bearing in mind the exigencies of the Project requirements. Should the Supplier fail to establish such "Time Schedule", L&T shall establish the "Time Schedule" and the "Time Schedule" so established shall be binding on the Supplier. Should the Supplier thereafter fail to adhere to the "Time Schedule" so established for the replacement / rectification, L&T shall (but without obligation to do so), take-over in whole or part such replacement / rectification at the Risk & Cost of the Supplier. In so doing, L&T shall be entitled to identify and employ the quickest available resources of supply and / or work on its own and/or from third parties. L&T reserves the right to charge Supplier overheads and / or administrative charges for any such supply and / or work.	Agreed.
11.40	Guarantee / Defect Liability Period:	
11.40.1	Notwithstanding anything stated to the contrary elsewhere in the documents comprising the RFQ, but subject to 11.4.2 & 11.4.3) below, the Guarantee / Defect Liability Period (DLP) of the Equipment / Material / Services for design, material, workmanship and performance shall be till 31-Dec-2028 or 24 months from the date of delivery whichever is later. In case the delivery of the order is delayed beyond the original Contractual Delivery Date (CDD), the DLP shall be extended by the period equivalent to the delay.	31-Dec-2028 or 30 months from the date of delivery, whichever is earlier
11.40.2	Should any defect and / or under performance in the Equipment / Material supplied be noticed during the guarantee / defect liability period, the Supplier shall, at no Price to L&T / OWNER make the defect good at Site promptly, by way of repair / modification or replacement and re-installment of the Equipment / Material.	Agreed.
11.40.3	Any Equipment / Materials repaired / modified or replaced / re-installed during the above Defect Liability Period shall be subject to defect free guarantee / defect liability period for a further period of twelve (12) months from the date of correction, repair, rectification, replacement and/or re-installation with the intent that the provisions of other clauses under "Guarantee / Defect Liability Period" shall apply thereto in respect of all defects discovered during a period of twelve (12) months from the date of completion of the relative correction, repair, rectification, replacement and/or re-installation as the case may be, in the same manner and to the same extent as apply in respect of the original works.	Not applicable.
11.40.4	In case of replacement of goods Supplier shall not be entitled to return of the defective goods.	Not applicable.
11.40.5	In case of any claim arising out of this guarantee within guarantee / defect liability period, L&T shall notify the Supplier in writing and upon receipt of the same, immediately Supplier shall, start repair/ replace/ work for the defective goods without any Price to L&T / OWNER. The delivery schedule for the same shall be mutually discussed & agreed upon.	Agreed.
11.40.6	The Supplier shall provide at his own cost and initiative all labor, material, equipment, crafts and inputs, transportation, taxes, duties etc. whatsoever required in and relative to the correction, repair, rectification, replacement, erection, installation and / or re-performance of the relative work(s) and / or systems(s) within the guarantee / defect liability period.	Agreed.
11.40.7	Should the Supplier fail to fulfill his obligations during Guarantee / Defect liability period, all costs / charges / taxes & duties / expenses related to engineering / supply / construction / erection / testing / commissioning etc. for the said equipment / material etc. incurred by L&T/OWNER on this account shall be back-charged to the Supplier. However, this shall not relieve the Supplier from any of the contractual obligations including guarantees.	Agreed.
11.40.8	In case Supplier's guarantee period / defect liability period as per clause above expires and L&T requires an extension in the defect liability period, then Supplier shall extend the defect liability period, including extension in validity of PBG and implications thereof if any, will be discussed at that point of time.	Not applicable.
11.40.9	At the sole discretion of L&T/OWNER, Supplier shall supply New, re-manufactured, Buyer approved repaired part or assembly components required to correct the defect(s) observed during Defect Liability Period. Rejected items/defected items under this warranty shall remain property of Buyer.	Not applicable.
11.50	Technical Co-operation – Joint Responsibility :	
11.50.1	Should the supply be complementary to materials or equipment supplied by third parties, the SUPPLIER undertakes to co-operate with said other SUPPLIERS, in order to co-ordinate with them the planning, manufacture, erection and/or setting in operation of whatever is pertaining to his supply.	Agreed.
11.50.2	Any cost arising from a Supplier's wrong technical information to other Suppliers shall be at Supplier's charge.	Agreed.
11.50.3	The Supplier shall deliver to the BUYER, a copy of all pertinent documentation.	Agreed.
11.50.4	The Supplier and such other Supplier's shall be jointly liable for the good running of groups, plants, equipment, etc., supplied to BUYER. Should any inconvenience occur due to erroneous exchange of technical information, the Supplier's involved shall directly co-operate with each other, in order to eliminate such inconveniences as soon as possible according to their technical responsibilities, at no cost to the BUYER.	Agreed.
11.60	Non-Waiver: Failure by BUYER to insist upon strict performance of any terms or conditions of the Order, or failure or delay to exercise any rights or remedies provided therein or by law, or failure to properly notify Supplier in the event of breach, or the acceptance of or payment for any goods or services thereunder, or the review or failure to review designs/ documents or inspection of material by Buyer / OWNER / PMC / Buyer nominated TPIA shall not release Supplier from any of the warranties or obligations of the Order and shall not be deemed a waiver of any right of BUYER to insist upon strict performance thereof or any of its rights or remedies as to any prior or subsequent default thereunder nor shall any termination of work under the Order by BUYER operate as a waiver of any of the terms thereof.	Agreed.

No.	T&C Clause	CIRCOR Confirmation
11.70	Non Disclosure agreement: The Buyer and the OWNER (if any) reserve the sole right to disclose and/or publicize in any manner (i.e., for instance, through press release, speeches, photographs, videos, etc.), directly or indirectly (i.e., for instance, authorizing someone to make such disclosure), any kind of data, document and/or information concerning the Supply (materials and/or services) or any part thereof. The Supplier shall not make any such disclosure and/or publicity without the prior written consent of the Buyer and the OWNER. Supplier shall limit its disclosure of any information supplied by Buyer/Company in connection with this PO only to those of its personnel, Sub-Vendors, Sub-Contractors who require it for the performance of the Work. If Company/ Buyer designates any other person who may receive such information, Buyer shall obtain from each such person a written confidentiality and non-disclosure agreement obligating them with respect to such information and to the same extent that Supplier is obligated under this PO. Except as specifically permitted by the terms of this PO or otherwise authorized in writing by Buyer/Company, the Supplier and members of Supplier Group shall not duplicate, use, or disclose any information supplied by Buyer or its agents during the course of the Work so long as, and to the extent that, the information has not become part of the public domain. To the extent Company / Buyer approves any disclosure pursuant to this clause, the Supplier shall ensure that any third party to whom the Supplier discloses such information, executes a confidentiality agreement containing provisions protecting such disclosed information from further disclosure that are no less stringent than those contained herein, and which grant both Company and Buyer the right to directly enforce such provisions. Supplier shall provide copies of such confidentiality agreements to Buyer upon its request.	Agreed.
11.80	Code of Conduct Supplier shall adhere to the L&T Code of Conduct. Supplier shall ensure that all members of Supplier's Group comply with the requirements of this clause 11.80 of the PO. Any violation of the provisions of this clause 11.80 shall constitute a material breach of this PO which, without prejudice to Buyer's right to enforce any other remedy provided by law or under this PO, shall allow Buyer to terminate this PO for default and recover damages including, but not limited to, any increased costs incurred by Buyer as a result of such breach.	Agreed.
11.90	HSE Requirements The Supplier shall abide by all the health, safety and environmental requirements in compliance with the applicable local statutory rules & regulations and L&T HSE Policy and shall ensure that all such requirements are communicated to all the personnel involved in executing this Purchase Order	Agreed.

No.	T&C Clause	CIRCOR Confirmation
11.10	Termination / Cancellation and Suspension:	
11.10.1	L&T may, at any time terminate the Order in whole or part by giving written notice thereof and without assigning any reasons. Supplier, shall on receipt of notice of termination discontinue all further activities connected with the execution of the Order and inform L&T of details of work carried out as on date, together with financial implication. In the event of such termination, L&T shall discuss with Supplier to ascertain extent of work carried out by Supplier and to reach an agreement on cost mutually acceptable to L&T and Supplier.	Agreed.
11.10.2	In case specified delivery schedule is not adhered to or the progress of manufacture of the goods is not satisfactory or not in accordance with the Delivery schedule, L&T shall inform the Supplier about the delay. The Supplier shall take necessary actions to catch-up with the agreed delivery schedule that result in Supplier meeting the agreed schedule. In the event that the Supplier takes no action or even after the Supplier taking necessary actions, as mentioned above, the anticipated delay is in excess of 4 weeks, L&T reserves the right to cancel the Purchase Order in whole or in part without liability for damages/ compensation. In such event, L&T may procure from elsewhere goods, at Supplier's Risk & Cost, which in L&T's opinion would meet the same purpose as the goods for which Purchase Order is cancelled and Supplier shall be liable for reimbursing L&T cost of such substitution. L&T reserves the right to charge Supplier overheads and / or administrative charges for any such supply and / or work.	L&T reserves the right to cancel the Purchase Order in whole or in part without liability for damages/ compensation provided the delay is solely attributed to supplier and agreed mutually.
11.10.3	In the event of rejection of non-conforming goods, Supplier shall be allowed, without any extension of delivery time, to rectify the non-conformities. Should, however, the Supplier fail to do so within the stipulated time, L&T may cancel the Order as to the non-conforming goods and retain the same right with respect to substitution as are set out in preceding paragraph and in addition recover actual expenses incurred by L&T, in installing and removing the non-conformity to be rectified at Supplier's Risk and Cost. L&T reserves the right to charge Supplier overheads and / or administrative charges for any such supply and / or work.	Agreed.
11.10.4	If the Order is suspended (By Written instructions) for whatsoever reasons and for whatever time duration by L&T, the Delivery and price shall be amended based on mutually agreed terms. Buyer shall pay all reasonable and substantiated costs incurred by the Supplier in giving effect to the Suspension, unless the suspension is:	Agreed.
	a) necessary because of Force Majeure; or b) necessary for the proper execution of the Work or any part thereof; or c) necessary because of negligence, error or other default on part of the Supplier; or d) necessary for the health or safety of Company /Contractor/Supplier Personnel, Third Parties or for the protection of the work, Company Property or environment; or e) otherwise provided for in the Purchase order.	
11.11	Insolvency and Bankruptcy	
11.11.1	The Supplier shall inform the Buyer in case of occurrence of one of the following events or if there is substantial reason for Buyer to believe that any one of the following events may occur: a) Supplier becomes insolvent, b) a petition in bankruptcy is filed with respect to or by Supplier, c) opening of an official receivership procedure with respect to Supplier, d) Supplier's request for obtaining controlled administration, e) makes an arrangement or composition with (or assignment in favour of) his creditors, f) agrees to carry out the Purchase Order under a committee of inspection of his creditors, g) goes into liquidation, h) has an execution/restraining order levied on his goods, i) important changes on the Supplier's organisational structure or Ownership which can undermine the successful conclusion of the supply, j) any authority having jurisdiction takes or institutes any action or proceedings for the dissolution or winding up of Supplier or for the suspension of his operations	Agreed.
11.11.2	Upon knowledge of any such events from the Supplier or from any other sources, the Buyer, upon notice in writing to Supplier, has the right without prejudice to the procedural consequences, to terminate totally or in part the Purchase Order as per clause no. 11.10.2 and to take all the special and/or particular measures needed to fulfil his obligations towards the Buyer. In case of insolvency no prior notice for cure is required to be issued by the Buyer before issuing such termination notice.	Agreed.
11.11.3	In case of the above events and irrespective to the fact that whether the Purchase Order is terminated by the Buyer or still in subsistence when it has reason to believe that any of such event are likely to occur, the Buyer, at his option, can forthwith enter upon the worksite and take possession of all the material, drawings and designs, work in progress pertaining to the Purchase Order whether issued by the Buyer or otherwise. The Buyer at his option may use and utilise the plant and equipment of the Supplier for completion of the works. At the option of the Buyer, the Supplier shall assign all the purchase orders, service contracts that it had executed pertaining to the Works with its sub- Suppliers in favour of the Buyer and accordingly inform the sub-Suppliers.	Agreed.
11.11.4	The Buyer shall not be liable to pay the Supplier any money under the purchase order until the costs of completion are ascertained.	Agreed.
11.12	Force Majeure	

No.	T&C Clause	CIRCOR Confirmation
11.12.1	The term "Force Majeure" shall mean any of the following acts, events, or circumstances which renders a Party unable to perform its obligations which in each instance is not reasonably foreseeable, cannot be sufficiently mitigated by reasonable efforts, and the cause of which and the inability to perform is not caused by any act or omission of the Party asserting Force Majeure: a) act of Terrorism b) riot, war, invasion, act of foreign enemies, rebellion, revolution, insurrection of military or usurped power c) Ionizing radiation or contamination, radio activity from any nuclear fuel or from any nuclear waste from the combustion of nuclear fuel, radioactive toxic explosive or other hazardous properties of any explosive assembly or nuclear component. d) epidemics(Except Covid 19 or Coronavirus Pandemic),, earthquakes, flood, fire, hurricanes, typhoons or other physical natural disaster, but excluding weather conditions regardless of severity e) freight embargoes, strikes at national or state-wide level or industrial disputes at a national or state-wide level in any country where Works are performed, and which affect an essential portion of the Works but excluding any industrial dispute which is specific to the performance of the Works or the Contract	Agreed.
11.12.2	The following shall not afford the Supplier a ground for extension of time for delivery of materials:	Not accepted.
	a. Inclement or unforeseen weather, strike or lock-out, shutdown, third party breach, delay in payment or commercial hardship shutdown or idleness or other impediment in progress or completion of the supply or work due to any reason whatsoever shall not afford the Supplier a ground for extension of time or relieve the Supplier of his/its full obligations under the contract.	
	b. Delay in the supply of any material to Supplier due to any whatsoever reasons (including Force Majeure) from Supplier's vendors/sub-suppliers / sub-contractors shall not entitle Supplier for any extension of time for completion or to any claim for costs/loss/remuneration or damages or compensation whatsoever.	
11.12.3	If either Party is rendered unable, wholly or in part, by Force Majeure to perform its obligations under this Purchase Order, it is agreed that performance of such obligations by such Party, so far as they are affected by Force Majeure, shall be excused from the inception of any such inability until it is corrected or relieved, but for no longer period. If either Party desires to invoke Force Majeure, it shall notify the other Party in writing of the act, event, or circumstance that constitutes the event of Force Majeure, the date on which such event of Force Majeure commenced, with proper substantiation (duly certified by the local Chamber of Commerce or statutory authorities, relevant to the Supplier). Such notice shall be delivered not later than three (3) days after the date on which such Party first had knowledge of the effect of such event of Force Majeure. Either party shall forthwith inform the effect of the event of Force Majeure on the affected Party's ability to perform its obligations under this Purchase Order. The Party claiming inability to perform must make all reasonable efforts to minimize the delay caused to the Works as a result of the occurrence of an event of Force Majeure and mitigate any other effects of Force Majeure.	Agreed.
11.12.4	Affected parties shall diligently mitigate or remove the effect of Force Majeure. Each party shall upon receipt of the Notice of Force Majeure under the preceding Article shall confer promptly with the affected party and agree upon, within fifteen days, a course of action to be adopted by the affected party to remove or alleviate such effect(s), and shall seek reasonable methods of resuming full performance of affected party's obligations and achieving the objectives under the Order.	Agreed.
11.12.5	In the event of any force majeure cause, either party shall not be liable for delays in performing their obligations under this Order and the delivery dates will be extended without being subject to Price Discount for delayed deliveries, as stated elsewhere.	Agreed.
11.12.6	For delays arising out of Force Majeure, Supplier shall not claim extension in completion date for a period exceeding the period of delay attributable to the causes of Force Majeure and neither Buyer nor Supplier shall be liable to pay extra costs or claim any damages or compensation in addition to or in lieu of extension in completion date. To clarify, during the Force Majeure no party shall be liable to each other for the payment of any hire charges for equipment or manpower, storage charges of material, stand-by charges of equipment etc.	Agreed.
11.12.7	The Supplier shall not be entitled for extension in completion / Delivery Date if the effect of Force Majeure does not exceed 7 days.	Agreed.
11.12.8	Immediately after the end of the event of Force Majeure, the affected Party having invoked such Force Majeure shall notify the other Party in writing that the event of Force Majeure has ended and such Party shall resume performance of its obligations under the Purchase Order.	Agreed.
11.12.9	In case of an overlapping delay that is when more than one event causes a delay and the cause of at least one of those events is attributable to Supplier, then to the extent and period that such delays are concurrent, the Supplier shall not be entitled to seek resort under the Force Majeure clause and seek an extension of time for the period of such delay which is attributable to the Supplier.	Agreed.
11.12.10	The following are specifically excluded as Force Majeure and shall not constitute a basis for claims for schedule extensions, under this Purchase Order:	

No.	T&C Clause	CIRCOR Confirmation
	- Events or circumstances involving a previous or existing condition on or before the effective date of the Purchase Order; or - Delay of Material by Supplier's Vendor, Subcontractors, Sub suppliers - Late performance by a Supplier and / or his sub-Supplier caused by a shortage of supervisors or labour, inefficiencies, or similar occurrences; or - Late delivery of equipment or materials by any sub-Supplier caused by congestion at a manufacturer's plant or elsewhere, an oversold condition of the market, inefficiencies, or similar occurrences; or - Any inability to obtain visas or renewal of visas for expatriate workers; or - Changes in market conditions - Social distancing norms/ consequences of COVID 19 pandemic/quarantine requirements or the like. - Inclement or unforeseen weather, strike or lock-out, shutdown, third party breach, delay in payment or commercial hardship, shutdown or idleness or other impediment in progress or completion of the supply or work due to any reason whatsoever shall not afford the Supplier a ground for extension of time or relieve the Supplier of his/its full obligations under the PO. - Any other clause mentioned in this order	Agreed excluding pandemic clause.
11.12.11	Should the Works be delayed for more than thirty (30) consecutive days or sixty (60) days in aggregate as a result of Force Majeure, Buyer at its option may either suspend the Work affected or terminate this Purchase Order or the portion of the Work involved. The provisions governing Cancellation shall apply. However, L&T shall not be liable to pay any Cancellation charges over and above the charges as admissible under Clause of Cancellation.	Agreed.
11.12.12	Failure by Supplier to comply with the notice requirements mentioned hereinabove shall be deemed to conclusively waive Supplier's rights to invoke Force Majeure in respect of the relevant acts, events or circumstances and to any consequent entitlements to extension of time for completion of the Work or any separable portion thereof.	Agreed.
11.12.13	Notwithstanding anything mentioned hereinabove, the Buyer shall have right to invoke Force Majeure if the Buyer is unable to utilize/use the services supplied by Supplier under the Purchase Order due to events mentioned above.	Agreed.
11.13	Infringement of Intellectual Property Rights etc. Suppliers shall warrant that the sale or use of goods supplied under the Contract, whether designed and manufactured so as to comply with L&T's specifications or otherwise, shall be free of any claim, whether rightful or otherwise of any third person, by way of infringement of any patent, copyright, trademark or industrial design or the like, and the Supplier shall hold L&T harmless and indemnify L&T at Supplier's own cost, from any and all such claims and legal proceeding. L&T makes no warranty that the production, sale or use of goods designed and manufactured so as to comply with L&T's specification will not give rise to the claim, whether rightful or otherwise, of any third person by way of infringement of any patent, copy-right trademark or industrial design or the like and in no event shall L&T be liable to Supplier for indemnification in the event of any action being brought against Supplier in connection with any such claim. If Buyer's right to use such designs, drawings, calculations, software, or Materials is enjoined or otherwise restrained or precluded as a result of a claim of infringement, Supplier shall either procure for Buyer the right to use the infringing item, replace the infringing item with a substantially compatible and functionally equivalent non-infringing item, or remove the infringing item and compensate Buyer for the costs associated with procuring and installing a suitable substitute. This Clause shall survive termination of the Order.	Agreed.
11.14	Dispute Resolution:	
11.14.1	Any dispute or difference between the Parties arising out of or in connection with this Order which cannot be resolved amicably between the Parties at the level at which it arose within fifteen days thereof shall, in the first instance, be referred to the nominees of Directors of the respective Party for resolution. If the dispute cannot be settled within a further period of thirty days such dispute shall be resolved by arbitration in accordance with The Arbitration and Conciliation Act, India 1996 and any amendments thereof, by one arbitrator to be appointed by agreement between the Parties, failing which the appointment shall be made under the said Act.	Agreed.
11.14.2	The arbitration proceedings shall be conducted in English language. The arbitration venue shall be in Mumbai, India. The Parties agree that the dispute resolution process provided herein shall be the sole remedy and the Parties shall not suspend their obligations under the Order.	Agreed.
11.14.3	This Order shall be subject to the laws in force in India.	Agreed.
11.14.4	This Clause to arbitrate shall survive termination of this Order.	Agreed.
11.14.5	Notwithstanding the existence of any dispute or arbitration in terms hereof or otherwise, unless otherwise directed in writing by L&T, the Supplier shall continue and be bound to continue and perform the works to completion in all respects according to the Order (unless the Order or works be determined by L&T or by the Supplier under the provisions of the Order), and the Supplier shall remain liable and bound in all respects under the Order.	Agreed.
11.14.6	The work under the order shall, however, continue during the Arbitration proceedings and no payment due or payable to the concerned party shall be withheld (except to the extent disputed) on account of initiation, commencement or pendency of such proceedings.	Agreed.

No.	T&C Clause	CIRCOR Confirmation
11.14.7	Local rules and regulations: Supplier shall ensure that the Goods within the scope of supply for this Purchase Order are in compliance with local codes and regulations. Supplier shall ensure that local rules and regulations and procedures have been complied with in obtaining certificates if and when required. Costs related to compliance with aforementioned are included in the -Order Value. Supplier has to take note of steel policy, Value addition norms, Subcontractor and import restrictions as applicable to order while quoting and execution of the project.	Agreed.
11.14.8	Harmonized Tariff Codes: Supplier shall provide Buyer with the applicable Harmonized Tariff (HSN) Codes per line item for this Purchase Order / Packing List. Failure to do so may result in back charges to the Supplier.	Agreed.
11.15	Assignment and Sub-Contracting:	
11.15.1	Supplier shall not, except with the prior written consent of L&T, transfer or assign their obligations and interest in supply of materials, or sub-contract whole or part of the work under the Purchase Order in any manner whatsoever.	Agreed.
11.15.2	Grant of any such consent or approval shall not however absolve the Supplier in any manner from all or any of their obligations, duties and responsibilities, including delivery of materials under this Order within the stipulated Delivery schedule.	Agreed.
11.15.3	Moreover, delay, if any, by L&T in approving any Sub-Contractor(s) proposed by the Supplier, or, rejection if any, by the L&T of any Sub-Contractor(s) proposed by the Supplier, shall not entitle the Supplier for any claims for additional compensation or any claim for an extension in the Contractual Date of delivery. Supplier shall ensure that competent and resourceful agencies with proven track record should be proposed for the work to be sub-contracted.	Agreed.
11.15.4	Delay in the supply of any material to Supplier by Supplier's vendors, sub-suppliers or sub-contractors due to whatsoever reasons, shall not entitle Supplier for any extension of time for completion or to any claim for costs, loss, remuneration or damages or compensation.	Agreed.
11.16	Modifications and Amendments:	
11.16.1	L&T shall have the right to modify or amend this Purchase Order, by way of a written communication to the Supplier, subject to an adjustment in the price and/or delivery date. Adjustments in price and/or delivery date shall be mutually agreed between L&T and the Supplier.	Agreed.
	In case price and/or delivery date adjustment cannot be settled immediately, upon written instruction from Purchaser, Supplier will proceed with the modification and price and/or delivery date adjustment shall be settled by mutual agreement before order close-out. Any delay in executing the modification after receipt of written instructions shall be to Supplier's account.	
11.16.2	Supplier shall forthwith inform regarding any claim for "Change-Order" prior to commencing with the same. If there is any alteration or change in the scope of work or extra item and the Supplier or L&T considers that the change requires revision in the Order price and / or delivery, Supplier shall issue / submit the change order proposal (COP) within 7 days of such instructions issued to Supplier. Supplier shall submit the following minimum information and documents in support thereof - (i) a list of affected deliverables (ii) a breakdown of man-hours by deliverable and job title/equipment item (iii) a list of Materials and quantities with associated cost for each individual item or - cost per unit quantity as applicable (iv) copies of all related Sub-contractor quotations for the Work / Materials / equipment as stated in the proposed Change together with any discount or rebate Supplier would receive from Sub-contractor(s), directly or indirectly, for those Work / Materials /equipment (v) a network schedule fragment showing how the proposed Change Order Work would be incorporated into the Work Schedule and any resulting impact on CDD (vi) any other information / documents / clarifications as may be required by the Buyer e) In addition to describing the Change, a Change Order shall include: (i) any adjustment in the CDD / milestone dates resulting from the Change; and (ii) the lump sum price of or other basis (as determined by Buyer) for determining any increase in the PO Price either due to Vendor or credit due to Contractor as a result of such Change, if any as mutually discussed and agreed between the Parties. "Change-Orders" informed later or at the time of delivery shall not be entertained. If Supplier proceeds with the additional Work involved in a Change without first obtaining a Change Order signed by both Parties, the Supplier shall not be entitled to any additional compensation for the Work so performed or to any adjustment of the CDD and/or milestone dates as a result of the said Change. The Supplier specifically waives any and all rights to claim from Buyer for such costs or additional time to perform the Work as a result of compliance by Supplier with any such oral changes.	Agreed.
11.16.3	The Supplier shall carry out such amendments to the Purchase Order and shall be bound by the same terms and conditions incorporated in the original Purchase Order.	Agreed.

No.	T&C Clause	CIRCOR Confirmation
11.16.4	Nothing shall constitute a change order to the extent that additional work / efforts / resource deployment etc. are carried out / required only: a) to ensure that the Work is carried out and completed as per the delivery schedule b) As a consequence of Supplier's failure to comply with any of its obligations under the Purchase Order. Provided always that the provisions with respect to a Change Order or a Change Order Proposal shall not be applicable if: a) the change of supply or services or work is necessary at any time in order for the Supplier to comply with the requirements of the Contract or the Supplier's responsibilities under the Contract, b) the additional Work/ services and/or materials are required to make good the Supplier's Warranties and/or Guarantees as set forth in the Contract. c) the change relates to the repair, rectification or re-performance of any of the defective Work(s) or materials within the Supplier's scope or supply or services or work.	Agreed.
11.16.5	Any extension of time, if granted by L&T, shall be the sole remedy of the Supplier for any cause or event of delay and the Supplier shall not be entitled in addition to or in lieu of such extension, to claim any damages or compensation whether under the law governing contracts or quasi-contracts or any other relationship, and the Supplier hereby waives and disclaims any and all contrary rights.	Agreed.
11.17	Right of the Buyer to set-off: L&T shall be entitled to recover from the Supplier any sum(s) due to L&T on account of any damage(s) or otherwise, whether in respect of Supplies under this Purchase Order or under any of their previous Purchase Orders / Contracts, by deducting such sums from the amount due by them to the Supplier in respect of Supplies made under this Purchase Order or any of their prior or subsequent Purchase Orders / Contracts and/or Bank Guarantees.	Agreed.
11.18	Confidentiality: All drawings, specifications and details furnished by L&T to the Supplier shall be kept confidential. The technical information imparted and supplied to the Supplier by L&T shall at all times remain the absolute property of L&T. Supplier shall preserve and cause its employees to preserve the secrecy of any confidential information. Supplier shall read and un-conditionally accept the terms and conditions of Non-Disclosure Agreement (NDA) as per Annexure E and Countersign (with stamp). Supplier shall not use or cause to be used any confidential information for any purpose other than the performance of the Work, and as such Supplier shall not a) reproduce, copy or use any confidential information, or b) disclose to, place at the disposal of, or use on behalf of any third party, or enable any third party to peruse, copy or use any confidential information unless with prior written consent of L&T. This Clause shall survive termination of the Order.	Agreed.
11.19	Post Warranty Comprehensive Annual Maintenance Contract (PWCAMC) Supplier to submit the quote and confirm acceptance to Terms and Conditions for Post Warranty Comprehensive Annual Maintenance Contract (PWCAMC) enclosed as Annexure H of this document (will be provided during Project phase). For Proposal, Supplier to refer RFQ for respective PWCAMC items. The AMC Charges shall be inclusive of all the charges for Transportation, Lodging, Boarding, all insurances including third party insurance, all Taxes /Duties / Cess /Levies / Fees and all other incidental charges etc. but excluding GST which shall be payable extra at actual on Submission of Invoice as per GST Invoicing rules. Purchase/OWNER will not have any liability, whatsoever, over and above the quoted prices of PWCAMC.	Agreed.

No.	T&C Clause	CIRCOR Confirmation
	Other Terms & Conditions of PWCAMC: Payment Term: The payment terms for the AMC shall be on quarterly basis after completion of each quarter against submission of Bills duly certified by the Engineer-in-charge. Payment will be made through Wire transfer within 60 days from certified invoice. Validity: The order for PWCAMC will be placed before the completion of Project Defect Liability Period PWCAMC Prices offered must be valid for ordering till one year after completion of Project Defect Liability Period The price of AMC services will remain firm & fixed for the complete execution of AMC contract. PBG: Within 10 Days of placement of Order for PWCAMC, SUPPLIER shall submit PBG for 5% of the annual PWCAMC amount which shall be valid for the entire AMC period Logistic Support: Supplier to furnish Logistic support certificate as per Annexure J. The logistic support certificate shall be signed by corporate level person of the Supplier. OWNER may decide to enter into separate contract with AMC service provider / Supplier at its discretion on the same prices and terms & conditions.	
11.20	NA	
11.21	NA	
11.22	Supplier's Sales / Commercial Conditions , if any, and/or any other terms & conditions indicated in their offer shall not be applicable and stand withdrawn in lieu of "Terms & Conditions" agreed and recorded between "Supplier" and "L&T" before placement of Order. Deviations whatsoever after placement of LOI / P.O. (whichever is earlier) are not acceptable & valid. <u>In case of any contradictions in the Terms & Conditions, the more stringent shall be applicable.</u>	Agreed.
11.23	NA	
11.24	STEP-IN RIGHTS:	Agreed.
11.24.1	If, in the opinion of Buyer, the Supplier's financial affairs become unsound or he suspends payment of his commercial debts or if there are reasons for Buyer to believe that Supplier may become insolvent or it has committed the breach of the terms of Purchase Order or there is any delay in performance of the Purchase order, then Buyer may without prejudice to any other rights it may have under the Purchase Order, have the right to enter upon the worksite and without thereby terminating the Purchase Order, or releasing the Supplier of his obligations or liability under the Purchase Order take over the balance Works and complete the same by using Supplier resources including but not limited to yard, equipment, personnel, workmen and/or other sub-Supplier, as Buyer in its absolute discretion may think proper and at the sole risk and cost of Supplier.	Agreed.
11.24.2	If Buyer in exercising any of the rights conferred by this clause incurs any expenditure in excess of the Purchase Order Value, then such excess amount shall be paid by the Supplier/ Sub-Supplier to Buyer, and such amount shall be considered as debt due to the Buyer.	Agreed.
11.24.3	Notwithstanding any provision to the contrary the Buyer while exercising its rights under this clause shall not be liable to pay to the Supplier any money until the cost of completion of the works and all other expenses incurred by Buyer have been ascertained. Supplier shall provide Indemnity Bond as per Annexure N attached with this Terms & Conditions.	Agreed.
11.24.4	The Supplier guarantees that such Buyer's right of taking over of the works will be accepted by its sub-Supplier and will be included in the respective sub-purchase orders.	Agreed.
11.24.5	In case the Buyer decides to make use of its aforesaid right and if so requested by him, the Supplier shall facilitate and assist Buyer. Notwithstanding Buyer's use of such rights, it shall also have a right to pay any sub-Supplier directly to prevent from suspending or terminating performances. The amount so paid will subsequently be set-off from the Purchase Order Value.	
11.25	FREE ISSUE MATERIAL	Agreed.
11.25.1	The Buyer can supply, free of charge certain material (hereinafter referred as the Free-Issued Material) (if any) in accordance with the details stated Purchase Order. The Buyer can provide such Free Issued Material either at the Supplier's Site / Yard / Warehouse or any other location stated in the Purchase Order. Supplier shall be liable for all demurrage or other charges in connection with any delay in unloading, hauling, lifting or handling of Free-Issued Material.	Agreed.
11.25.2	As soon as Free-Issued Material is received in Supplier's Site/Yard/Warehouse, it shall mark them with an identification number and Buyer's name, and shall keep them separate from other items. Upon receipt of such Free-Issued Material, the Supplier shall thoroughly inspect them, and shall promptly give notice within three (3) days from the receipt of the Free Issued Material to the Buyer of any shortfall, theft, pilferage, defect, or damage in these Free-Issued Material failing which the Supplier shall be deemed to have accepted and confirmed that the Free Issued Material are free from any shortfall, defects, or damage.	Agreed.
11.25.3	Once the Free-Issued Material is delivered by the Buyer, the Supplier shall be responsible for the care, custody, control, storage, handling, protection, preservation, re-packing return of surplus or unused material and use of the Free Issued Material. Supplier shall provide Indemnity Bond as per Annexure N attached with this Terms & Conditions.	Agreed.
11.25.4	Supplier must, at all times, segregate the Free Issued Materials from the other material, Construction Equipment, and any other Supplier's property. Supplier must use the Free Issued Materials solely and exclusively for incorporation in and the performance of Works.	
	The Free Issued Materials shall be always considered to be the property of Buyer and the Supplier shall ensure that it is free from any lien / charge / encumbrances.	

No.	T&C Clause	CIRCOR Confirmation
11.25.5	Supplier shall acknowledge receipt of all materials and/or equipment furnished to Supplier by Buyer for its packaging or assembly into a "complete package". It is specifically understood and agreed that title to all said items furnished by Buyer shall remain with Buyer at all times regardless of whether said items are incorporated into material or equipment being constructed hereunder and whether said items remain separable or not. Said items can at any time be reclaimed.	Agreed.

No.	T&C Clause	CIRCOR Confirmation
11.25.6	If during the term of Purchase Order there is evidence of a lien or a charge created by the Supplier on the Free-Issued Material, the Buyer may retain an amount from Supplier sufficient to indemnify Buyer against such lien or claim. Buyer may keep said amounts until the Supplier pays and discharges the lien or charge. The Buyer at his discretion may pay and discharge the same and deduct the amount paid from amounts due to Supplier under Purchase Order.	Agreed.
11.25.7	The Supplier shall be responsible for any theft, loss or damage to any such Free-Issued Material and any deterioration to any such Free-Issued Materials as a result of the Supplier's care, custody, control, handling and storage and shall indemnify and hold harmless the Buyer from any and all claim in this respect. The Supplier shall execute and sign Indemnity Bond in the format annexed herewith. The Supplier shall not remove Free-Issued Material from the Site/Yard/Warehouse without first obtaining a written release authorizing such removal from Buyer.	Agreed.
11.25.8	Upon the completion of the Works relating to the Free Issued Materials, the Supplier must notify the Buyer of any unused or surplus Free Issued Materials and the Supplier must immediately return the surplus Free Issued Materials as instructed by the Buyer in the same condition as received by the Supplier from the Buyer, except for normal wear and tear.	Agreed.
11.25.9	FIM Insurance, material reconciliation, wastages, scrap and excess material terms and conditions mutually agreed between Buyer and Supplier and covered under Purchase Order shall govern.	Agreed.
11.26	TITLE AND RISK	Agreed.
11.26.1	Title to the raw material/ Work in Progress (WIP) / finished goods shall pass to Buyer: a) on arrival of raw material on Supplier's Site / Yard / Warehouse, or b) when payment for raw material is made by Buyer, or c) when the Supplier's has commenced manufacturing at its/ sub-Supplier's Works, or d) when raw materials, WIP, finished goods are dispatched from Supplier's Works whichever occurs earlier	Agreed.
11.26.2	Notwithstanding any transfer of title, Supplier shall at all times be solely responsible for all costs arising in respect of payment for Supplier supplied materials and for transport and importation of such raw material/ WIP / finished goods including without limitation, shipment costs, customs duties and insurance costs.	Agreed.
11.26.3	Notwithstanding the above, the risk and responsibility for any damage, or loss of the raw material/WIP/finished goods shall remain with the Supplier until the final delivery.	Agreed.
11.26.4	The Supplier shall, at its sole risk and cost, take insurance cover for the risk of loss or damage to the raw material/ WIP / finished goods for its full replacement value until delivery of the finished goods in accordance with the terms of the Purchase Order.	Agreed.
11.26.5	The raw material/ WIP / finished goods shall remain under the care and custody of the Supplier until the date of delivery or achieving completion.	Agreed.
11.26.6	Supplier shall properly store and ensure maintenance, custody and control of any and all goods in accordance with the requirements of this Purchase Order and the best professional practices and shall protect the same against weather hazards, water, humidity, dirt, fire, theft, vandalism and the like. Supplier shall use every means to prevent at all times any defect, corrosion, damage, theft or loss whatsoever to the goods in its custody.	Agreed.
11.26.7	Raw material/ WIP / finished goods pertaining to the Works shall be considered to be the property of Buyer and the Supplier shall always ensure that it is free from any lien / charge / encumbrances. If during the term of Purchase Order there is evidence of a lien or a claim for which Buyer might be or become liable or to which Buyer's property might be or become subject and which is chargeable to Supplier, its sub-Supplier, Buyer may retain an amount from Supplier sufficient to indemnify Buyer against such lien or claim. Buyer may keep said amounts until the Supplier pays and discharges the lien or claim or until Buyer is satisfied that such lien or claim is invalid.	Agreed.
11.26.8	If such lien or claim is valid in Buyer's judgement, Buyer may pay and discharge the same and deduct the amount paid from amounts due to Supplier under Purchase Order.	Agreed.
11.26.9	If a lien or claim remains unsatisfied after termination of Work or completion, Supplier shall promptly refund to Buyer all amounts paid by Buyer in discharging such lien or claim, including costs and reasonable attorney fees.	Agreed.

No.	T&C Clause	CIRCOR Confirmation
11.26.10	Liens. The Supplier shall take full responsibility for the payment of its Sub-vendors / Sub-contractors under all subcontracts or purchase orders issued by it and for the management of all claims for payment thereunder, including payments to all its Sub-vendors / Sub-contractors of any tier, and shall take all proper precautions to prevent the imposition of any lien or charge against any property of the Buyer/ Company and to indemnify, defend and hold the Buyer / Owner harmless against any and all claims, demands, actions, suits, proceedings and judgments which may be brought or secured against the Buyer / Owner by reason of the Supplier's failure to make payments under any of the sub-contracts / purchase orders to its Sub-vendors / Sub-contractors. Breach of law Supplier shall defend, indemnify and hold harmless Buyer / Owner from and against any claims including libels, maritime liens and other liens, claims, charges, encumbrances, suits or penalties which may be filed on or levied upon Buyer / Owner or their associates, employees, due to any breach of any Applicable Law (including but not limited to Applicable Economic Sanctions Laws and Regulations, Applicable Export Control Laws and Regulations, other laws, regulations and requirements relating to personnel, health, safety and environmental matters, international maritime laws, regulations or requirements, or any laws restricting the import, use or possession or firearms, explosives, alcohol, pornography or other controlled or prohibited materials or substances) by any member of Supplier Group in connection with the performance of the Work and provision of Supplies under this PO. Criminal misappropriation or misapplication Notwithstanding any other provision of this PO, Supplier shall release and indemnify and hold harmless Owner and Buyer from any and all claims arising from or related to any criminal misappropriation or misapplication by any personnel of Supplier Group of any property, whether tangible or intangible, occurring during the course of or in connection with the performance of the Work and provision of Supplies under this PC. Supplier shall obtain similar indemnities running to Owner	Agreed.
11.27	COVID Clause: Supplier acknowledges that it is aware of change in the working conditions that has arisen due to the ongoing Coronavirus situation (COVID19). Supplier while submitting its bid has analysed all the aspects of the present situation of COVID19 including but not limited to - the quarantine requirements of personnel and vessels, social distancing measures, restrictions on transport, requirements of personal protection equipment, testing requirements, requirements of medical insurance etc. The consideration amount under this Purchase Order is inclusive of all such costs arising out of COVID19.	NA
11.27.1	Notwithstanding anything contained elsewhere in this Purchase Order, the Buyer shall not bear any additional time and costs impact arising out of COVID19. Supplier shall indemnify the Buyer from: (i) all costs arising out of COVID19 pertaining to the scope of work of the Supplier and (ii) all claims arising out of Supplier's employees, agents, subcontractors, personnel etc. including but not limited to their medical tests, hospitalisation, medical insurance, transportation, quarantine requirement, accommodation arrangements, stand-by etc. (iii) All claims arising out due to different notifications from State/Central authorities.	NA
11.28	The Supplier agrees at all times to indemnify and keep indemnified L&T/Owner/PMC and its officers, servants, agents from and against any and all losses or damage caused at any time to its own property or personnel. It shall hold harmless and keep indemnified L&T/Owner/PMC against - • any third party claims (including but not limited to property loss and damage, personal accident, injury or death of any person) • any and all losses arising directly or indirectly from acts of Supplier, its affiliates, sub-suppliers or any of their respective personnel during performance of obligations under the PO. • any and all losses, arising directly or indirectly from or incurred by reason of claims or sanctions or penalties imposed by any governmental authorities or others for any actual or asserted failure of Supplier to comply with any applicable law or applicable consent(s), sanction(s) and/or authorization(s) or with any rules or regulations applicable to it • any and all losses, arising directly or indirectly from or incurred by reason of failure of Supplier to pay any taxes or any amounts in respect thereof.	Agreed.
11.29	Other Terms & Conditions	
Data Protection and Privacy:	The Supplier shall comply with all applicable data protection and privacy laws and regulations. The Supplier shall ensure that any personal data processed in connection with the Purchase Order is handled in accordance with applicable laws and regulations. The Supplier shall indemnify and hold the Buyer harmless from any claims, damages, or penalties arising from the Supplier's breach of data protection and privacy obligations.	Agreed.
Anti-Bribery and Corruption:	The Supplier shall comply with all applicable anti-bribery and anti-corruption laws including the Prevention of Corruption Act, 1988, and any other relevant legislations and regulations amended from time to time. The Supplier shall not offer, give, or receive any bribes, gifts, or other inducements in connection with the execution of this Purchase Order. Any breach of this clause shall entitle the Buyer to terminate the Purchase Order with immediate effect and claim damages.	Agreed.
Intellectual Property Rights:	The Supplier shall ensure that all goods and services supplied under this Purchase Order do not infringe any third-party intellectual property rights. The Supplier shall indemnify and hold the Buyer harmless from any claims, damages, or expenses arising from any infringement or alleged infringement of intellectual property rights.	Agreed.

No.	T&C Clause	CIRCOR Confirmation
	All intellectual property rights, including but not limited to patents, copyrights, trademarks, and trade secrets, created or used in the performance of this contract shall remain the property of the respective party. The Supplier grants Buyer (L&T) a non-exclusive, royalty-free license to use any intellectual property necessary for the completion and operation of the project.	Agreed.
Compliance with Laws and Regulations:	The Supplier shall comply with all applicable laws, regulations, and standards in the performance of its obligations under this Purchase Order. This includes, but is not limited to, labor laws, tax/custom laws, environmental laws, and safety regulations. The Supplier shall indemnify and hold the Buyer harmless from any claims, damages, or penalties arising from the Supplier's non-compliance with applicable laws. Any breach of this clause shall be considered a material breach of the contract.	Agreed.
Ethical Conduct:	The Supplier shall conduct its business in an ethical manner and in accordance with the highest standards of integrity and professionalism. The Supplier shall ensure that its employees, agents, and subcontractors adhere to these standards in the performance of their duties under this Purchase Order. Supplier shall comply with the terms and conditions of Buyer's Supplier Code of Conduct available at Buyer's website.	Agreed.
Sustainability and Environmental Responsibility:	The Supplier shall adopt sustainable practices and minimize the environmental impact of its operations. The Supplier shall comply with all applicable environmental laws and regulations and shall take all necessary measures to prevent pollution, reduce waste, and conserve resources.	Agreed.
Audit Rights:	Notwithstanding any other provision of this PO, Contractor shall have the right to audit all of Vendor's records for the purpose of verifying compensation paid for terminated Work, including Lump Sum and Work Unit Basis compensation paid. The Supplier shall provide access to all relevant records and cooperate fully with the Buyer's audit team. Any discrepancies or non-compliance identified during the audit shall be rectified by the Supplier at its own cost.	Agreed.
Business Continuity and Disaster Recovery:	The Supplier shall have in place a business continuity and disaster recovery plan to ensure the uninterrupted supply of goods and services under this Purchase Order. The Supplier shall provide a copy of this plan to the Buyer upon request and shall notify the Buyer immediately in the event of any disruption to its operations.	Agreed.
Subcontractor Approval:	The Supplier shall not subcontract any part of its obligations under this Purchase Order without the prior written consent of the Buyer. The Supplier shall remain fully responsible for the performance of its subcontractors and shall ensure that they comply with all terms and conditions of this Purchase Order.	Agreed.
Prior Agreements:	This PO supersedes all previous contracts, correspondence, and understandings between the Parties concerning the subject matter hereof and constitutes their entire agreement and understanding in relation to the performance of Work / provision of Supplies as stated herein. The Parties shall not be bound by, or be liable for, any statement, representation, promise, inducement, or understanding of any kind or nature not recorded in this PO or its subsequent amendments and Change Orders.	Agreed.
No Release	The obligations and liabilities of the Supplier under this PO shall not be released, diminished or in any other way affected by any enquiry, direction, inspection, comment, consent, sanction, acknowledgement, confirmation, approval, or advice made or given by or on behalf of Buyer / Company, any Buyer/ Company representative or lenders, a Buyer's financiers (including any of their nominated entities), or any of their respective employees, servants, or agents; or any failure to enquire, direct, inspect, comment, consent, sanction, acknowledge, confirm, approve, or advise, whether or not such act or omission might give rise to an independent liability of any such person.	Agreed.

No.	T&C Clause	CIRCOR Confirmation
Invalidity	if any one or more of the provisions contained in this PO is held as invalid, illegal or unenforceable in any respect under any Applicable Law, the validity, legality and enforceability of the remaining provisions contained in this PO shall not in any way be affected or impaired.	Agreed.
Independent Contractors	The Parties to this PO are independent contractors and have entered into this agreement for the execution of Work / provision of Supplies on a principal-to-principal basis. Neither Supplier nor any member of the Supplier Group shall be deemed to be servants, agents, or employees of the Buyer.	Agreed.
Survival	The provisions in relation to Guarantee/Warranty, Patents and Royalties, liabilities, Indemnity, Governing law and Dispute resolution, infringement of IPR and Confidentiality as stated in this Purchase Order shall survive its expiry or early termination.	Agreed.
Payment Of Costs, Expenses And Damages	Payment of costs, expenses and damages to the Buyer shall not release the Supplier from its obligation to carry out and complete the work in accordance with the provisions of this Purchase Order and/or to discharge its obligations and responsibilities arising of this Purchase Order, nor prevent the Buyer from exercising its right to terminate the Purchase Order in accordance with Article 11.10.2 .	Agreed.
Standards	The goods and services must meet the technical specifications' standards. If no standard is mentioned, they should follow the Owner's/manufacturer's/licensor's standards.	Agreed.
Cooperation with other contractors	The Supplier must not hinder other contractors and should facilitate their work. The Supplier should cooperate and share technical information with the Buyer/Owner and other contractors. Supplier must comply with all safety measures at the Supplier's expense.	Agreed.
Repeat Order	In case of additional requirement, Supplier shall confirm to supply as per Unit Rate mentioned in the price schedule. Delivery schedule of such repeat order shall be prioritised by Supplier to enable L&T to meet project requirement.	Price validity shall be applicable till delivery of project
11.3	Terms & Conditions for Supplier's Supervision of Erection, Commissioning & Performance Tests and for Training of Owner's Personnel (as applicable)	
A	The per diem rates shall be inclusive of cost of Boarding & Lodging (at Site or during transit), travel during Mob and Demob, daily to & fro travel to Site, communication cost, overseas & local telephone calls, insurance, pocket money & all other incidental expenses. Per Diem Rates shall be inclusive of all taxes, duties, levies including the income tax / withholding taxes, which are required to be withheld by LTHE for the services rendered in India. Per Diem Rate for Year 2025 -- Physical Visits -- INR XXX Per Diem Rate for Year 2026 -- Physical Visits -- INR XXX Per Diem Rate for Year 2027 -- Physical Visits -- INR XXX Per Diem Rate for Year 2028 -- Physical Visits -- INR XXX Per Diem Rate for Year 2025 -- Remote Visits/Supervisions -- INR XXX Per Diem Rate for Year 2026 -- Remote Visits/Supervisions -- INR XXX Per Diem Rate for Year 2027 -- Remote Visits/Supervisions -- INR XXX	To be mutually agreed on applicable charges.

No.	T&C Clause	CIRCOR Confirmation
	Per Diem Rate for Year 2028 -- Remote Visits/Supervisions -- INR XXX To & Fro Travel (Economy Class Air Fare / II AC Train Fare) to Project Site shall be reimbursed extra at actuals by LTHE. Above Per-diem rate is also valid for Sub-supplier visit during Erection, Commissioning & Performance test at Project Site. The Per diem rate for day/Mandays shall not be payable/considered, if Supplier representative(s) are required to be "Quarantined" at site as per the guidelines of the Local Authorities / LTHE / Owner HSE requirement etc.	
B	The Per Diem charges shall be applicable from the day the engineer reports to Site-In-Charge to the day the engineer leaves the site.	Agreed.
C	Non-work days, such as Sunday or any holiday observed by OWNER / LTHE falling during the period of work shall not be considered for calculation of number of days payable, unless such days are certified as work days by LTHE's site in-charge.	Agreed.
D	The per diem rate mentioned above is considering 10 hours of working per day (excluding lunch hours) for 6 working days in a week. No overtime shall be paid for working beyond 10 hours in a day. Working on Sundays / Holidays shall be paid at normal per diem rate mentioned above. Time consumed during travelling to & fro between hotel / lodging location to site shall not be considered under working hour.	Agreed.
E	Supplier will bring along Special apparatus / instrument / measuring devices etc., duly calibrated (if required) to carry out adjustment/setting etc. and to perform various tests as required.	Agreed.
F	In the event the duration of stay of Supplier's supervision is solely attributable to the Supplier, (i.e. due to re-work or repair, waiting for material or instructions from head office etc.) then all costs incurred by the Supplier(s) for those number of days shall be to account of the Supplier.	Agreed.
G	The supervision expert shall be mobilized within 10 days of notice given to Supplier.	Agreed.
H	Supplier shall take all necessary Insurance Policies as applicable to cover Supplier's owned, leased or hired equipment, tools, vehicles etc. Necessary Insurance such as Workman compensation policy and/or ESI policy and/or Employer's liability policy as applicable, for the personnel deputed to site by Supplier shall be taken by the Supplier and the charges for the same shall be to Supplier's account and is included in the per diem rates mentioned above. Third Party Liability Insurance (TPL) to be procured by Supplier shall cover legal liability for bodily injury to loss of life of and/or damage to and loss of properties of the third person party arising out of the performance by the Supplier of the works.	Agreed.
I	Supplier shall submit the following at least 4 weeks prior to deputation of the engineer :- - Check-list of all activities / resources (manpower, material, machinery) to be conducted / arranged by LTHE before the arrival of engineer at project site. - Detailed Bar Chart highlighting all the activities with duration for Erection / Installation / Testing of the Equipment. - List of Tools & Tackles, measuring Instruments and manpower resources required for Erection / Installation / Testing which are to be arranged by LTHE.	Agreed.
J	Payment for Supervision of erection & commissioning shall be effected by Wire Transfer against time sheets duly certified by LTHE's site in-charge within 60 days of submission of monthly Invoice with following correct supporting documents like: - Invoice of Flight & Boarding Pass or Train Ticket. - Time sheet duly certified by site in-charge. - Copy of MOM made at site. - Copy of Insurance Policy for Personnel and/or equipment/tools as applicable. The Supplier shall adhere to the Billing Instructions issued by LTHE while submitting Service Invoice. Applicable Goods and Services tax (SGST/UTGST, CGTS, IGST) on Services shall be paid by LTHE, subject to following terms – - Suppliers are registered under GST and have valid GST registration at all the time. - Supplier shall submit GST tax invoice as per applicable SGST / UTGST/ CGST / IGST Act, 2017 and corresponding GST rules - Supplier shall discharge the applicable CGST & SGST/UTGST / IGST liability, as the case may be, and file GST Returns within the stipulated time. - Applicable GST value & rate to be indicated in tax invoice, as per relevant GST Act / Rules. - Credit and Debit note to be raised as per the relevant provision of GST Act and rules made thereunder. - Any increase in GST Rate over and above the applicable rate, whether arising out of statutory changes or otherwise beyond the "Contractual Delivery Date" (CDD) shall be to Supplier's account. - Any increase in the GST Liability or any other duties, taxes and levies due to wrong classification of SAC (Services Accounting Code) by the Supplier shall be to Supplier's account. - In the event the Supplier does not discharge the applicable GST in time as per the GST payment rules and input tax credit is not available to LTHE as on the date of payment to Supplier, the Company (LTHE) reserves the right to retain such GST amounts from the Supplier's Payments and release the same only after evidence of tax payment by the Supplier is furnished. - Supplier shall furnish the details of returns filed against invoice issued to LTHE as evidence of his tax liability discharge.	Agreed.
K	Health, Safety & Environmental Protection Procedures (HSE) The Purchaser and the Supplier agree to abide to all HSE norms as established by LTHE, PMC, Owner and laws of India.	Agreed.
L	Other Terms	

No.	T&C Clause	CIRCOR Confirmation
PO	Purchase Order	
DLP	Defect Liability Period	
ITP	Inspection Test Plan	
SDR	Supplier Data Requirement	
PTR	Proven Track Record	
VQC / SQC	Vendor / Supplier Qualification Criteria	
MR	Material Requisition	
PR	Purchase Requisition	
LSP	Logistic Service Provider	
PBG	Performance Bank Guarantee	
KOM	Kick Off Meeting	
HAZOP	Hazard and Operability Study	
SIL	Safety Integrity Level	
Supplier	Shall mean the Supplier of Goods and/or Services on whom the Purchase Order is released	
Sub-Supplier	Shall mean Supplier's Supplier of any tier	
Supplier Group	Shall mean Supplier, its Sub-Supplier of any tier, and their respective representatives, but shall not include any member of L&T	
POMS	Shall mean "Post Order Management System" a digital (web based) portal developed by L&T for information capturing and/or data sharing and/or performing various required activities by Supplier subsequent to LOI/PO issuance.	
Free Issued material	Shall mean any equipment and/or materials and/or Goods provided by L&T/OWNER.	
Package	Supplies under this Contract.	
Supplies	Shall mean the totality of Goods and/or Services by expression or implication required to be supplied by the Supplier within the Scope of Work as per Order.	
RFQ	Request for Quotation including amendments issued to Supplier and covers instruction to bidders, Terms & conditions, Material requisition and all other documents.	
L&T/Buyer	Larsen & Toubro Limited	
FAT / IFAT	Factory Acceptance test / Integrated Factory Acceptance Test to be carried out at Supplier / sub-Supplier facilities / factory as per agreed scope	
SAT	Site Acceptance Test to be carried out at Project Site as per agreed scope	
Day	Shall mean Gregorian calendar day unless specified otherwise	
QC	Quality Control	

			SPECIFICATION DE-SUPERHEATER CIRCOR Select v15.3.0			Quote No./Rev: 250702-0400-PA / 0 Item Desc.: DSH-Line Item1 Item Rev. / Date: 2 / 19-Aug-2025 Customer: Larsen & Toubro Limited Cust. RFQ / Rev: E24003-RCF-IN-DST-042 Project Name: 1200 MTPD (DAP Basis) NPK Project, Thal, Maharashtra (India) End User: Rashtriya Chemicals and Fertilizers Limited									
Plant Name: Unit No.: Line/PID No.:			Application: De-Superheater Quantity : 1 Primary Line: Tag No.: DS-9801												
Plant Site: -															
1		Fluid : Steam		Service :		ShutOff :									
		Sizing Properties Steam:		Units	Max	Norm	Min	Cond4	Cond5						
2	SERVICE / CONDITIONS	Inlet Flow Rate		kg/hr	7258	4698	1410								
3		Pressure, P1		kg/cm2(G)	8	8	8								
4		Inlet Temp., T1		°C	416	416	416								
5		Outlet Flow Rate		kg/hr	8878	5747	1725								
6		Outlet Temp., T2		°C	180	180	180								
		Sizing Properties Spray Water (SW):													
7		Flow Rate		kg/hr	1620	1049	315								
8		Pressure		kg/cm2(G)	16	16	16								
9		Temperature		°C	115	115	115								
10	LINE	Steam Size & Sch. Inlet	DN 150 SCH STD	40	 Probe Style - SL Nozzle Data Plate Stainless Steel										
11		Steam Size & Sch. Outlet	DN 150 SCH STD	41											
12		Steam Pipe Mat'l In	ASTM A106 Gr B	42											
13		Steam Pipe Mat'l Outlet	ASTM A106 Gr B	43											
14		Liner Size & Sch.	4 inch SCH STD	44											
15		SW Size & Sch. Inlet	DN 25, SCH 160	46											
16		SW Pipe Mat'l Inlet	ASTM A106 Gr B	47											
17	DSH BODY	Type	Spring Loaded - Probe Style	48	POSITIONER										
18		Stub Size	3 Inch	49											
19		Pressure Class	300#	50											
20		Steam Dsgn Press/Temp	18.15 / FV / 420 °C	51											
21		SW Dsgn Press/Temp	18 / FV / 155	52											
22		Mfr. / Model	CIRCOR	53											
23		Model No.	CIR 3230	54											
24		SW Flange Size	1 Inch	55											
25		SW Flange Rating	300#	56											
26		Rated Cv	SL40B	57											
27		Characteristic		58											
28		End Connection	RF Flanged	59											
29	MATERIAL	Body/Bonnet Mat'l	ASTM A106 Gr B / A105	60	AIR SET										
30		Stub Material		61											
31		Trim Material		62											
32		Nozzle Material	A565 Gr 616 / Alloy 422	63											
33		Trim Type		64											
34		Certification	IBR	65	SOL										
35	ACC.	Volume Booster		66											
36		Volume Tank		67											
37	LOC.	Equip. Location	Outdoor	68	SWITCH										
38		Amb. Temp. Min/Max		69											
39		Area Classification	Non-Hazardous	70											
		Min Required Straight Length	6m	71	TEST	Seat Leakage Other See Factory Notes / QA Plan									
		Min Req. Temp Sensors Dist.	12m	72											
		6 inch Steam Pipe A106 Gr. B / Sch Std / WNRF ends with 4 inch Sch40 A106 Grb Liner offered to improve the velocity in minimum flow condition.		73											
		Corrosion Allowance 2 mm		74											
		Steam Pipe PMS 3A1BC		75											
		Spray water Pipe PMS 3A1BC		76											
		5 Deg C more than saturation level considered at DSH outlet to avoid condensate formation													
										Press/Temp Tables: ASME B16.34					
Recommended the strainer in the water line (Customer Scope)										Submittal by: Karthikeyan S Company: CIRCOR Flow Technologies India Pvt Ltd Contact Info:					

		DESUPERHEATER ANALYSIS SHEET CIRCOR Select v15.3.0			Quote No./Rev: 250702-0400-PA / 0	
Plant Name:		Application: Attemperator Spray Water			Item Desc.: DSH-Line Item1	
Unit No.:		Quantity : 1			Item Rev. / Date: 2 / 19-Aug-2025	
Line/PID No.:		Primary Line:			Customer: Larsen & Toubro Limited	
Plant Site: -		Tag No.: DS-9801			Cust. RFQ / Rev: E24003-RCF-IN-DST-042	
					Project Name: 1200 MTPD (DAP Basis) NPK Project, Thal, Maharashtra (India)	
					End User: Rashtriya Chemicals and Fertilizers Limited	
Fluid: Steam						
Sizing Properties Steam:		Units	Max	Norm	Min	Cond4
Inlet Flow Rate		kg/hr	7258	4698	1410	
Pressure, P1		kg/cm2(G)	8	8	8	
Inlet Temp., T1		°C	416	416	416	
Saturated Temp		°C	174.69	174.69	174.69	
Inlet Enthalpy		KJ/Kg	3300.17	3300.17	3300.17	
Inlet Specific Volume		m3/kg	0.394	0.394	0.394	
Outlet Flow Rate		kg/hr	8878	5747	1725	
Outlet Temp., T2		°C	180	180	180	
Outlet Enthalpy		KJ/Kg	2786.21	2786.21	2786.21	
Outlet Specific Volume		m3/kg	0.247	0.247	0.247	
Sizing Properties Spray Water (SW):						
Flow Rate		kg/hr	1620	1049	314.73	
Pressure		kg/cm2(G)	16	16	16	
Temperature		°C	115	115	115	
Enthalpy		KJ/Kg	483.63	483.63	483.63	
Rel. Density		Kg/m3	0.95	0.95	0.95	
Steam Inlet Velocity		m/s[Mach No.]	38.44[0.06]	24.88[0.04]	7.47[0.01]	
Steam Outlet Velocity		m/s[Mach No.]	23.99[0.05]	15.53[0.03]	4.66[0.01]	
SW Velocity		m/s				
Velocities			Normal	Normal	Normal	
Required Cv						
Flow Condition			Normal	Normal	Normal	
Shut-Off Pressure						
Steam Dsgn Temp In/Out :						
Minimum Degree of Superheat Required:				5 °C (41 °F)		
Min Required Straight Length (From point of water injection):				6m		
Min Required Temp Sensors Distance (From point of water injection):				12m		
Turn Down Ratio: NA						
Spray Water Quantity Required:						
$Q_w = \frac{H_1 - H_2}{H_2 - H_w} \times Q_s$						
H1 = Enthalpy of Steam at Inlet in KJ/Kg						
H2 = Enthalpy of Steam at Outlet in KJ/Kg						
Hw = Enthalpy of Water in KJ/Kg						
Qs = Steam Flow Rate in Kg/Hr						
$Q_w = \frac{3300.17 - 2786.21}{2786.21 - 1620.08} \times 7258$						
Qw = 1620 kg/hr						
*Invalid/Incomplete.			Submittal by:			
			Company:			
			Contact Info:			

				SPECIFICATION ON-OFF / CONTROL VALVE CIRCOR Select v23.1.0				Quote No./Rev: 250702-0400-PA / 2			
Plant Name: Unit No.: Line/PID No.: Plant Site: Thal, Maharashtra,INDIA				Application: Attemperator Spray Water				Item Desc.: CV-Line Item2			
				Quantity : 1				Item Rev. / Date: 2 / 19-Aug-2025			
				Primary Line: -				Customer: L&T Energy Hydrcarbon			
				Tag No.: TCV-A1-9802				Cust. RFQ / Rev: 0			
				Project Name: 1200 MTPD (DAP Basis) NPK Project				End User: Rashtriya Chemicals and Fertilizers Limited			
				Critical Pressure : 224.52 kg/cm²							
		Sizing Properties		Units	Case1	Case2	Case3	Case4	..	Shut-Off	
2	SERVICE / CONDITIONS	Flow Rate		kg/hr	1620	1049	315			---	
3		Inlet Pressure		kg/cm²[g]	16	16	16			18 kg/cm²	
4		Outlet Pressure		kg/cm²[g]	10.2	10.1	10			---	
5		Choke Drop		kg/cm²	12.904	13.304	13.338			---	
6		Inlet Temperature		°C	115	115	115			115	
7		Vapor Pressure		kg/cm²[g]	0.69	0.69	0.69			---	
8		Rel. Density			0.948	0.948	0.948			---	
9		Absolute Viscosity		cP	0.257	0.257	0.257			---	
10		Required Cv			0.81	0.52	0.15			---	
11		Travel		%	64.5	53	17			---	
12		Allow. / Pred. SPL, IEC		dBA	85 / 39	85 / 35	85 / 21			---	
13		F _L		5	0.91	0.93	0.93			---	
14	LINE	Pipe Size & Sch. In		DN 25 Sch. 160		53	Type	Pneumatic Spring & Diaphragm			
15		Pipe Size & Sch. Out		DN 25 Sch. 160		54	Mfr. / Model	CIRCOR / STD			
16		Pipe Insulation		None		55	Size/Eff. Area				
17	VALVE / BODY / BONNET	Type		Cast-Globe		56	Service	Modulating			
18		Body Size		DN25		57	Sprg Actn/Air Fail	Closed			
19		Pressure Class		300 ANSI		58	Spring No.				
20		Dsgn Press		18 kg/cm²[g]	Dsgn 115 °C	59	Max.Allow. Cyl. Press.	6 bar[g]			
21		Mfr. / Model		CIRCOR / 3100		60	Min. Req'd Press.	4 bar[g]			
22		Model No.				61	Avail. Air Supply				
23		Body/Bonnet Mat'l		A105		62	Max / Min Press	5.5 bar[g] / 4 bar[g]			
24		End Connection		DN25 Raised Face (RF) Flange		63	Bench Range				
25		Flg. Face Finish		Std. 125 - 250 rms		64	Orientation	Vertical			
26		End Ext. Mat'l				65	HOD/Override Type	Yes - Side Mounted			
27		Flow Direction		Flow Under Plug		66	Lock Up Valve	No			
28		Type of Bonnet		Standard-UTP		67	Set Press.				
29		Packing Mat'l		PTFE		68	Tubing/Fittings	3/8" NPT SS316			
30	TRIM	Type		Unbalanced - Top Guided		69	Data Plate	Stainless Steel			
31		Cage Type		Contour Plug		70	Mfr. / Model	Metso / YTC / Siemens			
32		Characteristic		Equal Percent		71	Input Signal	4-20 mA DC			
33		Travel / Stroke		20 mm		72	On Incr. Signal O/p	Increase			
34		Rated Cv		3.5		73	Type/Protocol	Smart / HART (IP67)			
35		Plug Mat'l		CF8M / SS 316 + Stellite		74	Gauges/By-Pass	Yes / No			
36		Seat Ring Material		CF8M / SS 316 + Stellite		75	Cam Characteristic	Linear			
37		Cage Mat'l		CF8M / SS 316 Cr. Plated		76	Position Feedback	Yes			
38		Stem Mat'l		A479 TY 316		77	Mfr. / Model	SHAVO (Al. Enclosure)			
39		SPECIAL ACCESSORIES		Cable Glands offered 1/2" NPT Adapter offered at AFR inlet w.r.t process connection		78	Range	0-10 Kg/cm2g			
79	Filter / Gauge					Yes (5 Micron) / Yes					
	Set Pressure					4 Barg					
80	Mfr. / Model										
81	Quantity/Type										
82	Voltage										
83	Mfr. / Model										
84	Contacts/Rating										
45	LOC.	Equip. Location Outdoor Amb. Temp. Min/Max Area Classification Non-Hazardous Compliance IBR		85	Type						
86				Actuation Points							
87				Hydro Test Press.	77.57 bar[g]						
88				Seat Leakage	ANSI/FCI 70-2 Class V						
89				Other	See Factory Notes / QA Plan						
				Req Stem Thrust:							
				Press/Temp Tables: ASME/ANSI B16.34							
				Submittal by: Karthikeyan Sekar							
				Company: CIRCOR Flow Technologies India Pvt Ltd							
				Contact Info:							

			SPECIFICATION DE-SUPERHEATER CIRCOR Select v15.3.0			Quote No./Rev: 250702-0400-PA / 0 Item Desc.: DSH-Line Item2 Item Rev. / Date: 0 / 16-Jul-2025 Customer: Larsen & Toubro Limited Cust. RFQ / Rev: E24003-RCF-IN-DST-042 Project Name: 1200 MTPD (DAP Basis) NPK Project, Thal, Maharashtra (India) End User: Rashtriya Chemicals and Fertilizers Limited			
Plant Name: Unit No.: Line/PID No.: Plant Site: -			Application: De-Superheater Quantity : 1 Primary Line: Tag No.: DS-9805						
1		Fluid : Steam		Service :		ShutOff :			
		Sizing Properties Steam:		Units	Max	Norm	Min	Cond4	Cond5
2	SERVICE / CONDITIONS	Inlet Flow Rate		kg/hr	5428	4737	1421		
3		Pressure, P1		kg/cm2(G)	3.5	3.5	3.5		
4		Inlet Temp., T1		°C	161.5	161.5	161.5		
5		Outlet Flow Rate		kg/hr	5474	4777	1433		
6		Outlet Temp., T2		°C	153	153	153		
7		Sizing Properties Spray Water (SW):							
8		Flow Rate		kg/hr	46	40	12		
9		Pressure		kg/cm2(G)	16	16	16		
9		Temperature		°C	115	115	115		
10	LINE	Steam Size & Sch. Inlet	DN 150 SCH 40	40	Reference Sketch  Fixed Nozzle Desuperheater				
11		Steam Size & Sch. Outlet	DN 150 SCH 40	41					
12		Steam Pipe Mat'l In	ASTM A106 Gr B	42					
13		Steam Pipe Mat'l Outlet	ASTM A106 Gr B	43					
14		Liner Size & Sch.	N/A N/A	44					
15		SW Size &		45					
16		Sch. Inlet	DN 25, SCH 160	46					
16		SW	N/A	47					
16		Pipe Mat'l Inlet							
17	DSH BODY	Type	Fixed Nozzle - Probe Style	48	Data Plate Stainless Steel				
18		Stub Size	3 Inch	49					
19		Pressure Class	150#	50					
20		Steam Dsgn Press/Temp	18.15 / FV / 420 °C	51					
21		SW Dsgn Press/Temp	18 / FV / 155	52					
22		Mfr. / Model	CIRCOR	53					
23		Model No.	CIR 3210	54					
24		SW Flange Size	1 Inch	55					
25	SW Flange Rating	300#	56	POSITIONER	Mfr. / Model				
26	Rated Cv	1.2 (VN4 X 4)	57		Input Signal				
27	Characteristic		58		On Incr. Signal O/p				
28	End Connection	RF Flanged	59		Type/Protocol				
29	MATERIAL	Body/Bonnet Mat'l	ASTM A106 Gr B / A105	60	Gauges/By-Pass				
30		Stub Material		61	Cam Characteristic				
31		Trim Material		62	Position Feedback				
32		Nozzle Material	SS 316 Stellite	63	AIR SET	Mfr. / Model			
33		Trim Type		64		Range			
34	Certification	None	65	Filter / Gauge					
35	ACC.	Volume Booster		66	Set Pressure				
36		Volume Tank		67	SOL	Mfr. / Model			
37	Equip. Location	Outdoor	68	Quantity/Type					
38	Amb. Temp. Min/Max		69	Voltage					
39	LOC.	Area Classification	Non-Hazardous	70	SWITCH	Mfr. / Model			
	Min Required Straight Length	6m	71	Contacts/Rating					
	Min Req. Temp Sensors Dist.	12m	72	Type					
		Corrosion Allowance 2 mm		73	Actuation Points				
		Steam Pipe PMS 3A1BC		74	TEST	Seat Leakage			
		Spray water Pipe PMS 3A1BC		75		Other	See Factory Notes / QA Plan		
		5 Deg C more than saturation level considered at DSH outlet to avoid condensate formation		76					
					Press/Temp Tables: ASME B16.34				
Recommended the strainer in the water line (Customer Scope)					Submittal by: Prabakaran A Company: CIRCOR Flow Technologies India Pvt Ltd Contact Info: 9150004743				

	DESUPERHEATER ANALYSIS SHEET CIRCOR Select v15.3.0			Quote No./Rev: 250702-0400-PA / 0		
Plant Name: Unit No.: Line/PID No.:	Application: Attemperator Spray Water			Item Desc.: DSH-Line Item2		
	Quantity : 1			Item Rev. / Date: 0 / 16-Jul-2025		
	Primary Line:			Customer: Larsen & Toubro Limited		
Plant Site: -	Tag No.: DS-9805			Cust. RFQ / Rev: E24003-RCF-IN-DST-042		
				Project Name: 1200 MTPD (DAP Basis) NPK Project, Thal, Maharashtra (India)		
				End User: Rashtriya Chemicals and Fertilizers Limited		
Fluid: Steam						
Sizing Properties Steam:		Units	Max	Norm	Min	Cond4
Inlet Flow Rate		kg/hr	5428	4737	1421	Cond5
Pressure, P1		kg/cm2(G)	3.5	3.5	3.5	
Inlet Temp., T1		°C	161.5	161.5	161.5	
Saturated Temp		°C	147.46	147.46	147.46	
Inlet Enthalpy		KJ/Kg	2775.14	2775.14	2775.14	
Inlet Specific Volume		m3/kg	0.001	0.001	0.001	
Outlet Flow Rate		kg/hr	5474	4777	1433	
Outlet Temp., T2		°C	153	153	153	
Outlet Enthalpy		KJ/Kg	2755.80	2755.80	2755.80	
Outlet Specific Volume		m3/kg	0.001	0.001	0.001	
Sizing Properties Spray Water (SW):						
Flow Rate		kg/hr	46	40	12.10	
Pressure		kg/cm2(G)	16	16	16	
Temperature		°C	115	115	115	
Enthalpy		KJ/Kg	483.63	483.63	483.63	
Rel. Density		Kg/m3	0.95	0.95	0.95	
Steam Inlet Velocity		m/s[Mach No.]	35.25[0.02]	30.76[0.02]	9.23[0.01]	
Steam Outlet Velocity		m/s[Mach No.]	34.43[0.02]	30.04[0.02]	9.01[0.01]	
SW Velocity		m/s				
Velocities			Normal	Normal	Normal	
Required Cv						
Flow Condition			Normal	Normal	Normal	
Shut-Off Pressure						
Steam Dsgn Temp In/Out :						
Minimum Degree of Superheat Required:			5 °C (41 °F)			
Min Required Straight Length (From point of water injection):			6m			
Min Required Temp Sensors Distance (From point of water injection):			12m			
Contingency:			0 %			
Turn Down Ratio:			NA			
Spray Water Quantity Required:						
$Q_w = \frac{H_1 - H_2}{H_2 - H_w} \times Q_s$						
H1 = Enthalpy of Steam at Inlet in KJ/Kg						
H2 = Enthalpy of Steam at Outlet in KJ/Kg						
Hw = Enthalpy of Water in KJ/Kg						
Qs = Steam Flow Rate in Kg/Hr						
$Q_w = \frac{2775.14 - 2755.8}{2755.8 - 46.21} \times 5428$						
Qw = 46 kg/hr						
*Invalid/Incomplete.			Submittal by:			
			Company:			
			Contact Info:			

				SPECIFICATION ON-OFF / CONTROL VALVE CIRCOR Select v23.1.0				Quote No./Rev: 250702-0400-PA / 2	
Plant Name:				Application: Attemperator Spray Water				Item Desc.: CV-Line Item4	
Unit No.:				Quantity : 1				Item Rev. / Date: 2 / 19-Aug-2025	
Line/PID No.:				Primary Line: -				Customer: L&T Energy Hydrcarbon	
Plant Site: Thal, Maharashtra,INDIA				Tag No.: TCV-A1-9806				Cust. RFQ / Rev: 0	
								Project Name: 1200 MTPD (DAP Basis) NPK Project	
								End User: Rashtriya Chemicals and Fertilizers Limited	
1	Fluid : Water			Critical Pressure : 224.52 kg/cm²					
	Sizing Properties		Units	Case1	Case2	Case3	Case4	..	Shut-Off
2	SERVICE / CONDITIONS	Flow Rate	kg/hr	46.21	40.33	12.1			---
3		Inlet Pressure	kg/cm²[g]	16	16	16			18 kg/cm²
4		Outlet Pressure	kg/cm²[g]	5.26	4.84	3.62			---
5		Choke Drop	kg/cm²	15.114	15.114	15.114			---
6		Inlet Temperature	°C	115	115	115			155
7		Vapor Pressure	kg/cm²[g]	0.69	0.69	0.69			---
8		Rel. Density		0.948	0.948	0.948			---
9		Absolute Viscosity	cP	0.257	0.257	0.257			---
10		Required Cv		0.02	0.02	0.004			---
11		Travel	%	65	50	10			---
12		Allow. / Pred. SPL, IEC	dBA	85 / 2	85 / 1	85 / 17			---
13		F _L	5	0.99	0.99	0.99			---
14	LINE	Pipe Size & Sch. In	DN 25 Sch. 160		53	Type	Pneumatic Spring & Diaphragm		
15		Pipe Size & Sch. Out	DN 25 Sch. 160		54	Mfr. / Model	CIRCOR / STD		
16		Pipe Insulation	None		55	Size/Eff. Area			
17	VALVE / BODY / BONNET	Type	Cast-Globe		56	Service	Modulating		
18		Body Size	DN25		57	Sprg Actn/Air Fail	Closed		
19		Pressure Class	300 ANSI		58	Spring No.			
20		Dsgn Press	18 kg/cm²[g]	Dsgn 155 °C	59	Max.Allow. Cyl. Press.	6 bar[g]		
21		Mfr. / Model	CIRCOR / 3100		60	Min. Req'd Press.	4 bar[g]		
22		Model No.			61	Avail. Air Supply			
23		Body/Bonnet Mat'l	A105		62	Max / Min Press	5.5 bar[g] / 4 bar[g]		
24		End Connection	DN25 Raised Face (RF) Flange		63	Bench Range			
25		Flg. Face Finish	Std. 125 - 250 rms		64	Orientation	Vertical		
26		End Ext. Mat'l			65	HOD/Override Type	Yes - Side Mounted		
27		Flow Direction	Flow Under Plug		66	Lock Up Valve	No		
28		Type of Bonnet	Standard-UTP		67	Set Press.			
29		Packing Mat'l	PTFE		68	Tubing/Fittings	3/8" NPT SS316		
30	TRIM	Type	Unbalanced - Top Guided		69	Data Plate	Stainless Steel		
31		Cage Type	MF Plug		70	Mfr. / Model	Metso / YTC / Siemens		
32		Characteristic	Modified		71	Input Signal	4-20 mA DC		
33		Travel / Stroke	25 mm		72	On Incr. Signal O/p	Increase		
34		Rated Cv	0.04		73	Type/Protocol	Smart / HART (IP67)		
35		Plug Mat'l	SS 440C Hardened		74	Gauges/By-Pass	Yes / No		
36		Seat Ring Material	SS 440C Hardened		75	Cam Characteristic	Linear		
37		Cage Mat'l	Integral with seat		76	Position Feedback	Yes		
38		Stem Mat'l	A479 TY 316		77	Mfr. / Model	SHAVO (Al. Enclosure)		
39	SPECIAL ACCESSORIES	Cable Glands offered			78	Range	0-10 Kg/cm2g		
40		1/2" NPT Adapter offered at AFR inlet w.r.t process connection			79	Filter / Gauge	Yes (5 Micron) / Yes		
41					80	Set Pressure	4 Barg		
42					81	Mfr. / Model			
43					82	Quantity/Type			
44					83	Voltage			
45					84	Mfr. / Model			
46					85	Contacts/Rating			
47					86	Type			
48					87	Actuation Points			
49	LOC.	Equip. Location	Outdoor		88	Hydro Test Press.	77.57 bar[g]		
50		Amb. Temp. Min/Max			89	Seat Leakage	ANSI/FCI 70-2 Class V		
51		Area Classification	Non-Hazardous		Req Stem Thrust: Press/Temp Tables: ASME/ANSI B16.34				
52		Compliance	IBR						
*Equivalent material forms may be used for the trims.					Submittal by: Karthikeyan Sekar				
					Company: CIRCOR Flow Technologies India Pvt Ltd				
					Contact Info:				



1200 MTPD (DAP Basis) NPK Project, Thal, Maharashtra (India)



ANNEXURE - 1 - DEVIATIONS / CLARIFICATIONS / EXCEPTIONS

Project : 1200 MTPD (DAP Basis) NPK Project, Thal, Maharashtra (India)
Owner : Rashtriya Chemicals and Fertilizers Limited
Job Code : E24003
Requisition No. : E24003-RCF-IN-MRIQ-042
Item: Desuperheater
Rev: 0

SR. NO.	REFERENCE/ DOC. NO.	SECTION / CLAUSE NO.	SPECIFIED REQUIREMENT	COMMENTS / DEVIATIONS OFFERED BY SUPPLIER	REASON	PURCHASER DECISION	DEVIATION CATEGORY	REMARK	FINAL STATUS (OPEN / CLOSE)
1	Doc. No.: E24003-RCF-IN-DST-042	Page 9	MR Requirement: Outlet temperature - 175.4 deg C Inlet steam pressure to DSH - 14 Kg/cm2g	Offered: Outlet temperature - 179.69 Deg C Inlet steam pressure to DSH - 8 Kg/cm2g	We recommend to keep Min 5 Deg C Superheat from saturation level to avoid condensate formation, hence we have offered with Sat + 5 Deg C. Regarding the pressure, inlet pressure shall be 8 Kg/cm2g since pressure drop across DSH is not possible & customer to take the pressure drop from 14 to 8 Kg/cm2g in PCV.				Open
2	Doc. No.: E24003-RCF-IN-DST-042	Page 16	MR Requirement: Outlet temperature - 147.9 deg C Inlet steam pressure to DSH - 8 Kg/cm2g	Offered: Outlet temperature - 152.5 Deg C Inlet steam pressure to DSH - 3.5 Kg/cm2g	We recommend to keep Min 5 Deg C Superheat from saturation level to avoid condensate formation, hence we have offered with Sat + 5 Deg C. Regarding the pressure, inlet pressure shall be 8 Kg/cm2g since pressure drop across DSH is not possible & customer to take the pressure drop from 14 to 8 Kg/cm2g in PCV.				Open
3	E24003-RCF-IN-DST-042	Page 18	MR Requirement: Trim MOC: SS316 stellite	Offered: SS440C Hardened	We recommend to offer SS440C Hardened MOC for trim as the same is for micro flow requirement. Hence for such small size (Dia) SS440C is recommended over SS316				Open
4	E24003-RCF-IN-DST-042	General	MR Requirement: AFR with IP67	Offered: Not Applicable	IP 67 is not applicable for AFR as the same is not an electrical instruments				Open
5	General	TPIA	MR Requirement: All major bought out items shall be inspected and tested at sub-vendor's works by Supplier/ Supplier appointed TPIA.	Not Applicable	TPIA shall be conducted in CIRCOR factory as for applicable items (Assembled final product)				Open
6									Open
7									Open
8									Open
9									Open
10									Open
11									Open
12									Open
13									Open
14									Open
15									Open

Note:

- 1. Supplier shall submit this form indicating technical deviation if any, indicating each clause no. If there is no technical deviation, Supplier shall submit this form indicating "NO DEVIATION"
- 2. Deviation Listed elsewhere other than the above format shall not be considered for offer evaluation.
- 3. Deviations proposed by finalized vendor will be taken up with PMC/ Owner in post order stage. However, if the deviation is rejected or any other remedial suggestion/ different compensatory requirement is asked by PMC/ OWNER then vendor has to withdraw the deviation or incorporate the suggestion from PMC/ Owner without any cost and time implication to LTEH. Also, if any cost benefit is asked by PMC/OWNER , then same will be borne by supplier.
- 4. Supplier shall very clearly categorize all Clarification, Exception and Deviation under following categories:
Category A: Deviations as per Manufacturer's standards design and cannot be withdrawn in any circumstances including additional payment or time extension.
Category B: Deviations which have been proposed as technical alternative by Supplier. If not accepted by Owner, Supplier shall follow the requisition requirement / specifications without any cost and time implications to Purchaser
Category C: Deviations having either 'time' or 'cost' or 'time & cost' implications. If not accepted by Owner, Supplier shall inform implications for compliance to requisition requirement / specifications.
Category D: Not a deviation against any requisition requirements. Supplier's clarification or basis for the offer.

			
1200 MTPD (DAP Basis) NPK Project, Thal, Maharashtra (India)	List of Commissioning Spares		
	Annexure-4A	Rev.0	19-Aug-25

ANNXURE-4A: List of Commissioning Spares

Item Name: Control valve

Item No.: - TCV-A1-9802 & TCV-A1-9806

Sr. No.	Description	Quantity
1	Gland Packing	1 Set Each
2	Gasket	1 Nos Each

	 L&T Energy <i>Hydrocarbon</i>		
1200 MTPD (DAP Basis) NPK Project, Thal, Maharashtra (India)	List of Mandatory Spares		
	Annexure-4B	Rev.0	19-Aug-25

ANNXURE-4B: List of Mandatory Spares

Item Name: Control valve

Item No.: - TCV-A1-9802 & TCV-A1-9806

Sr. No.	Description	Project Requirement	Quantity Offered
1	Actuator Seal Kit	10% of each type of valve subject to minimum 1 no. of each type	1 Set Each valve
2	Trim Set	Trim set consisting of seat ring / seal ring, plug with stem, cage (wherever applicable), packing material for each make, type, size, Pressure rating valve to be provided as spare	1 Set Each valve
3	Actuator Set	10% of each type or minimum 1 complete Actuator for each type and size	1 no. for each valve
4	Soft Parts (Gaskets & Gland packing)	100% for each valve. i.e. one set for each tag	1 Set Each valve
5	SMART Positioners	10% of each type of instruments, subject to minimum 2 nos. of each type	2 no's offered
6	Other accessories: Quick Exhaust relay, Volume Boosters, Air Filter regulators, position Transmitters, changeover relay, NRV, Pilot valves, Trip valve, etc.	10% of each type of instruments, subject to minimum 2 nos. of each type	2 no' of AFR offered

			
1200 MTPD (DAP Basis) NPK Project, Thal, Maharashtra (India)	List of 2 years Op. Spares		
	Annexure-4C	Rev.0	19-Aug-25

ANNXURE-4C: List of 2 years Op. Spares

Item Name: Control valve

Item No.: - TCV-A1-9802 & TCV-A1-9806

Sr. No.	Description	Project Requirement	Quantity Offered
1	Actuator Seal Kit	10% of each type of valve subject to minimum 1 no. of each type	1 Set Each valve
2	Soft Parts (Gaskets & Gland packing)	100% for each valve. i.e. one set for each tag	1 Set Each valve



☐ Short Delivery	☐ Only for Engg. Activities	Date	29.09.2025
☐ Bought out valves	☐ Others, Please Specify	CORB Reference	DM25066L
Customer / Buyer Name	LARSEN & TOUBRO LIMITED	CEC Quote Number with Date	250702-0400-PA Dtd 28.08.2025
Site / End User Name & Country	Rashtriya Chemicals and Fertilizers Limited, India	Application Engineer SPOC	Karthikeyan Sekar Satheshkumar Eagambaram
Buyer PO Number/Date	LTES/75001-83664/BS Dtd 03.09.2025	Outside Sales Engineer/Manager	Ashokvijay R
Buyer PO/LOI Received Date	12.09.2025	PO Value	INR 9,99,750
Agreed / Approved Payment Terms	Refer PO clause no. 5.0	1)PO Delivery Date 2)Agreed Delivery Date	26.03.2026
Agreed Incoterms /Shipping Terms	CPT, RCF Thal Project Site	Margin	22%
LD Clause	@0.5% of the undelivered portion of Order value	Agent Name & Commission	NA
Ship to Address with GST#:	Rashtriya Chemical and Fertilizers Limited Thal, Thal-Vaishet, Alibag # 402 208 State: Maharashtra, India GSTIN: 27AAACL0140PEZ6	Bill to Address with GST#:	Larsen & Toubro Limited Divison Name: L&T Energy Hydrocarbon 14th Floor, AMN Tower, AMN Tower, Jogeshwari - Vikroli Link Road, Powai Campus, Gate 3, Mumbai Suburban, Maharashtra, 400072

COST SUMMARY SHEET

Price Schedule



Project	E100 MPTD (Gas Based New Project)
Customer	B.T Energy Hydrocarbon
End User	Hydrocarbon Processing and Petrochemicals
Destination	India
Our Quote Ref	INDIA0001
Date	25-Feb-23
Rev	1

Excluded Material for Price - USD 18	
Margin incl. SG&A	22%
Margin incl. SG&A	38%
SG&A	16.0%
BS	0.0%
Tax Warrant	1.0%
Incoterms	12.0%
For Use	1.000

30 months from the date of supply

Technical Details														Material Cost (M)										Conversion Cost (L5)		Total Cost Details		Total Cost (INR)		Margin	Price Details (INR)	
S.No	Tag Number	Valve/Item Type	Model Name	Body Size	Body Rating	End Conn	Body Mat	Trim Type	Cage / Plug Type	Trim Char	Travel (mm)	Actuator Type	Fail Action	Handwheel	Others	Accessories	Qty	Complete Body L/A	Actuator	Air Filter/Regulator	Positioner	Material Unit	Unit Material (INR)	Valve Assembly	Unit Conversion (INR)	Unit Cost (INR)	Total Cost (INR)	Unit Cost (INR)	Total Cost (INR)	Margin	Unit Price (INR)	Total Price (INR)
1	DS 9802	DSH	CIR 3120	3"	350#	RF	A350/A150	St Nozzle				None	-	-	-	-	N/A	1	₹ 33,622	₹ -	₹ -	₹ 675	₹ 38,297	₹ 38,966	₹ 51,254	₹ 51,254	₹ 51,254	33.40%	₹ 84,579	₹ 84,579		
2	TCV-A2-9802	Globe	CIR 3120	3"	350#	RF	A350	Unbalanced	Control Plug	Equilib	20	Spring & Diaphragm	None	Close	Top - Side	Refer Spec Sheet	1	₹ 5,300	₹ 22,000	₹ 1,000	₹ 90,000	₹ 1,000	₹ 3,386	₹ 1,413	₹ 433	₹ 1,370	₹ 1,370	₹ 1,370	₹ 1,370	39.46%	₹ 2,28,525	₹ 2,28,525
3	DS 9802	DSH	CIR 3120	3"	350#	RF	A350/A150	Fixed Nozzle				None	-	-	-	-	N/A	1	₹ 4,708	₹ -	₹ -	₹ 720	₹ 5,428	₹ 5,434	₹ 4,134	₹ 4,134	₹ 4,134	33.40%	₹ 8,629	₹ 8,629		
4	TCV-A2-9802	Globe	CIR 3120	3"	350#	RF	A150	Unbalanced	MF Plug	Modified	25	Spring & Diaphragm	Close	Top - Side	-	Refer Spec Sheet	1	₹ 5,300	₹ 13,500	₹ 1,000	₹ 90,000	₹ 1,000	₹ 1,640	₹ 6,178	₹ 6,178	₹ 1,25,640	₹ 1,25,640	₹ 1,25,640	45.49%	₹ 2,22,520	₹ 2,22,520	
5																	1	₹ 2,267	₹ -	₹ -	₹ -	₹ 2,267	₹ 2,267	₹ 2,267	₹ 2,267	₹ 2,267	₹ 2,267	45.49%	₹ 9,598	₹ 9,598		
6																	1	₹ 2,47,267	₹ -	₹ -	₹ -	₹ 2,47,267	₹ 6,678	₹ 6,678	₹ 2,53,945	₹ 2,53,945	₹ 2,53,945	45.04%	₹ 4,45,831	₹ 4,45,831		
Mandatory spares (Consumption within 2 years)														6						Total Cost (Ex-Manufact - Consumable)		₹ 6,79,736				Total		₹ 6,79,736				

Remarks:
1. Scope: Valve + Actuator and DSH along with accessories as mentioned in CIRCOR Datasheet.

For CIRCOR Flow Technologies India Pvt Ltd

Southwestern India
Application Engineering



☐ Short Delivery
 ☐ Only for Engg. Activities
☐ Bought out valves
 ☐ Others, Please Specify

		Date	29.09.2025
		CORB Reference	DM25066L
Customer / Buyer Name	LARSEN & TOUBRO LIMITED	CEC Quote Number with Date	250702-0400-PA Dtd 28.08.2025
Site / End User Name & Country	Rashtriya Chemicals and Fertilizers Limited, India	Application Engineer SPOC	Karthikeyan Sekar Satheshkumar Eagambaram
Buyer PO Number/Date	LTES/75001-83664/BS Dtd 03.09.2025	Outside Sales Engineer/Manager	Ashokvijay R
Buyer PO/LOI Received Date	12.09.2025	PO Value	INR 9,99,750
Agreed / Approved Payment Terms	Refer PO clause no. 5.0	1)PO Delivery Date 2)Agreed Delivery Date	26.03.2026
Agreed Incoterms /Shipping Terms	CPT, RCF Thal Project Site	Margin	22%
LD Clause	@0.5% of the undelivered portion of Order value	Agent Name & Commission	NA
Ship to Address with GST#:	Rashtriya Chemical and Fertilizers Limited Thal, Thal-Vaishet, Alibag # 402 208 State: Maharashtra, India GSTIN: 27AAACL0140PEZ6	Bill to Address with GST#:	Larsen & Toubro Limited Divison Name: L&T Energy Hydrocarbon 14th Floor, AMN Tower, AMN Tower, Jogeshwari - Vikroli Link Road, Powai Campus, Gate 3, Mumbai Suburban, Maharashtra, 400072

SPECIAL NOTES & CHECK LIST FOR APPLICATION ENGINEERING

(INSTRUCTION TO CS/QA/ME/ENG/SCM)

CIRCOR Flow Technologies India Private Limited

No.15 Naranapuram Village | Thennampalayam to Annur Road | Ponnandampalayam | Coimbatore – 641659 | India

Telephone: - +91 421 232 1600 | www.circor.com



Order reviewing check list - Application Engineering & Special Notes for CS / SCM / QA / Production / Mfg. Engg / Finance

Order # :	DM25066L	Date :	29-09-2025
Customer :	L&T	Doc Rev :	1
Application Engineer : Karthikeyan Sekar			
SI #	Description	Status	Remarks
For Customer Service / Sales			
1	Checking ABG / PBG status for the order	N.A	
2	Checking for spares & mating parts requirements	Yes	Mandatory & Commissioning spares list attached
3	Checking the payment terms as per PO	Yes	
4	Confirming on LD clause for the order	Yes	
5	Confirming Freight terms for the order & ensure delivery is as per quote	Yes	
6	Confirming on customer inspection	Yes	L&T Scope
7	Attaching credit rating for the customer	N.A	
8	Agent commission applicable or not. If yes, please provide agent name & % of commission.	N.A	
9	Others if any - Special notes	None	
For Engineering			
10	IBR status for the items	Yes	
11	Confirming Pressure & temperature gauge selection	N.A	
12	Confirming the Selection of Temperature transmitter for inlet design temperature	N.A	
13	Confirming the Selection of Pressure transmitter for Outlet design temperature	N.A	
14	Checking Body & Trim Material mismatch between / Spec sheet - Complete spec sheet data validation	Yes	
15	Checking Stem travel from design	N.A	
16	Checking NDT requirements for the order	Yes	
17	Providing category for PED valves.	N.A	
18	Actuator model no# verification in spec sheet	Yes	
19	Checking Actuator handwheel mounting sequence between / Spec sheet (Side mounted / top mounted / With or without gear box)	Yes	
20	AFR model no# verification between Ins. List / Spec sheet	Yes	
21	Air lock relay model no# verification between Ins. List / Spec sheet	N.A	
22	Positioner model no# verification between Ins. List / Spec sheet	Yes	
23	Limit switch model no# verification between Ins. List / Spec sheet	N.A	
24	Volume booster model no# verification between Ins. List / Spec sheet	N.A	
25	Solenoid valve model no# verification between Ins. List / Spec sheet	N.A	
26	Solenoid valve voltage verification between Ins. List / Spec sheet	N.A	
27	Engineering to provided relevant inputs to Manufacturing asap	Yes	
28	Spec sheet attached for design Consideration	Yes	
29	Any deviation in spec after detailed engineering should be communicated to AE to take approval from customer	Yes	
For Manufacturing			
30	Need of QAP as per customer requirement	Yes	
31	Whether / QAP / Spec sheet approval is needed from customer or not.	Yes	
32	Checking Tubing & fitting nomenclature	N.A	
33	Special paint requirements like RAL no# / No# of coats / Dry film thickness	N.A	
34	Tag no# mismatch between PO / / Spec sheet / Ins. List	Yes	
35	Confirming leakage class between Spec sheet & customer requirement.	Yes	
36	Checking packing requirements for the order	N.A	
37	Checking Welding requirements for the order	Yes	
38	Ensure ABB positioner is available in case of availability volume booster	N.A	
39	Ensure Susin I-tork positioner is replacing CIRCOR positioner	N.A	
40	When Port size is $\geq 3/4"$, ensure the usage of ROTEX & not ASCO for solenoid valves	N.A	
41	Ensure that the standard tubings & fitting size is 3/8".	N.A	
42	Ensure that the PRDS has the fixing length for Pressure transmitter & temperature transmitter	N.A	
43	Ensure that the position transmitter make is not YAMATAKE	N.A	
Order Specific Notes			
44	All Pneumatic Vent Ports (on Actuator and Accessories) shall be plugged with SS304 bug screen		
45	SS 304 tag plate shall be provided on each valve & accessories		
46	TPI Applicable		
47	PMI check shall be carried out for all SS/Alloy steels component		
48	Weld Joints shall be 100% RT		
49	3.1 Mill test certificates as per EN 10204 for Valve Body, Bonnet, Plug, Seat, closure member & trim material (Spray Head, Nozzle & Spindle), Bar/ Forging & Fasteners		
50	Commissioning spares to be offered (1 set of Gaskets & 1 set of Gland packing for each CV involved)		
51	FRP Canopy offered for Positioner		
52	AVL not applicable other than Instrument Model no. defined		
53	All Piping shall be designed in accordance with the Process Piping Code, ASME B31.3 (2020)		
54	Mandatory Spares offered		
55	PMS to be followed		
56	1/2" NPT Adapter offered at AFR inlet w.r.t process connection		
57	All bolts for valve - actuator shall be SS316 (Except Body-Bonnet connectors)		
58	Wake frequency calculation for spray nozzle as per PTC 19.3 year 2024 shall be submitted		
59	Non used positioner port to be plugged with SS304 plug		



☐ Short Delivery
 ☐ Only for Engg. Activities
☐ Bought out valves
 ☐ Others, Please Specify

		Date	29.09.2025
		CORB Reference	DM25066L
Customer / Buyer Name	LARSEN & TOUBRO LIMITED	CEC Quote Number with Date	250702-0400-PA Dtd 28.08.2025
Site / End User Name & Country	Rashtriya Chemicals and Fertilizers Limited, India	Application Engineer SPOC	Karthikeyan Sekar Satheshkumar Eagambaram
Buyer PO Number/Date	LTES/75001-83664/BS Dtd 03.09.2025	Outside Sales Engineer/Manager	Ashokvijay R
Buyer PO/LOI Received Date	12.09.2025	PO Value	INR 9,99,750
Agreed / Approved Payment Terms	Refer PO clause no. 5.0	1)PO Delivery Date 2)Agreed Delivery Date	26.03.2026
Agreed Incoterms /Shipping Terms	CPT, RCF Thal Project Site	Margin	22%
LD Clause	@0.5% of the undelivered portion of Order value	Agent Name & Commission	NA
Ship to Address with GST#:	Rashtriya Chemical and Fertilizers Limited Thal, Thal-Vaishet, Alibag # 402 208 State: Maharashtra, India GSTIN: 27AAACL0140PEZ6	Bill to Address with GST#:	Larsen & Toubro Limited Divison Name: L&T Energy Hydrocarbon 14th Floor, AMN Tower, AMN Tower, Jogeshwari - Vikroli Link Road, Powai Campus, Gate 3, Mumbai Suburban, Maharashtra, 400072

INSTRUMENTATION LIST



☐ Short Delivery	☐ Only for Engg. Activities	Date	29.09.2025
☐ Bought out valves	☐ Others, Please Specify	CORB Reference	DM25066L
Customer / Buyer Name	LARSEN & TOUBRO LIMITED	CEC Quote Number with Date	250702-0400-PA Dtd 28.08.2025
Site / End User Name & Country	Rashtriya Chemicals and Fertilizers Limited, India	Application Engineer SPOC	Karthikeyan Sekar Satheshkumar Eagambaram
Buyer PO Number/Date	LTES/75001-83664/BS Dtd 03.09.2025	Outside Sales Engineer/Manager	Ashokvijay R
Buyer PO/LOI Received Date	12.09.2025	PO Value	INR 9,99,750
Agreed / Approved Payment Terms	Refer PO clause no. 5.0	1)PO Delivery Date 2)Agreed Delivery Date	26.03.2026
Agreed Incoterms /Shipping Terms	CPT, RCF Thal Project Site	Margin	22%
LD Clause	@0.5% of the undelivered portion of Order value	Agent Name & Commission	NA
Ship to Address with GST#:	Rashtriya Chemical and Fertilizers Limited Thal, Thal-Vaishet, Alibag # 402 208 State: Maharashtra, India GSTIN: 27AAACL0140PEZ6	Bill to Address with GST#:	Larsen & Toubro Limited Divison Name: L&T Energy Hydrocarbon 14th Floor, AMN Tower, AMN Tower, Jogeshwari - Vikroli Link Road, Powai Campus, Gate 3, Mumbai Suburban, Maharashtra, 400072

CIRCOR VALVE / DESUPERHEATER GAD



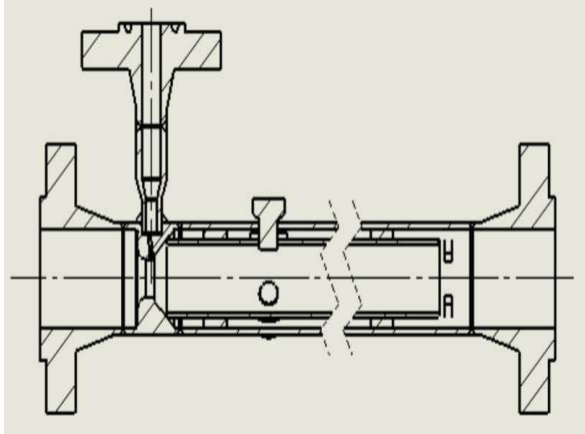
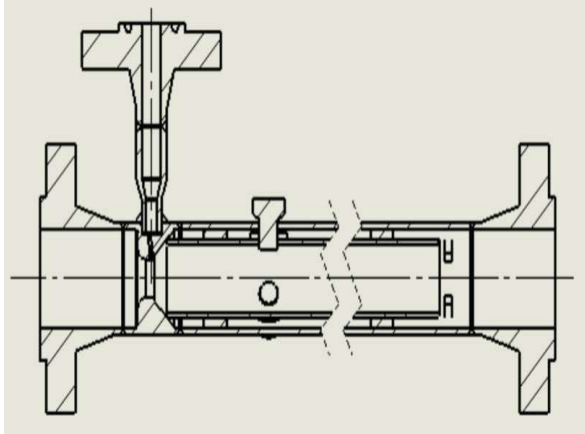
☐ Short Delivery	☐ Only for Engg. Activities	Date	29.09.2025
☐ Bought out valves	☐ Others, Please Specify	CORB Reference	DM25066L
Customer / Buyer Name	LARSEN & TOUBRO LIMITED	CEC Quote Number with Date	250702-0400-PA Dtd 28.08.2025
Site / End User Name & Country	Rashtriya Chemicals and Fertilizers Limited, India	Application Engineer SPOC	Karthikeyan Sekar Satheshkumar Eagambaram
Buyer PO Number/Date	LTES/75001-83664/BS Dtd 03.09.2025	Outside Sales Engineer/Manager	Ashokvijay R
Buyer PO/LOI Received Date	12.09.2025	PO Value	INR 9,99,750
Agreed / Approved Payment Terms	Refer PO clause no. 5.0	1)PO Delivery Date 2)Agreed Delivery Date	26.03.2026
Agreed Incoterms /Shipping Terms	CPT, RCF Thal Project Site	Margin	22%
LD Clause	@0.5% of the undelivered portion of Order value	Agent Name & Commission	NA
Ship to Address with GST#:	Rashtriya Chemical and Fertilizers Limited Thal, Thal-Vaishet, Alibag # 402 208 State: Maharashtra, India GSTIN: 27AAACL0140PEZ6	Bill to Address with GST#:	Larsen & Toubro Limited Divison Name: L&T Energy Hydrocarbon 14th Floor, AMN Tower, AMN Tower, Jogeshwari - Vikroli Link Road, Powai Campus, Gate 3, Mumbai Suburban, Maharashtra, 400072

CIRCOR VALVE / DESUPERHEATER SPECIFICATION & CALCULATION

CIRCOR Flow Technologies India Private Limited

No.15 Naranapuram Village | Thennampalayam to Annur Road | Ponnandampalayam | Coimbatore – 641659 | India

Telephone: - +91 421 232 1600 | www.circor.com

			SPECIFICATION DE-SUPERHEATER CIRCOR Select v15.3.0			SO No./Rev: DM25066L Item Desc.: DSH-Line Item1 Item Rev. / Date: 1 / 29-Sep-2025								
Plant Name: RCF, Ltd Unit No.: Line/PID No.:			Application: De-Superheater Quantity : 1 Primary Line: Tag No.: DS-9801			Customer: Larsen & Toubro Limited PO# / Rev: LTES/75001-83664/BS Project Name: 1200 MTPD (DAP Basis) NPK Project, Thal, Maharashtra (India) End User: Rashtriya Chemicals and Fertilizers Limited								
Plant Site: India														
1		Fluid : Steam		Service :			ShutOff :							
		Sizing Properties Steam:		Units	Max	Norm	Min	Cond4	Cond5					
2	SERVICE / CONDITIONS	Inlet Flow Rate		kg/hr	7258	4698	1410							
3		Pressure, P1		kg/cm2(G)	8	8	8							
4		Inlet Temp., T1		°C	416	416	416							
5		Outlet Flow Rate		kg/hr	8878	5747	1725							
6		Outlet Temp., T2		°C	180	180	180							
		Sizing Properties Spray Water (SW):												
7		Flow Rate		kg/hr	1620	1049	315							
8		Pressure		kg/cm2(G)	16	16	16							
9		Temperature		°C	115	115	115							
10	LINE	Steam Size & Sch. Inlet	DN 150 SCH STD	40										
11		Steam Size & Sch. Outlet	DN 150 SCH STD	41										
12		Steam Pipe Mat'l In	ASTM A106 Gr B	42										
13		Steam Pipe Mat'l Outlet	ASTM A106 Gr B	43										
14		Liner Size & Sch.	4 inch SCH STD	44										
15		SW Size &		45										
16		Sch. Inlet	DN 25, SCH 160	46										
	SW	ASTM A106 Gr B	47											
	Pipe Mat'l Inlet													
17	DSH BODY	Type	Venturi DSH	48										
18		Body Size	6 Inch	49										
19		Pressure Class	300#	50										
20		Steam Dsgn Press/Temp	18.15 / FV /420 °C	51										
21		SW Dsgn Press/Temp	18 / FV / 155	52										
22		Mfr. / Model	CIRCOR	53										
23		Model No.	CIR 3210	54										
24		SW Flange Size	1 Inch	55										
25	SW Flange Rating	300#	56	Data Plate Stainless Steel										
26	Rated Cv	1	57											
27	Characteristic		58											
28	End Connection	RF Flanged	59											
29	MATERIAL	Body/Bonnet Mat'l	ASTM A106 Gr B / A105	60	POSITIONER									
30		Stub Material		61										
31		Trim Material		62										
32		Nozzle Material	SS 316 Stellite	63	AIR SET									
33		Trim Type		64										
34		Certification	IBR	65										
35	ACC.	Volume Booster		66	SOL									
36		Volume Tank		67										
37	LOC.	Equip. Location	Outdoor	68	SWITCH									
38		Amb. Temp. Min/Max		69										
39		Area Classification	Non-Hazardous	70										
		Min Required Straight Length	6m	71	TEST	Seat Leakage Other See Factory Notes / QA Plan								
		Min Req. Temp Sensors Dist.	12m	72										
		6 inch Steam Pipe A106 Gr. B / Sch Std / WNRf ends with 4 inch Sch40 A106 Grb Liner offered to improve the velocity in minimum flow condition.		73										
		Corrosion Allowance 2 mm		74										
		Steam Pipe PMS 3A1BC		75										
		Spray water Pipe PMS 3A1BC		76										
		5 Deg C more than saturation level considered at DSH outlet to avoid condensate formation												
Press/Temp Tables: ASME B16.34														
Recommended the strainer in the water line (Customer Scope)						Submittal by: Karthikeyan S								
						Company: CIRCOR Flow Technologies India Pvt Ltd								
						Contact Info:								

		DESUPERHEATER ANALYSIS SHEET CIRCOR Select v15.3.0			SO No./Rev: DM25066L / 1 Item Desc.: DSH-Line Item1 Item Rev. / Date: 1 / 29-Sep-2025		
Plant Name: RCF, Ltd Unit No.: Line/PID No.: Plant Site: India		Application: Attemperator Spray Water Quantity : 1 Primary Line: Tag No.: DS-9801			Customer: Larsen & Toubro Limited PO# / Rev: LTES/75001-83664/BS Project Name: 1200 MTPD (DAP Basis) NPK Project, Thal, Maharashtra (India) End User: Rashtriya Chemicals and Fertilizers Limited		
Fluid: Steam							
Sizing Properties Steam:		Units	Max	Norm	Min	Cond4	Cond5
Inlet Flow Rate		kg/hr	7258	4698	1410		
Pressure, P1		kg/cm2(G)	8	8	8		
Inlet Temp., T1		°C	416	416	416		
Saturated Temp		°C	174.69	174.69	174.69		
Inlet Enthalpy		KJ/Kg	3300.17	3300.17	3300.17		
Inlet Specific Volume		m3/kg	0.394	0.394	0.394		
Outlet Flow Rate		kg/hr	8878	5747	1725		
Outlet Temp., T2		°C	180	180	180		
Outlet Enthalpy		KJ/Kg	2786.21	2786.21	2786.21		
Outlet Specific Volume		m3/kg	0.247	0.247	0.247		
Sizing Properties Spray Water (SW):							
Flow Rate		kg/hr	1620	1049	314.73		
Pressure		kg/cm2(G)	16	16	16		
Temperature		°C	115	115	115		
Enthalpy		KJ/Kg	483.63	483.63	483.63		
Rel. Density		Kg/m3	0.95	0.95	0.95		
Steam Inlet Velocity		m/s[Mach No.]	38.44[0.06]	24.88[0.04]	7.47[0.01]		
Steam Outlet Velocity		m/s[Mach No.]	23.99[0.05]	15.53[0.03]	4.66[0.01]		
SW Velocity		m/s					
Velocities			Normal	Normal	Normal		
Required Cv							
Flow Condition			Normal	Normal	Normal		
Shut-Off Pressure							
Steam Dsgn Temp In/Out :							
Minimum Degree of Superheat Required:				5 °C (41 °F)			
Min Required Straight Length (From point of water injection):				6m			
Min Required Temp Sensors Distance (From point of water injection):				12m			
Turn Down Ratio: NA							
Spray Water Quantity Required:							
$Q_w = \frac{H_1 - H_2}{H_2 - H_w} \times Q_s$							
H1 = Enthalpy of Steam at Inlet in KJ/Kg							
H2 = Enthalpy of Steam at Outlet in KJ/Kg							
Hw = Enthalpy of Water in KJ/Kg							
Qs = Steam Flow Rate in Kg/Hr							
$Q_w = \frac{3300.17 - 2786.21}{2786.21 - 1620.08} \times 7258$							
Qw = 1620 kg/hr							
*Invalid/Incomplete.			Submittal by: Company: Contact Info:				

				SPECIFICATION ON-OFF / CONTROL VALVE CIRCOR Select v23.1.0			SO No./Rev: DM25066L / 1 Item Desc.: CV-Line Item2 Item Rev. / Date: 1 / 29-Sep-2025			
Plant Name: RCF, Ltd Unit No.: Line/PID No.:				Application: Attenuator Spray Water Quantity : 1 Primary Line: -			Customer: L&T Energy HydrCarbon PO# LTES/75001-83664/BS Project Name: 1200 MTPD (DAP Basis) NPK Project End User: Rashtriya Chemicals and Fertilizers Limited			
Plant Site: Thal, Maharashtra,INDIA				Tag No.: TCV-A1-9802						
1		Fluid : Water			Critical Pressure : 224.52 kg/cm ²					
		Sizing Properties	Units	Case1	Case2	Case3	Case4	..	Shut-Off	
2	SERVICE / CONDITIONS	Flow Rate	kg/hr	1620	1049	315			---	
3		Inlet Pressure	kg/cm ² [g]	16	16	16			18 kg/cm ²	
4		Outlet Pressure	kg/cm ² [g]	11.47	9.46	8.13			---	
5		Choke Drop	kg/cm ²	12.778	13.15	13.338			---	
6		Inlet Temperature	°C	115	115	115			115	
7		Vapor Pressure	kg/cm ² [g]	0.69	0.69	0.69			---	
8		Rel. Density		0.948	0.948	0.948			---	
9		Absolute Viscosity	cP	0.257	0.257	0.257			---	
10		Required Cv		0.91	0.49	0.13			---	
11		Travel	%	67.9	51.8	15.1			---	
12		Allow. / Pred. SPL, IEC	dBA	85 / 36	85 / 31	85 / 17			---	
13			F_L	5	0.91	0.92	0.93			---
14	LINE	Pipe Size & Sch. In	DN 25 Sch. 160		53	Type		Pneumatic Spring & Diaphragm		
15		Pipe Size & Sch. Out	DN 25 Sch. 160		54	Mfr. / Model		CIRCOR / CM60		
16		Pipe Insulation	None		55	Size/Eff. Area				
17	BONNET / BODY / VALVE	Type	Cast-Globe		56	Service		Modulating		
18		Body Size	DN25		57	Sprg Actn/Air Fail		Closed		
19		Pressure Class	300 ANSI		58	Spring No.		B6-7G		
20		Dsgn Press	18 kg/cm ² [g]	Dsgn 115 °C	59	Max.Allow. Cyl. Press.		6 bar[g]		
21		Mfr. / Model	CIRCOR / 3100		60	Min. Req'd Press.		4 bar[g]		
22		Model No.			61	Avail. Air Supply				
23		Body/Bonnet Mat'l	A105		62	Max / Min Press		5.5 bar[g] / 4 bar[g]		
24		End Connection	DN25 Raised Face (RF) Flange		63	Bench Range		1.47 - 2.24 kg/cm2		
25		Flg. Face Finish	Std. 125 - 250 rms		64	Orientation		Vertical		
26		End Ext. Mat'l			65	HOD/Override Type		Yes - Side Mounted		
27		Flow Direction	Flow Under Plug		66	Lock Up Valve		No		
28		Type of Bonnet	Standard-UTP		67	Set Press.				
29		Packing Mat'l	Graphite		68	Tubing/Fittings		3/8" NPT SS316		
30	TRIM	Type	Unbalanced - Top Guided		69	Data Plate		Stainless Steel		
31		Cage Type	Contour Plug		70	Mfr. / Model		SIEMENS / 6DR5115-0EN01-0AA3		
32		Characteristic	Equal Percent		71	Input Signal		4-20 mA DC		
33		Travel / Stroke	20 mm		72	On Incr. Signal O/p		Increase		
34		Rated Cv	3.5		73	Type/Protocol		Smart / HART (IP67)		
35		Plug Mat'l	CF8M / SS 316 + Stellite		74	Gauges/By-Pass		Yes / No		
36		Seat Ring Material	CF8M / SS 316 + Stellite		75	Cam Characteristic		Linear		
37		Cage Mat'l	CF8M / SS 316 Cr. Plated		76	Position Feedback		Yes		
38		Stem Mat'l	A479 TY 316		77	Mfr. / Model		SHAVO / 11-4SN-402M-M5KN-NBAO		
39	SPECIAL ACCESSORIES	1/2" NPT SS316 Double Compression Cable Glands offered for positioner (1 no.)			78	Range		0.70 - 7.00 Kg/cm2g		
40					1/2" NPT (F) Adapter offered at AFR inlet w.r.t process connection			79	Filter / Gauge	
41								AIR SET	Set Pressure	
42					SOL	Mfr. / Model				
43						Quantity/Type				
44						Voltage				
45					SWITCHES	Mfr. / Model				
46						Contacts/Rating				
47		Type								
48		TEST	Actuation Points							
49	Hydro Test Press.		77.57 bar[g]							
50	Seat Leakage		ANSI/FCI 70-2 Class V							
51	LOC.	Other		See Factory Notes / QA Plan						
52		Req Stem Thrust:		325 kgf						
					Press/Temp Tables: ASME/ANSI B16.34					
					Submittal by: Karthikeyan Sekar					
					Company: CIRCOR Flow Technologies India Pvt Ltd					
					Contact Info:					

			SPECIFICATION DE-SUPERHEATER CIRCOR Select v15.3.0			SO No./Rev: DM25066L Item Desc.: DSH-Line Item3 Item Rev. / Date: 1 / 29-Sep-2025		
Plant Name: Unit No.: Line/PID No.:			Application: De-Superheater Quantity : 1 Primary Line:			Customer: Larsen & Toubro Limited PO# / Rev: LTES/75001-83664/BS Project Name: 1200 MTPD (DAP Basis) NPK Project, Thal, Maharashtra (India) End User: Rashtriya Chemicals and Fertilizers Limited		
Plant Site: -			Tag No.: DS-9805					

1		Fluid : Steam		Service :			ShutOff :		
		Sizing Properties Steam:		Units	Max	Norm	Min	Cond4	Cond5
2	SERVICE / CONDITIONS	Inlet Flow Rate		kg/hr	5428	4737	1421		
3		Pressure, P1		kg/cm2(G)	3.5	3.5	3.5		
4		Inlet Temp., T1		°C	161.5	161.5	161.5		
5		Outlet Flow Rate		kg/hr	5474	4777	1433		
6		Outlet Temp., T2		°C	153	153	153		
7		Sizing Properties Spray Water (SW):							
8		Flow Rate		kg/hr	46	40	12		
9		Pressure		kg/cm2(G)	16	16	16		
9		Temperature		°C	115	115	115		

10	LINE	Steam Size & Sch. Inlet	DN 150 SCH 40	40	Reference Sketch  Fixed Nozzle Desuperheater	
11		Steam Size & Sch. Outlet	DN 150 SCH 40	41		
12		Steam Pipe Mat'l In	ASTM A106 Gr B	42		
13		Steam Pipe Mat'l Outlet	ASTM A106 Gr B	43		
14		Liner Size & Sch.	N/A N/A	44		
15		SW Size & Sch. Inlet	DN 25, SCH 160	45		
16		SW	N/A	46		
17	DSH BODY	Type	Fixed Nozzle - Probe Style	48		Data Plate Stainless Steel
18		Stub Size	3 Inch	49		
19		Pressure Class	150#	50		
20		Steam Dsgn Press/Temp	18.15 / FV / 420 °C	51		
21		SW Dsgn Press/Temp	18 / FV / 155	52		
22		Mfr. / Model	CIRCOR	53		
23		Model No.	CIR 3220	54		
24		SW Flange Size	1 Inch	55		
25		SW Flange Rating	300#	56		
26		Rated Cv	0.04 (FN1 - 1 no.)	57		
27	Characteristic		58	POSITIONER	Mfr. / Model	
28	End Connection	RF Flanged	59		Input Signal	
29	Body/Bonnet Mat'l	ASTM A106 Gr B / A105	60		On Incr. Signal O/p	
30	Stub Material		61		Type/Protocol	
31	MATERIAL	Trim Material		62	Gauges/By-Pass	
32		Nozzle Material	SS 316 Stellite	63	Cam Characteristic	
33		Trim Type		64	Position Feedback	
34		Certification	IBR	65		
35	ACC.	Volume Booster		66	AIR SET	Mfr. / Model
36		Volume Tank		67		Range
37	LOC.	Equip. Location	Outdoor	68	SOL	Filter / Gauge
38		Amb. Temp. Min/Max		69		Set Pressure
39		Area Classification	Non-Hazardous	70		Mfr. / Model
		Min Required Straight Length	6m	71	SWITCH	Quantity/Type
		Min Req. Temp Sensors Dist.	12m	72		Voltage
		Corrosion Allowance 1.5 mm		73		Mfr. / Model
		Steam Pipe PMS 1A1BC		74	Contacts/Rating	
		Spray water Pipe PMS 3A1BC		75	Type	
		5 Deg C more than saturation level considered at DSH outlet to avoid condensate formation		76	Actuation Points	

Press/Temp Tables: ASME B16.34			
Recommended the strainer in the water line (Customer Scope)			
Submittal by: Karthikeyan S		Company: CIRCOR Flow Technologies India Pvt Ltd	
Contact Info:		End User: Rashtriya Chemicals and Fertilizers Limited	

		DESUPERHEATER ANALYSIS SHEET CIRCOR Select v15.3.0			SO No./Rev: DM25066L / 1 Item Desc.: DSH-Line Item3 Item Rev. / Date: 1 / 29-Sep-2025		
Plant Name: RCF, Ltd Unit No.: Line/PID No.: Plant Site: India		Application: Attemperator Spray Water Quantity : 1 Primary Line: Tag No.: DS-9805			Customer: Larsen & Toubro Limited PO# / Rev: LTES/75001-83664/BS Project Name: 1200 MTPD (DAP Basis) NPK Project, Thal, Maharashtra (India) End User: Rashtriya Chemicals and Fertilizers Limited		
Fluid: Steam							
Sizing Properties Steam:		Units	Max	Norm	Min	Cond4	Cond5
Inlet Flow Rate		kg/hr	5428	4737	1421		
Pressure, P1		kg/cm2(G)	3.5	3.5	3.5		
Inlet Temp., T1		°C	161.5	161.5	161.5		
Saturated Temp		°C	147.46	147.46	147.46		
Inlet Enthalpy		KJ/Kg	2775.14	2775.14	2775.14		
Inlet Specific Volume		m3/kg	0.001	0.001	0.001		
Outlet Flow Rate		kg/hr	5474	4777	1433		
Outlet Temp., T2		°C	153	153	153		
Outlet Enthalpy		KJ/Kg	2755.80	2755.80	2755.80		
Outlet Specific Volume		m3/kg	0.001	0.001	0.001		
Sizing Properties Spray Water (SW):							
Flow Rate		kg/hr	46	40	12.10		
Pressure		kg/cm2(G)	16	16	16		
Temperature		°C	115	115	115		
Enthalpy		KJ/Kg	483.63	483.63	483.63		
Rel. Density		Kg/m3	0.95	0.95	0.95		
Steam Inlet Velocity		m/s[Mach No.]	35.25[0.02]	30.76[0.02]	9.23[0.01]		
Steam Outlet Velocity		m/s[Mach No.]	34.43[0.02]	30.04[0.02]	9.01[0.01]		
SW Velocity		m/s					
Velocities			Normal	Normal	Normal		
Required Cv							
Flow Condition			Normal	Normal	Normal		
Shut-Off Pressure							
Steam Dsgn Temp In/Out :							
Minimum Degree of Superheat Required:				5 °C (41 °F)			
Min Required Straight Length (From point of water injection):				6m			
Min Required Temp Sensors Distance (From point of water injection):				12m			
Contingency:		0 %					
Turn Down Ratio:		NA					
Spray Water Quantity Required:							
$Q_w = \frac{H_1 - H_2}{H_2 - H_w} \times Q_s$							
H1 = Enthalpy of Steam at Inlet in KJ/Kg							
H2 = Enthalpy of Steam at Outlet in KJ/Kg							
Hw = Enthalpy of Water in KJ/Kg							
Qs = Steam Flow Rate in Kg/Hr							
$Q_w = \frac{2775.14 - 2755.8}{2755.8 - 46.21} \times 5428$							
Qw = 46 kg/hr							
*Invalid/Incomplete.			Submittal by: Company: Contact Info:				

				SPECIFICATION ON-OFF / CONTROL VALVE CIRCOR Select v23.1.0				SO No./Rev: DM25066L / 1 Item Desc.: CV-Line Item4 Item Rev. / Date: 1 / 29-Sep-2025		
Plant Name: RCF, Ltd Unit No.: Line/PID No.: Plant Site: Thal, Maharashtra,INDIA				Application: Attemperator Spray Water Quantity : 1 Primary Line: - Tag No.: TCV-A1-9806				Customer: L&T Energy Hydrcarbon PO# LTES/75001-83664/BS Project Name: 1200 MTPD (DAP Basis) NPK Project End User: Rashtriya Chemicals and Fertilizers Limited		
1		Fluid : Water			Critical Pressure : 224.52 kg/cm²					
		Sizing Properties		Units	Case1	Case2	Case3	Case4	..	Shut-Off
2	SERVICE / CONDITIONS	Flow Rate	kg/hr	46	40	12.1				---
3		Inlet Pressure	kg/cm²[g]	16	16	16				18 kg/cm²
4		Outlet Pressure	kg/cm²[g]	5.26	4.84	3.62				---
5		Choke Drop	kg/cm²	15.114	15.114	15.114				---
6		Inlet Temperature	°C	115	115	115				155
7		Vapor Pressure	kg/cm²[g]	0.69	0.69	0.69				---
8		Rel. Density		0.948	0.948	0.948				---
9		Absolute Viscosity	cP	0.257	0.257	0.257				---
10		Required Cv		0.02	0.01	0.004				---
11		Travel	%	65	50	10				---
12		Allow. / Pred. SPL, IEC	dBA	85 / 1	85 / XX	85 / 16				---
13		F _L	5	0.99	0.99	0.99				---
14	LINE	Pipe Size & Sch. In	DN 25 Sch. 160		53	ACTUATOR	Type Pneumatic Spring & Diaphragm			
15		Pipe Size & Sch. Out	DN 25 Sch. 160		54		Mfr. / Model CIRCOR / CM60			
16		Pipe Insulation	None		55		Size/Eff. Area			
17	VALVE / BODY / BONNET	Type	Cast-Globe		56		Service Modulating			
18		Body Size	DN25		57		Sprg Actn/Air Fail Closed			
19		Pressure Class	300 ANSI		58		Spring No. B6-7G			
20		Dsgn Press	18 kg/cm²[g]	Dsgn 155 °C	59		Max.Allow. Cyl. Press. 6 bar[g]			
21		Mfr. / Model	CIRCOR / 3100		60		Min. Req'd Press. 4 bar[g]			
22		Model No.			61		Avail. Air Supply			
23		Body/Bonnet Mat'l	A105		62		Max / Min Press 5.5 bar[g] / 4 bar[g]			
24		End Connection	DN25 Raised Face (RF) Flange		63		Bench Range 1.47 - 2.43 kg/cm2			
25		Fig. Face Finish	Std. 125 - 250 rms		64		Orientation Vertical			
26		End Ext. Mat'l			65		HOD/Override Type Yes - Side Mounted			
27		Flow Direction	Flow Under Plug		66	Lock Up Valve No				
28		Type of Bonnet	Standard-UTP		67	Set Press.				
29		Packing Mat'l	Graphite		68	Tubing/Fittings 3/8" NPT SS316				
30	TRIM	Type	Unbalanced - Top Guided		69	Data Plate Stainless Steel				
31		Cage Type	MF Plug		70	Mfr. / Model SIEMENS / 6DR5115-0EN01-0AA3				
32		Characteristic	Modified		71	Input Signal 4-20 mA DC				
33		Travel / Stroke	25 mm		72	On Incr. Signal O/p Increase				
34		Rated Cv	0.04		73	Type/Protocol Smart / HART (IP67)				
35		Plug Mat'l	SS 440C Hardened		74	Gauges/By-Pass Yes / No				
36		Seat Ring Material	SS 440C Hardened		75	Cam Characteristic Linear				
37		Cage Mat'l	Integral with seat		76	Position Feedback Yes				
38		Stem Mat'l	A479 TY 316		77	Mfr. / Model SHAVO / 11-4SN-402M-M5KN-NBAO				
39	SPECIAL ACCESSORIES	1/2" NPT SS316 Double Compression Cable Glands offered for positioner (1 no.) 1/2" NPT (F) Adapter offered at AFR inlet w.r.t process connection			78	Range 0.70 - 7.00 Kg/cm2g				
40					Filter / Gauge Yes (5 Micron) / Yes					
41					79	Set Pressure 4 Barg				
42					80	Mfr. / Model				
43					81	Quantity/Type				
44					82	Voltage				
45					83	Mfr. / Model				
46					84	Contacts/Rating				
47					85	Type				
48					86	Actuation Points				
49		LOC.	Equip. Location	Outdoor		87	Hydro Test Press. 77.57 bar[g]			
50	Amb. Temp. Min/Max				88	Seat Leakage ANSI/FCI 70-2 Class V				
51	Area Classification		Non-Hazardous		89	Other See Factory Notes / QA Plan				
52	Compliance		IBR		Req Stem Thrust: 190 kgf Press/Temp Tables: ASME/ANSI B16.34					
*Equivalent material forms may be used for the trims.					Submittal by: Karthikeyan Sekar Company: CIRCOR Flow Technologies India Pvt Ltd Contact Info:					

Mandatory Spares List						
Valve Tag no.	Actuator Seal Kit	Trim Set	Actuator Set	Soft Parts (Gaskets & Gland Packing)	SMART Poz	AFR
TCV-A1-9802	1 Set	1 Set	1 no.	1 Set	2 no's Offered	2 no's Offered
TCV-A1-9806	1 Set	1 Set	1 no.	1 Set	x	x

x - not offered



☐ Short Delivery	☐ Only for Engg. Activities	Date	29.09.2025
☐ Bought out valves	☐ Others, Please Specify	CORB Reference	DM25066L
Customer / Buyer Name	LARSEN & TOUBRO LIMITED	CEC Quote Number with Date	250702-0400-PA Dtd 28.08.2025
Site / End User Name & Country	Rashtriya Chemicals and Fertilizers Limited, India	Application Engineer SPOC	Karthikeyan Sekar Satheshkumar Eagambaram
Buyer PO Number/Date	LTES/75001-83664/BS Dtd 03.09.2025	Outside Sales Engineer/Manager	Ashokvijay R
Buyer PO/LOI Received Date	12.09.2025	PO Value	INR 9,99,750
Agreed / Approved Payment Terms	Refer PO clause no. 5.0	1)PO Delivery Date 2)Agreed Delivery Date	26.03.2026
Agreed Incoterms /Shipping Terms	CPT, RCF Thal Project Site	Margin	22%
LD Clause	@0.5% of the undelivered portion of Order value	Agent Name & Commission	NA
Ship to Address with GST#:	Rashtriya Chemical and Fertilizers Limited Thal, Thal-Vaishet, Alibag # 402 208 State: Maharashtra, India GSTIN: 27AAACL0140PEZ6	Bill to Address with GST#:	Larsen & Toubro Limited Divison Name: L&T Energy Hydrocarbon 14th Floor, AMN Tower, AMN Tower, Jogeshwari - Vikroli Link Road, Powai Campus, Gate 3, Mumbai Suburban, Maharashtra, 400072

ENQUIRY / RFQ FROM CUSTOMER